

CONTEMPORARY FEDERAL REGULATION OF ORDINARY FIREARMS: THE GUN CONTROL ACT OF 1968

This Chapter focuses on the federal regulations governing most common firearms today, the Gun Control Act of 1968 (GCA). Part A of this Chapter is a detailed treatment of the GCA. Part B discusses the regulatory structure surrounding the GCA. Part C addresses the Protection of Lawful Commerce in Arms Act (PLCAA), which, in contrast to the proscriptive GCA, explicitly protects firearms commerce and ownership. Part D discusses how constitutional limits on federal power limit federal regulation of firearms.

As suggested by the title of the book, firearms law can raise a spectrum of legal issues—some statutory, some regulatory, and some constitutional. This Chapter focuses on core statutory and regulatory matters. This material will expose you to the governing rules and judicial interpretations of the basic statutory and regulatory provisions. Some of the GCA provisions and accompanying regulations covered in this Chapter also raise separate *constitutional* questions. Those constitutional questions (among others) are covered in Chapters 6 through 10. On April 29, 2026, the ATF announced a suite of reforms of regulations and interpretations. The changes are noted in the relevant sections of this Chapter and other chapters. The Student Materials page of this book’s website, <http://firearmsregulation.org>, links to a thorough explanation of the rules and will be updated on an ongoing basis as the proposed rules are modified and finalized.

A. MODERN FEDERAL REGULATION OF ORDINARY FIREARMS: THE GUN CONTROL ACT

This Part addresses the broad framework of federal regulation on the purchase, sale, and possession of the vast majority of firearms in America. Chapter 3 introduced the National Firearms Act of 1934. As that chapter explained, the NFA only applies to a small fraction of firearms—such as machine guns and short-barreled rifles. The federal rules for ordinary firearms are established by the Gun Control Act of 1968 (GCA). The GCA has been amended many times, most significantly by the Firearms Owners' Protection Act of 1986 (FOPA) and the Brady Handgun Violence Prevention Act (1993).

1. Overview of the Gun Control Act

This Section describes the Gun Control Act of 1968 as amended. It begins with an overview of federal regulation of ordinary firearms in the U.S. (versus the more esoteric guns covered by the NFA). It then provides a section-by-section walk-through of the GCA. For everything in the GCA and the NFA, the definitive treatise is Stephen Halbrook's annually updated Firearms Law Deskbook, available in print and in the Westlaw "Text & Treatises" sub-library of "Secondary Sources."

The vast majority of the more than 500 million privately held guns in the United States (*see* Ch. 1.A, tbl. 1-1) are ordinary firearms regulated under Title I of the GCA. The GCA does not apply to firearms manufactured before 1899, or to later replicas of certain pre-1899 guns. Nor does the GCA apply to muzzle-loading guns. Likewise, the GCA does not apply to air guns, which are fueled by compressed gas rather than gunpowder. A few states, however, apply their gun control laws to antiques, muzzleloaders, and air guns.

The GCA was enacted in September 1968, as 18 U.S.C. §§ 921 et seq. Earlier that summer, another gun control bill had passed, and was codified at 18 U.S.C. App. § 1202-03. It duplicated some of the future GCA and conflicted with some other parts. The 1986 Firearms Owners' Protection Act removed the U.S. App. material and consolidated it into § 922 and § 924.

a. Some Basic Rules

(i) Purchasing a Gun from a Commercial Dealer

To purchase a firearm, one typically goes to a retail store operated by a vendor who sells guns as a business. The seller must have a Federal Firearms License as required by the GCA. The term "FFL" is used interchangeably to refer to the license itself and to the individual or business entity that holds the license. To purchase the gun, one must first fill out a federal transfer record (ATF Form 4473), which asks for the buyer's address, date of birth, race, height, and so on. The buyer must also answer a series of yes-or-no questions to affirm that he or she does not fall into one of the several categories of "prohibited persons"—for example, convicted of a crime punishable by more than a year in prison, adjudicated mentally ill, habitual user of narcotics, or illegal alien—who are barred by federal law from purchasing

or possessing a firearm. The buyer must show the vendor a photo identification, which the vendor records. One must be at least 18 years old to purchase a rifle or shotgun, and 21 to purchase any other type of gun, such as a handgun.

Next, by telephone or Internet, the vendor contacts the National Instant Criminal Background Check System (NICS, a federal program run by the FBI from an office in West Virginia), or a state counterpart run by a state police agency. The “instant” check may take seconds, minutes, hours, or days. Once the system verifies that the buyer is not on any list of prohibited persons, the vendor records an authorization number for the sale, and the buyer may take possession of the firearm. Typically, the entire purchase process can be completed in about an hour, although sometimes longer delays are created by the instant check procedure, such as when the number of sales on a given day exceeds the ability of NICS to keep up.

(ii) Purchasing a Gun from a Private Seller

Under the GCA, any person or corporation “engaged in the business” of selling firearms must have a Federal Firearms License. 18 U.S.C. § 923. “Engaged in the business” means someone who makes repetitive transactions in firearms as a regular course of trade or business with the principal objective of livelihood and profit. *Id.* § 921. Any person who claims to be an “unlicensed dealer” in guns is, in effect, making an admission to conduct that can be prosecuted as a felony. The regulatory language used by the Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF) to distinguish someone with an FFL (licensee) from someone who does not hold an FFL is “unlicensed person” or “nonlicensee.”

A person who is *not* “engaged in the business” may make occasional sales of firearms *to another resident of the same state* without having to go through the federal paperwork or formal customer background checks required for licensees. *Id.* § 922. So in most states, one can lawfully buy or trade a firearm from a neighbor, a friend, or so on, on whatever terms agreed to. If, however, the seller has reason to believe that the buyer is a prohibited person, then the sale is a federal crime. *Id.* Finally, private sellers who conduct repetitive sales for profit and derive a significant income from it may be deemed to have “engaged in the business” of selling firearms—which, again, is a federal felony for nonlicensees. Bureau of Alcohol, Tobacco, Firearms and Explosives, *Do I Need a License to Buy and Sell Firearms?* 5-6 (2016). As the ATF explains, selling some guns from one’s collection to raise money to buy other guns for the collection is not engaging in the business; buying and reselling guns at a flea market every month *is* being engaged in the business.

Sales between two unlicensed gun owners in the same state are often referred to as *private party sales*. A minority of states prohibit private sales and require that all transactions in firearms be routed through an FFL, complying with whatever extra rules apply in that state to FFL sales.

(iii) Purchases in Various Locations

Under the GCA, one cannot lawfully buy a handgun outside one’s state of residence, not even from an FFL. *Mance v. Sessions*, 896 F.3d 699 (5th Cir. 2018)¹

1. The complicated history of the case includes an 8-7 denial for a motion for rehearing en banc, with multiple dissents. *Mance v. Sessions*, 896 F.3d 390 (5th Cir. 2018).

A potential buyer who wishes to purchase a handgun outside her home state can only lawfully complete the transaction by having the seller ship the handgun to an FFL in her home state. The buyer can then pick up the gun from her home-state FFL, after compliance with the requirements of the GCA described above and any other requirements of the home state.

As enacted in 1968, the GCA allowed long gun sales between contiguous states, if the legislatures of both states enacted enabling legislation. In 1986, FOPA allowed all FFLs to sell to residents of any state, provided that all the laws of both states are followed. Additionally, interstate acquisition by lawful bequest is permitted and a person may borrow or rent a firearm in any state for temporary use for lawful sporting purposes. 27 C.F.R. § 478.29. *See also* ATF, Federal Firearms Regulations Reference Guide Question and Answer: B2, B3, at 197 (ATF Pub. 5300.4, rev. Sept. 2014); Laura Hunter Dietz, *Federal Interstate Handgun Transfer Ban, as Implemented by 18 U.S.C.A. §§ 922(a)(3) and 922(b)(3), and 27 C.F.R. § 478.99(a)*, 43 A.L.R. Fed. 3d Art. 1 (2019).

(iv) Gun Shows

America has a rich tradition of community-based markets for goods and services, such as farmers' markets for fresh fruits and vegetables, flea markets, and book fairs. Grassroots markets are also an organic part of American culture, and gun shows have been part of this phenomenon for decades. These events are usually held at a fairground building, convention center, or similar place, on a weekend, where buyers and sellers congregate. The 1968 GCA allowed FFLs to sell only from their official place of business; FOPA allowed them to also sell at gun shows. 18 U.S.C. § 923. Most sellers at a typical gun show are FFLs. But there are also usually private sellers in attendance. Unlicensed persons may purchase a table at the gun show and try to negotiate sales or purchases with passersby. In most states, the laws for selling private guns at a gun show are exactly the same as for sales anywhere else. Of course, in states where all firearms transactions must go through an FFL, private sellers would also have to route the gun show transaction through a cooperating FFL at the gun show. Gun shows are discussed further in Section A.5.

(v) Gun Sales Documentation

An ATF Form 4473 must be filled out when buying a gun from an FFL and this form must be retained by the dealer. The longstanding rule that dealers had to retain records for 20 years was replaced in 2022 with a rule that the forms be retained forever. 27 C.F.R. § 478.129; ATF Form 4473 (5300.9). In 2026, ATF requested comment on a proposal to change the retention period to 20 or 30 years. 91 Fed. Reg. 24413 (May 6, 2026). The form is available for inspection by the ATF during annual compliance inspections of the dealer, and whenever needed in the course of a bona fide criminal investigation. *Id.* § 478.23. Depending on the type of license (manufacturer, importer, retailer, collector, etc.) an FFL is also required to maintain a log of all firearms that pass through the inventory of the licensee in the normal course of business. 27 C.F.R. § 478.121 et seq. For a retail FFL, these logs are referred to as Acquisition and Disposition Records (A&D Book) and are required to cross-reference the ATF Form 4473 for each sale to a nonlicensee. *Id.* § 478.124. When an FFL dealer goes out of business, he or she must forward these business records, including records of firearms sold, to the ATF. *Id.* § 478.127.

Federal law forbids the federal government from creating a centralized registration list of guns or gun owners. 18 U.S.C. §§ 922(t)(2)(C), 923(g)(1)(A), 926(a)(3). However, a minority of states do register all gun owners, all guns, or all handguns. The registration list is often created by harvesting data from the paperwork required for gun purchases.

(vi) Curios and Relics

ATF issues nine types of firearms licenses. All but one are for people engaged in commerce and manufacturing.² A “Curios and Relics” (C&R) license is available to collectors of antique and collectible firearms placed by the ATF on a list of “Curios and Relics.” Federal law does not require that gun collectors obtain a C&R license, but the license does provide some benefits. Anyone who is eligible to purchase a firearm can obtain a C&R license. The primary advantage of the license is that licensees can buy, sell, and ship firearms designated as Curios and Relics in interstate commerce directly with dealers and among themselves. 27 C.F.R. § 478.41(c).

Curios and Relics are guns that have special value to collectors because of “some quality other than is associated with firearms intended for sporting use or as offensive or defensive weapons.” They must meet one of the following criteria: (1) be manufactured at least 50 years prior to the current date—newer replicas of older guns do not count; (2) be certified as curios or relics of museum interest by the curator of a municipal, state, or federal museum that exhibits firearms; or (3) derive a substantial part of their monetary value from the fact that they are novel, rare, bizarre, or from the fact of their association with some historical figure, period, or event. 27 C.F.R. § 478.11. Qualifying guns are in the *Firearms Curios or Relics List* (ATF Pub. 5300.11) and its updates. A permanent appropriations rider prevents the ATF from removing firearms from its Curios & Relics list.³

2. Type 01 Dealer in firearms other than destructive devices. (For destructive devices, see Chapter 3.C.2.f.) Type 02 Pawnbroker for Type 01 arms. Type 03 Curios and Relics collector. Type 06 Manufacturer of ammunition other than ammunition for destructive devices or armor piercing ammunition (latter defined at 18 U.S.C. § 921(a)(17)(B)). Type 07 Manufacturer of firearms other than destructive devices. Type 08 Importer of firearms or ammunition other than destructive devices, ammunition for destructive devices, or armor piercing ammunition. Type 09 Dealer in destructive devices. Type 10 Manufacturer of destructive devices, ammunition for same, or destructive devices or armor piercing ammunition. Type 11 Importer of Type 10 items.

3. Consolidated and Further Continuing Appropriations Act, 2012, Pub. L. No. 112-55, 125 Stat. 552, 609-10 (2011) (“[N]o funds appropriated herein shall be used to pay administrative expenses or the compensation of any officer or employee of the United States to implement an amendment or amendments to 27 C.F.R. § 478.118 or to change the definition of ‘Curios or relics’ in 27 C.F.R. § 478.11 or remove any item from ATF Publication 5300.11 as it existed on January 1, 1994.”).

The appropriations rider, consolidating some riders from previous years, also forbids operation of ATF’s relief-from-disabilities program (Section A.8), and protects the privacy of licensed dealer records and ATF trace records. *Id.* at 609-10. For discussion, see Section A.4.a.i Note 4.

(vii) Manufacturing Firearms

Although federal law generally does not require a license to manufacture a firearm for personal use, there are exceptions for NFA weapons. As stated by the ATF, “a license is not required to make a firearm solely for personal use. However, a license is required to manufacture firearms for sale or distribution. The law prohibits a person from assembling a non-sporting semiautomatic rifle or shotgun from 10 or more imported parts, as well as firearms that cannot be detected by metal detectors or x-ray machines. In addition, the making of an NFA firearm requires a tax payment and advance approval by ATF.” ATF, Federal Firearms Regulations Reference Guide 196 (2014).

Some states also regulate personal firearm manufacture, with the typical law requiring serialization. *E.g.*, Cal. Penal Code § 29180; N.J. Rev. Stat. § 2C:39-9 (also prohibiting the manufacture and sale of parts used to create homemade firearms).

b. The Gun Control Act Statute

The summary below describes the major sections of the GCA and important contents.

Section 921. Definitions.

Section 922. Unlawful acts. This is the core of the GCA. It delineates the requirements governing buyers and sellers of common firearms. It prohibits nine categories of individuals from possessing arms, and more.

Section 923. Licensing. Generally speaking, the GCA only allows interstate commerce in firearms or ammunition when at least one party has been issued a Federal Firearms License (FFL). Section 923 sets up the system for licensing the importers, manufacturers, and dealers who supply and sell the bulk of common firearms in the retail market. It specifies requirements for record keeping by FFLs, government inspections of their premises and records, license-revocation procedures, and licensee rights in administrative or criminal proceedings. This section also includes provisions governing a separate class of license available to collectors of “Curios and Relics.” (Section A.1.a.vi.)

Section 924. Penalties. Specifies fines and imprisonment for violations of various provisions of the GCA. Includes severe mandatory minimum sentences for the use of a firearm in any crime of violence or drug trafficking.

Section 925. Relief from disabilities. A safety valve authorizing a procedure for prohibited persons to appeal for “relief” from the bar on possessing firearms. The system for relief from disabilities has been defunded since 1992 via ATF appropriations and is nonfunctional. However, Attorney General Pam Bondi in early 2025 announced that a restoration of rights program operated by the Department of Justice (but not the ATF, which is a unit of the DOJ) would be created. *See* Section A.8; *cf.* Ch. 7.D. Section 925 also creates special rules for transfers of firearms to the federal government, state governments (and subdivisions), and members of the U.S. military. The section mandates the Attorney General “shall” approve certain firearms imports, namely firearms “generally recognized as particularly suitable for or readily adaptable to sporting purposes, excluding surplus military firearms.” FOPA’s amendment to the import text narrowed administrative discretion to refuse firearms imports.

Section 925A. Remedy for erroneous denial of firearm. Authorizes actions to remove erroneous information from the National Instant Criminal Background Check System (NICS) and/or consummation of the erroneously denied transfer. Prevailing plaintiffs may be awarded reasonable attorney’s fees.

Section 926. Rules and regulations. Forbids any “system of registration of firearms or firearms owners.”

Section 926A. Interstate transportation of firearms. Creates a safe harbor for lawful interstate travel. For example, a Pennsylvanian driving to Vermont passes through New York State, but does not have a New York pistol permit. The Pennsylvanian may not be convicted by New York if the handgun was unloaded and locked in the trunk.

Sections 926B and 926C. Law Enforcement Officer Safety Act (LEOSA). States may not prohibit out-of-state law enforcement officers from carrying arms. The protection was extended to retired officers by § 926C.

Section 927. Effect on State law. Congress does not intend to “occupy the field” of firearms regulation to the exclusion of state law.

Section 928. Severability. A standard clause.

Section 929. Use of restricted ammunition. Special penalties for the use of certain ammunition in the commission of a crime of violence or drug trafficking.

Section 930. Federal facilities. Bans firearms in most federal buildings.

Section 931. Body armor. Prohibits anyone convicted of a crime of violence from purchasing, owning, or possessing body armor.

2. *What Is a Gun?*

The first step in regulating guns is defining the item to be regulated. As demonstrated below, this presents a regulatory challenge.

Bondi v. VanDerStok

604 U.S. 458 (2025)

Justice GORSUCH delivered the opinion of the Court.

For decades, the Gun Control Act has regulated the sale of firearms. This case poses the question whether the Act’s longstanding mandates also apply to those who make and sell a new product — “weapon parts kits.”

I

A

Shortly after the assassinations of Senator Robert F. Kennedy and Dr. Martin Luther King, Jr. stunned the Nation, Congress adopted the Gun Control Act of 1968 (GCA). Existing gun control measures, Congress found, allowed criminals to acquire largely untraceable guns too easily. Often, for example, criminals could evade state laws regulating in-person sales simply by purchasing guns through the mail. *Ibid.* In response, Congress adopted a number of new mandates. As a result, many of those now engaged in importing, manufacturing, or dealing in firearms must obtain federal licenses, keep records of their sales, and conduct background checks before transferring firearms to

private buyers. 18 U.S.C. §§ 922(t), 923(a), (g)(1)(A). The Act also requires importers and manufacturers to mark their firearms with serial numbers. § 923(i).

These mandates serve at least two ends. The background-check requirement seeks to keep “guns out of the hands of criminals.” *Abramski v. United States*, 573 U.S. 169, 180 (2014). The licensing, recordkeeping, and serialization requirements, meanwhile, aim “to assist law enforcement authorities in investigating serious crimes,” *id.*, by permitting them “to determine where, by whom, or when” a firearm was manufactured and to whom it was “sold or otherwise transferred.” 87 Fed. Reg. 24652 (2022). Today, thousands of law-enforcement agencies nationwide depend on the Act’s tracing system to link firearms involved in crimes to their owners.

The GCA’s mandates apply to “firearm[s].” See §§ 922(t), 923(a), (i). And the law defines that key term broadly. Under § 921(a)(3), a “firearm” includes “(A) any weapon (including a starter gun) which will or is designed to or may readily be converted to expel a projectile by the action of an explosive; (B) the frame or receiver of any such weapon; (C) any firearm muffler or firearm silencer; or (D) any destructive device.” Thanks to this generous definition, the GCA has long been understood to reach everything from run-of-the-mill rifles to novelty umbrella guns. See *Novelty Guns*, ATF (June 5, 2015), <https://www.atf.gov/firearms/photo-gallery-0>.

Recent years, however, have witnessed profound changes in how guns are made and sold. When Congress adopted the GCA in 1968, “the milling equipment, materials needed, and designs were far too expensive for individuals to make firearms practically or reliably on their own.” 87 Fed. Reg. 24688. With the introduction of new technologies like 3D printing and reinforced polymers, that is no longer true. Today, companies are able to make and sell weapon parts kits that individuals can assemble into functional firearms in their own homes.

These kits vary widely both in how complete they come and in how much work is required to finish them. At one end of the spectrum, a kit may lack essential parts and “requir[e] substantial effort, specialized expertise, uncommon equipment, and a significant amount of time” before anyone can fire a shot. Brief for Former Acting Chief of ATF Firearms Technology Branch et al. as *Amici Curiae* 35. At the other end, some kits “contain all components necessary” for “a complete pistol” and can be completed in perhaps half an hour using commonly available tools.

. . . Some manufacturers and dealers take the position that weapon parts kits do not qualify as “firearms” subject to the GCA. As a result, they say, they are free to sell their products without obtaining a federal license, conducting background checks, maintaining sales records, or marking components with serial numbers. 87 Fed. Reg. 24652.

The upshot? “[P]olice departments around the Nation” have “confronted an explosion of crimes” involving these “ghost guns.” In 2017, law-enforcement agencies submitted about 1,600 ghost guns to the federal government for tracing. By 2021, that number jumped to more than 19,000. *Id.* Efforts to trace the ownership of these weapons, the government represents, have proven “almost entirely futile.”

B

In 2022, the Bureau of Alcohol, Tobacco, Firearms and Explosives adopted a new rule designed to combat the proliferation of ghost guns. In doing so, the agency invoked authority Congress granted it to prescribe “rules and regulations

as are necessary to carry out” the GCA. 18 U.S.C. § 926(a). Two provisions in the agency’s new rule are of special relevance here.

The first addresses weapon parts kits directly. Recall that § 921(a)(3) extends the GCA’s mandates to “firearms,” a term subsection (A) defines as “any weapon (including a starter gun) which will or is designed to or may readily be converted to expel a projectile by the action of an explosive.” In its new rule, ATF interpreted this language to embrace weapon parts kits “that [are] designed to or may readily be completed, assembled, restored, or otherwise converted to expel a projectile by the action of an explosive.” 27 CFR § 478.11 (2023) (defining “firearm”). Those who make or sell kits that satisfy this test, ATF said, must comply with the GCA by securing federal licenses, conducting background checks, keeping sales records, and marking their products with serial numbers. To decide whether a kit “may readily be converted” into a working gun, ATF added, it will consider several factors, including the time, ease, expertise, and equipment required to complete a weapon, as well as the availability of other necessary parts. *Id.* (defining “readily”).

The second relevant aspect of the agency’s new rule concerns a key building block of almost any firearm: its frame or receiver. Under subsection (B) of § 921(a)(3), “the frame or receiver of any such weapon” covered by subsection (A) is itself treated as a “firearm.” Effectively, that means a frame or receiver is, even when sold separately, subject to the Act’s requirements. Presumably, Congress singled out these components for special treatment because of the special role they play in constructing firearms. As the government put it in 1968, a frame or receiver is “[t]hat part . . . which provides housing for the hammer, bolt or breechblock, and firing mechanism, and which is usually threaded at its forward portion to receive the barrel.” 33 Fed. Reg. 18558.

In its 2022 rule, ATF sought to expand this definition. Now, the agency said, a “frame or receiver” subject to subsection (B) of § 921(a)(3), should be understood to encompass as well “a partially complete, disassembled, or nonfunctional frame or receiver, including a frame or receiver parts kit, that is designed to or may readily be completed, assembled, restored, or otherwise converted to function as a frame or receiver.” 27 CFR § 478.12(c) (defining “frame or receiver”). Still, ATF stressed, the Act and its new rule have their limits. They do not apply until an object has “reached a stage of manufacture where it is clearly identifiable as an unfinished component part of a weapon.” *Id.* So, for example, “[a] forging, casting, printing, extrusion, unmachined body, or similar article” does not count. *Id.*

C

Before ATF’s new rule took effect and ATF could begin efforts to enforce its new rule, various gun manufacturers, at-home gunsmiths, and others filed what they described as a “facial” challenge under the Administrative Procedure Act (APA). They argued that the GCA cannot be fairly read to reach weapon parts kits or unfinished frames or receivers. . .

II

As presented to us, this case does not ask us to resolve whether ATF’s new regulations in § 478.11 and § 478.12 may be lawfully applied to particular weapon parts kits or unfinished frames or receivers. Instead, the plaintiffs have pursued what the lower courts called a “facial” pre-enforcement challenge to the agency’s authority

to regulate *any* weapon parts kits or unfinished frames or receivers. In a challenge like that, the government represents, “the possibility that [ATF’s regulation] may be invalid as applied’ in some cases ‘does not mean that the regulation is facially invalid.’ Instead, [the plaintiffs’] burden is to show that the Rule itself is inconsistent with the statute on its face.” Nowhere in either of their briefs before us do the plaintiffs dispute that assessment. Accordingly, we take it as given for our purposes here.²

In doing so, we turn first to the question whether § 478.11’s provisions addressing weapon parts kits are inconsistent on their face with the GCA. The answer turns on subsection (A) of § 921(a)(3). There, remember, the GCA authorizes ATF to regulate “any weapon (including a starter gun) which will or is designed to or may readily be converted to expel a projectile by the action of an explosive.” Inhering in this language are two requirements. First, a “weapon” must be present. Second, that “weapon” must meet one of three criteria: It must be able to expel a projectile by the action of an explosive, designed to do so, or susceptible of ready conversion to operate that way. As the Fifth Circuit saw it, § 478.11’s provisions addressing weapon parts kits are facially invalid because no weapon parts kit can ever satisfy the statute’s two requirements. We disagree because, to our eyes, at least some kits will satisfy both.

A

To appreciate why, it helps to work with an example. Take a weapon parts kit featured prominently in the record before us: Polymer80’s “Buy Build Shoot” kit. It comes with “all of the necessary components to build” a Glock-variant semiautomatic pistol. And it is so easy to assemble that, in an ATF test, an individual who had never before encountered the kit was able to produce a gun from it in 21 minutes using only “common” tools and instructions found in publicly available YouTube videos. The first picture below shows the kit; the second depicts the gun the kit yields.



2. The dissents raise a number of questions about what test courts should apply when a party contends that an agency has acted in excess of its statutory authority in a pre-enforcement



Now, assess whether the “Buy Build Shoot” kit meets subsection (A)’s two tests, and start with the question whether Polymer80’s offering qualifies as a “weapon.” When Congress adopted the GCA in 1968, that term meant what it means today: “an instrument of offensive or defensive combat . . . [such] as a club, sword, gun, or grenade.” Webster’s Third New International Dictionary 2589 (def. 1) (1966). As a result, ATF’s authority under subsection (A) extends only to instruments of combat, not to other things like industrial tools or toy guns that may “expel a projectile by the action of an explosive.” It is a feature of the statute the agency itself has long acknowledged.

Plainly, the finished “Buy Build Shoot” kit is an instrument of combat. No one would confuse the semiautomatic pistol pictured above with a tool or a toy. Of course, as sold, the kit requires some assembly. But a number of considerations persuade us that, even as sold, the “Buy Build Shoot” kit qualifies as a “weapon.”

Consider, first, a feature of ordinary language. The term “weapon” is an artifact noun—a word for a thing created by humans. Artifact nouns are typically “characterized by an intended function,” rather than by “some ineffable ‘natural essence.’” Reflecting as much, everyday speakers sometimes use artifact nouns to refer to unfinished objects—at least when their intended function is clear. An author might invite your opinion on her latest *novel*, even if she sends you an unfinished manuscript. A friend might speak of the *table* he just bought at IKEA, even

challenge under the APA. But the theories the dissents proceed to advance were not pressed or passed upon below, nor did the parties make them before this Court. In these circumstances, we believe the better course is to leave further analysis of the proper test for another day and address the parties’ dispute as they have chosen to frame it. . .

though hours of assembly remain ahead of him. In both cases, the artifact noun fits because the intended function of the unfinished object is obvious to speaker and listener alike.

The term *weapon* can work this way, too. Imagine a rifle disassembled for storage, transport, or cleaning. It may take time to render the rifle useful for combat, but its intended function is clear. And, as a matter of everyday speech, that rifle *is* a weapon, whether disassembled or combat ready. In the same way and for the same reason, an ordinary speaker might well describe the “Buy Build Shoot” kit as a “weapon.” Yes, perhaps a half hour of work is required before anyone can fire a shot. But even as sold, the kit comes with all necessary components, and its intended function as instrument of combat is obvious. Really, the kit’s name says it all: “Buy Build *Shoot*.”

Next, consider what the statute itself has to say about the term “weapon.” Subsection (A) tells us that the term “includ[es] a starter gun.” § 921(a)(3)(A). A starter gun, of course, normally fires blanks, not bullets, and is usually found at sporting events, not in combat. To be sure, a starter gun can be converted to live fire using a power tool commonly available at hardware stores. For someone with no “specialized knowledge,” the process can take “less than an hour.” *Ibid*. But, notably, the statute teaches that a starter gun is a “weapon” *before* anyone invests that work. All of which indicates that Congress used that term, as an ordinary speaker might, to embrace some unfinished instruments of combat like Polymer80’s product.

Finally, notice another feature of the statute. If Congress had wanted to regulate only operable firearms, it could have simply addressed “weapons” that can “expel a projectile by the action of an explosive.” But Congress didn’t stop there. Instead, Congress explained that a “weapon” also qualifies for regulation if it is either “designed” to accomplish that function or “capable of being ‘readily . . . converted’ to do so.” § 921(a)(3)(A). Those latter provisions necessarily contemplate that some things short of fully operable firearms will qualify as “weapons.” And if that is true, it is difficult to see how the easy-to-assemble “Buy Build Shoot” kit might not be among them.

Of course, to implicate the Act, not only must a “weapon” be present. That weapon must meet one of the just-recounted conditions. At a minimum, that means a weapon must be capable of being “readily . . . converted to expel a projectile by the action of an explosive.” *Id*. As we see it, the “Buy Build Shoot” kit satisfies that test, too.

Begin with what we can glean about the “ready-conversion” standard from the statute. We know that Congress’s direction that a starter gun is a “weapon” would be pointless unless a starter gun satisfies all subsection (A)’s terms. For the statute to make sense, then, a starter gun must be able to fire bullets, designed to do so, or capable of ready conversion to operate that way. Generally, however, a starter gun meets neither of the first two conditions, for its barrel is deliberately blocked. That leaves only one serious possibility: It must be that a starter gun “can readily be converted to expel projectiles by the action of an explosive.”

That turns out to tell us all we need to know about the statute’s “ready conversion” test. As we have seen, a person without any specialized knowledge can convert a starter gun into a working firearm using everyday tools in less than an hour. And measured against that yardstick, the “Buy Build Shoot” kit can be “readily

converted” into a firearm too, for it requires no more time, effort, expertise, or specialized tools to complete. If the one meets the statutory test, so must the other.

Admittedly, our reasoning here has its limits. Just because some kits, like Polymer80’s, qualify as “weapons” that “can readily be converted” into working firearms does not mean all do. Think of the problem of the heap: Start with a heap of sand and begin removing grains; at some point, a heap no longer exists. That problem attends many artifact nouns. Even when used to capture unfinished products, artifact nouns generally reach only so far. It would be extravagant to speak of a *novel* when the author has dashed off only a few lines. Few would call a pile of unfinished logs a *table*. Subsection (A) may present a similar problem. Weapon parts kits vary widely. See Part I-A, *supra*. Not all come as complete as the “Buy Build Shoot” kit. Some, too, may require more time, expertise, or specialized tools to finish. And at some point a kit may be so incomplete or cumbersome to assemble that it can no longer fairly be described as a “weapon” capable of “read[y] . . . conver[sion]” into a working firearm. § 921(a)(3)(A).

While we recognize the problem, this case does not require us to untangle exactly how far subsection (A) reaches. The plaintiffs argue only that § 478.11’s provision addressing weapon parts kits is facially inconsistent with the statute. The Fifth Circuit adopted the same view after coming to the unqualified conclusion that weapon parts kits can never satisfy the statute’s two tests. To resolve this case, it is enough to say those assessments are mistaken. Because at least some weapon parts kits satisfy both of subsection (A)’s tests, § 478.11 is not facially invalid. Future cases may present other and more difficult questions about ATF’s regulations. But we take cases as they come and today resolve only the question posed to us.

B

The plaintiffs dispute little of what we have said. They admit that artifact nouns sometimes capture unfinished articles. They recognize that starter guns qualify as “weapons” even though they require work before they operate as functional firearms. The plaintiffs concede, too, that disassembled rifles and guns are “weapons” that can be “readily . . . converted” to live fire because they have “all the parts necessary” for an ordinary person “to put together a functioning firearm” in short order. Really, the plaintiffs fail only to take the next step and acknowledge that the same might be said of some weapon parts kits.

Given all that, what do the plaintiffs have to say in support of the Fifth Circuit’s conclusion that subsection (A) reaches *no* weapon parts kits? Perhaps their best argument centers on the fact that other statutes address collections of parts while this one does not. As the plaintiffs observe, Congress has elsewhere defined a “destructive device” to embrace “any combination of parts . . . from which a destructive device may be readily assembled.” Similarly, Congress has specified that the terms “firearm silencer” and “firearm muffler” encompass “any part” or “combination of parts” used to “assembl[e] or fabricat[e]” those items. Subsection (A), meanwhile, employs none of those terms. And because Congress has spoken elsewhere to collections of firearm parts, the plaintiffs insist, we should infer this statute does not address parts or kits containing any combinations of them.

The plaintiffs’ conclusion, however, does not follow from their premise. We do not doubt that subsection (A) sweeps more narrowly than some other statutes.

No one thinks it reaches every piece or part that can be used to produce a firearm. Recognizing as much, ATF itself acknowledges that subsection (A) does not allow it to regulate “standalone triggers, barrels, stocks, or magazines.” Brief for Petitioners 24. Nor, the agency admits, does the statute authorize it to regulate “weapon parts kits writ large,” without regard to how complete they come or how difficult they are to assemble. *Id.* But the fact that subsection (A) doesn’t go as far as some other statutes does not tell us how far it does go. Let alone prove that subsection (A) fails, as a categorical matter, to reach any weapon parts kits.

Faced with that problem, the plaintiffs, joined now by the dissent, try another tack. They object that weapon parts kits cannot be “weapons” under subsection (A) because they lack functional frames or receivers. That conclusion rests on two premises: (1) that a “weapon” must have a fully “functional” frame or receiver, and (2) that no “weapon parts kit” includes such a part. But neither premise is sound. For one, the statute nowhere says that a “weapon” must have a fully functional frame or receiver—nor is it obvious how we might derive such a rule from its terms. . . . And a gun that is fully operable, save for a frame missing a single and easily-added screw, would surely fit that description. For another, even if the statute *did* require a “weapon” to have a fully functional frame or receiver, some weapon parts kits may fit that description. Imagine a kit identical to Polymer80’s in all respects, except that it has a complete frame. Even the plaintiffs would have to admit that such a kit would count as a “weapon” under subsection (A).

Failing all else, the dissent suggests that other criminal statutes addressing “firearm[s]” prove that weapon parts kits cannot fall within the statutory definition of that term. So, for example, the dissent observes that Congress has penalized the use of “firearm[s]” during and in relation to a “crime of violence,” § 924(c), required “firearm[s]” to be “unloaded” during transportation, § 926A, and permitted law-enforcement officers to carry “concealed firearm[s],” § 926B. And, the dissent continues, it is “hard to imagine” how any of those provisions might apply to weapon parts kits. As a result, the dissent insists, we should prefer a reading that limits the term “firearm” to completely operable guns.

This argument suffers at least two problems as well. First, what the dissent finds hard to imagine turns out to be anything but, for various criminal laws addressing firearms can apply to weapon parts kits. Just consider some of the laws we have already encountered that require those who import, manufacture, or deal in “firearms” to obtain federal licenses, keep records of their sales, and conduct background checks. Plainly, those criminal laws can be applied sensibly to weapon parts kits. Or, to take one of the dissent’s own examples, a weapon parts kit might be “possesse[d]” “in furtherance of” a “crime of violence” in violation of § 924(c) (1) when an individual accused of attempted robbery purchases the kit for assembly and use in an upcoming heist. See *Stokeling v. United States*, 586 U.S. 73, (2019) (holding that a state robbery statute qualifies as a crime of violence).

Second, the dissent’s complaint is hardly resolved by adopting its view of the statute. The dissent must acknowledge, for example, that standalone “frame[s] or receiver[s]” and “silencer[s]” qualify as “firearms,” for the statute tells us so expressly. § 921(a)(3). Yet, only rarely would someone use a standalone “frame or receiver” during a “crime of violence,” § 924(c), and it may be impossible to “unloa[d]” a “silencer” during “transportation,” § 926A. So whether one adopts our

interpretation or the dissent's, not every "firearm" will be capable of implicating every criminal law discussing firearms. It's a fact that, if it proves anything, proves only that Congress's definition of "firearm" is a capacious one indeed.

III

That leaves the question whether ATF's new regulation addressing unfinished frames and receivers, § 478.12(c), is facially inconsistent with the GCA. The answer here turns on subsection (B) of § 921(a)(3). That provision of the statute permits the agency to regulate the "frame or receiver of any such weapon." As the Fifth Circuit saw it, this language reaches only finished frames or receivers. So those who make, import, or sell partially complete frames or receivers may do so free from the GCA's mandates, no matter how quickly and easily their products can be finished, and ATF is powerless to hold otherwise. Once again, the plaintiffs ask us to endorse that categorical conclusion. And, once again, we find we cannot. The GCA reaches, and permits ATF to regulate, at least some "partially complete" frames or receivers.

A

Working with another example drawn from the record helps illustrate why this is so. The first photograph below depicts the complete frame of a Glock-variant firearm, the second a partially complete frame that Polymer80 sells.



The main differences between the completed frame and Polymer80's product are the plastic tabs circled in red. The record suggests that those tabs "are easily removable by a person with novice skill, using common tools . . . within minutes." Once the tabs are gone and a "few holes are drilled for the pins that hold [other] parts in place—again, a task that anyone can complete in minutes—the Polymer80 product is a fully functional frame."

A number of reasons persuade us that this qualifies as a "frame" for purposes of subsection (B). First, like the word "weapon" in subsection (A), the terms "frame" and "receiver" in subsection (B) are artifact nouns. And, as artifact nouns, they may sometimes describe not-yet-complete objects. Recall the author who refers to her manuscript as a *novel*, or your friend who calls his IKEA kit a *table*. In much the same way, an ordinary speaker might well call Polymer80's product a firearm "frame," even though a little work is required to complete it. Just look again at the second photo. What else would you call it?

Next, consider how the GCA uses the words "frame" and "receiver" elsewhere. Section 923(i) spells out the Act's serialization mandate. It requires those who make or sell "firearms" to identify their products "by means of a serial number engraved or cast on the receiver or frame." Though this directive may seem simple enough, it is complicated by the fact that the statutory definition of "firearm" includes some incomplete "weapon[s]," "muffler[s]," "silencer[s]," and "destructive device[s]." § 921(a)(3). Sometimes, those items lack a finished or prototypical firearm frame or receiver. Yet, all the same, § 923(i) treats them as "firearms" that must have a serial number engraved or cast on their "frame[s]" or "receiver[s]." And if the words "frame" and "receiver" encompass some unfinished and unconventional frames or receivers in § 923(i), it is hard to see how those same words might bear a more restrictive meaning when they appear just a few sections away in § 921(a)(3)(B).

Here, too, examples help. Imagine a handgun that is otherwise ready to shoot, but contains Polymer80's incomplete frame. An ordinary person, using ordinary tools, can finish the frame in minutes. For reasons explored in Part II, *supra*, that gun is a weapon capable of ready conversion into a working firearm under subsection (A). So § 923(i) requires the gun's "frame"—the very item that isn't fully finished—to bear a serial number. Along similar lines, consider silencers. They lack traditional frames, but § 923(i) requires manufacturers and importers to serialize them. To accommodate that instruction, ATF has long deemed the "outer tube . . . that provides housing or a structure for the primary internal component" to be a silencer's "frame or receiver." 27 CFR § 478.12(b); accord, § 478.92(a)(4)(ii) (supplying directions for "destructive devices"). In all these ways and more, § 923(i) uses the phrase "frame or receiver" to reach some unfinished and unconventional frames and receivers, making it only sensible to think the same phrase does the same work a few doors away in § 921(a)(3)(B).

The novelty of the plaintiffs' complete-items-only reading of subsection (B) supplies another strike against it. Without question, ATF's new rule seeks to regulate a greater variety of unfinished frames and receivers than the agency has in the past. But it is equally true that, for decades, the agency has consistently interpreted subsection (B) to reach some unfinished frames and receivers, including ones no more finished than Polymer80's product. *See, e.g., Are "80%" or "Unfinished" Receivers Illegal?*, ATF (Apr. 6, 2020), <https://www.atf.gov/firearms>

/qa/are-“80”-or-“unfinished”-receivers-illegal. And while “courts must exercise independent judgment in determining the meaning of statutory provisions,” the contemporary and consistent views of a coordinate branch of government can provide evidence of the law’s meaning. *Loper Bright Enterprises v. Raimondo*, 603 U.S. 369, 394 (2024).

Last but not least, the plaintiffs represent that they have no “quarrel” with ATF’s “prior practice.” It is a concession that all but gives the game away. Of course, the plaintiffs think the agency’s new rule reaches further than the statute can bear by seeking to regulate some products too far removed from finished frames or receivers. But, for our purposes, what matters is that even the plaintiffs do not really insist that subsection (B) reaches only finished frames and receivers.

Here, again, our reasoning has its limits. In saying that a product like Polymer80’s qualifies as a “frame,” we do not suggest that the GCA reaches, and ATF may regulate, any combination of parts susceptible of conversion into a frame or receiver with sufficient time, tools, and expertise. Like the term “weapon,” the artifact nouns “frame” and “receiver” have their bounds. Some products may be so far from a finished frame or receiver that they cannot fairly be described using those terms. But this case requires us to explore none of that. The plaintiffs do not challenge ATF’s new rule as applied to particular products. They argue only that § 478.12 is facially inconsistent with the GCA. And, here again, we have no trouble rejecting that unqualified view.

B

Resisting our conclusion on this score, the plaintiffs and dissent press three main replies.

First, they point to a linguistic difference between subsections (A) and (B). In subsection (A), Congress chose to regulate “weapons” that “can readily be converted” into operating firearms. Meanwhile, in subsection (B) Congress spoke only of “frames or receivers,” not parts that “can readily be converted” into those things. And, as the plaintiffs see it, that omission counsels against reading subsection (B) to reach any unfinished frames or receivers.

This argument fails to persuade us. . . . For one, it does not account for the fact that ordinary speakers sometimes use unadorned artifact nouns like “weapon,” “frame,” or “receiver” to reach unfinished articles. Adopting the plaintiffs’ argument would also require us to read the phrase “frame or receiver” in § 921(a)(3)(B) to embrace only finished products, even though § 923(i)’s use of the same phrase sweeps more broadly. . . .

. . . And, if anything, the fact that Congress used one artifact noun (“weapon”) in subsection (B) to reach some unfinished articles suggests it used two other artifact nouns (“frame” and “receiver”) in the same way in the same provision.

Second, the plaintiffs and the dissent contend, our interpretation of subsection (B) could invite a serious unintended consequence under . . . the National Firearms Act (NFA). That law bans the possession of “machinegun[s],” a term Congress has defined to include the “frame or receiver” of “any such weapon.” 26 U.S.C. § 5845(b). Interpreting the GCA to reach some unfinished frames or receivers, the plaintiffs reason, might lead the government to attempt a similar reading of the NFA. And if the government takes that step, the plaintiffs suggest, it might

next attempt to classify the receiver of an AR-15 rifle as a “machinegun” because “it is possible to convert” those receivers “to function as machinegun receivers.” That result, the plaintiffs warn, could leave many Americans facing new and unforeseen criminal liability for possession of a “machinegun” simply because they own a “popular” and “commonly available” rifle.

The plaintiffs’ fears are misplaced. The government represents that AR-15 receivers do not “qualify as the receiver of a machinegun.” Nor, the government emphasizes, has ATF ever “suggested otherwise.” Much the same can be said of our reasoning today. As we have stressed, a statute’s text and context are critical to determining whether (and to what extent) Congress used an artifact noun to reach unfinished objects. And, without doubt, the NFA and the GCA are different statutes passed at different times to address different problems using different language. Our analysis of the GCA thus does not begin to suggest that ATF possesses authority to regulate AR-15 receivers as machineguns under the NFA.

Third, the plaintiffs criticize ATF’s rule for permitting the agency to consider “jigs,” “tools,” and “instructions” when deciding whether an incomplete “frame or receiver” is close enough to the finished product to fall under subsection (B). The dissent echoes the complaint, offering a photo from the record depicting various tools and jigs. But if this is a problem at all, it is one for another day. . .

Justice THOMAS, dissenting.

The Government asked this Court just last Term to “rewrite” statutory text so that it could regulate semiautomatic weapons as machineguns. *Garland v. Cargill*, 602 U.S. 406 (2024) (Ch. 5.B.2). We declined to do so. The Government now asks us to rewrite statutory text so that it can regulate weapon-parts kits. This time, the Court obliges. I would not. The statutory terms “frame” and “receiver” do not cover the unfinished frames and receivers contained in weapon-parts kits, and weapon-parts kits themselves do not meet the statutory definition of “firearm.” That should end the case. The majority instead blesses the Government’s overreach based on a series of errors regarding both the standard of review and the interpretation of the statute. I respectfully dissent.

I

A

The GCA . . . states that a “firearm” is:

“(A) any weapon (including a starter gun) which will or is designed to or may readily be converted to expel a projectile by the action of an explosive; (B) the frame or receiver of any such weapon; (C) any firearm muffler or firearm silencer; or (D) any destructive device. Such term does not include an antique firearm.” § 921(a)(3). . .

Congress left the terms “frame” and “receiver” undefined. Shortly after the GCA’s enactment, the Bureau of Alcohol and Tobacco Tax Division promulgated a regulation defining “frame or receiver” as “[t]hat part of a firearm which provides housing for the hammer, bolt or breechblock, and firing mechanism, and which is usually threaded at its forward portion to receive the barrel.” 33 Fed. Reg. 18558 (1968).

That regulatory definition made sense. At the time of the GCA’s enactment, the term “frame” was generally understood to mean “the basic structure and

principal component of a firearm.” C. Mueller & J. Olson, *Small Arms Lexicon and Concise Encyclopedia* 87 (1968) (Olson’s). And, the term “receiver” was generally understood to mean the “part of a gun that houses the breech action and firing mechanism.” *Id.*, at 168. Thus, ATF’s initial definition of “frame or receiver” accorded with the terms’ ordinary meanings.

ATF’s definition also aligned with the GCA, because for “any weapon” to “expel a projectile by the action of an explosive,” the weapon must have both a mechanism that will initiate that explosion and a way to seal the firing chamber. In other words, the weapon must have a “frame” or “receiver.” Thus, by defining frame or receiver as the parts of a gun that provide “housing for the hammer, bolt or breechblock, and firing mechanism,” 33 Fed. Reg. 18558, ATF’s initial definition fit neatly into the statutory scheme. This understanding of “frame” and “receiver” governed for over 50 years.

But, ATF recently changed course, in an effort to regulate so-called ghost guns — *i.e.*, privately made firearms built from kits or collections of unfinished parts. To tackle what it perceived to be the “homeland security threat” posed by the “wide availability of ghost guns,” the agency promulgated a rule redefining “firearm,” “frame,” and “receiver.” Without any change to the statute, this Rule expanded the regulatory definition of “firearm” to include “a weapon parts kit that is designed to or may readily be completed, assembled, restored, or otherwise converted to expel a projectile by the action of an explosive.” It also broadened the definition of “frame or receiver” to include “a partially complete, disassembled, or nonfunctional frame or receiver, including a frame or receiver parts kit, that is designed to or may readily be completed, assembled, restored, or otherwise converted to function as a frame or receiver.” § 478.12(c).

One of the Rule’s critical innovations is the manner in which it allows ATF to determine whether an object is “clearly identifiable” — and thus regulable — as an unfinished frame or receiver:

“When issuing a classification, the Director may consider any associated templates, jigs, molds, equipment, tools, instructions, guides, or marketing materials that are sold, distributed, or possessed with the item or kit, or otherwise made available by the seller or distributor of the item or kit to the purchaser or recipient of the item or kit.” *Ibid.*

“Prior to this rule, ATF did not examine templates, jigs, or other items and materials in determining whether partially complete frames or receivers were ‘firearms’ under the GCA.” Tr. of Oral Arg. 39-40 (acknowledging the change). Instead, ATF looked to the object itself to determine whether it was sufficiently complete to constitute a regulable frame or receiver. The new definition, however, expanded the meaning of “frame” and “receiver” to incorporate items entirely separate from the object itself. According to ATF, whether an unusable, unfinished piece of metal constitutes a regulable “frame or receiver” can turn on a manufacturer’s “marketing materials.” 87 Fed. Reg. 24668. . .

III

. . . Ordinary principles of statutory interpretation make plain that the Rule sweeps too far: The terms “frame” and “receiver” in § 921(a)(3)(B) do not cover “partially complete, disassembled, or nonfunctional frame[s] or receiver[s].”

27 CFR § 478.12(c). The majority reaches a different conclusion based on several interpretive errors. Most notably, the majority proceeds under the faulty premise that our standard rules of statutory interpretation do not apply to “a word for a thing created by humans.”

A . . .

The parties agree that, in 1968, the terms “frame” and “receiver” were understood to refer to “the basic structure and principal component of a firearm,” and “the ‘part of a gun that houses the breech action and firing mechanism.’” . . . But, ATF’s Rule conflicts with this accepted meaning in at least two ways. First, it defines “frame or receiver” to include objects that are *not* frames or receivers, but that may be “converted” into them in the future. 27 CFR § 478.12(c). Second, it permits ATF to deem an object a frame or receiver based on “marketing materials” and other materials merely associated with it. *Id.*

1

The ordinary meaning of “frame or receiver” does not include objects that may be “converted” into a frame or receiver. *Id.* As the Fifth Circuit put it, “a part cannot be both *not yet* a receiver and a receiver at the same time.” 86 F. 4th, at 190 (internal quotation marks omitted). . . .

Tellingly, ATF’s new interpretation seems to invite “staggering” consequences. The NFA defines “machinegun” as “any weapon which shoots . . . automatically more than one shot, without manual reloading, by a single function of the trigger,” and “include[s]” in that definition “the frame or receiver of any such weapon.” 26 U.S.C. § 5845(b). ATF has defined “frame or receiver” in the NFA to “have the same meaning as in § 478.12”—the provision that defines those terms under the GCA. And, although an unmodified AR-15 is a semiautomatic weapon, “every single AR-15 can be converted to a machinegun using cheap, flimsy pieces of metal—including coat hangers.” 86 F. 4th, at 208.

If an object already is what it may be converted into, then semiautomatic AR-15s would seem to be partially complete, automatic machineguns. This reasoning exposes the manufacturers, sellers, and owners of AR-15s to criminal liability under the NFA. But, Congress does not “hide elephants in mouseholes.” *Whitman v. American Trucking Assns., Inc.*, 531 U.S. 457, 468, (2001). An interpretive approach that would allow ATF to regulate the most popular *semiautomatic* rifle in America under a statute addressing *automatic* machineguns should give us pause. Cf. *Dubin v. United States*, 599 U.S. 110 (2023) (“Time and again, this Court has prudently avoided reading incongruous breadth into opaque language in criminal statutes”).

2

The Rule’s definitions of “frame” and “receiver” also contravene ordinary meaning by allowing ATF to classify objects as frames or receivers based on criteria other than the object’s physical characteristics. Under the Rule, any “tools, instructions, guides, or marketing materials” that are “made available by the seller” can convert an unregulated piece of metal into a regulated “frame or receiver.” 27 CFR § 478.12(c). Put another way, the mere presence of things distinct from the object at issue can somehow transform the character of the object itself.



Figure 1, *supra*, illustrates the Rule in action. Both images in Figure 1 depict unfinished receivers. Both lack machining and indexing in the key areas. The only difference is the presence of a jig and drill bits. Yet, according to the Rule, these extraneous items make an unfinished receiver a regulable firearm.

The presence of items such as jigs or “marketing materials”—that are not, and never could be, part of a frame or receiver—has no bearing on whether a piece of metal or plastic constitutes “the basic structure and principal component of a firearm.” Olson’s 87. Because those extrinsic items have no impact on the ordinary meanings of “frame” or “receiver,” the regulatory definition exceeds statutory text by using such items to expand the scope of those statutory terms. Cf. *Encino Motorcars*, 584 U.S., at 85.

B

The majority leaves the issue of extrinsic objects for another day, deeming the issue irrelevant under its questionable facial-challenge standard. The majority thus defends only the Rule’s coverage of items that *may become* frames or receivers. To do so, it substitutes novel linguistic labels for traditional statutory interpretation; mistakes outlier definitions for exemplars; and improperly imports attributes of one provision into another.

1

The majority’s statutory analysis deviates dramatically from the “careful examination of the ordinary meaning and structure of the law itself” that is typically at

the core of this Court's interpretive approach. Drawing heavily from an *amicus* brief and an academic paper, the majority asserts that "the terms 'frame' and 'receiver' in subsection (B) are artifact nouns,"—that is, they are words for "thing[s] created by humans." The majority argues that this type of noun is flexible enough to encompass unfinished objects. . .

It is beside the point whether, in casual conversation, some people might use "a word for a thing created by humans" to discuss unfinished versions of that "thing." "In statutory drafting, where precision is both important and expected, the sort of colloquial usage on which the [majority] relies is not customary." *Allison Engine Co. v. United States ex rel. Sanders*, 553 U.S. 662, 670 (2008). We have expressly "presumed" that Congress does *not* "draft its laws" with the informality of "casual conversation." *Arcadia v. Ohio Power Co.*, 498 U.S. 73, 79, (1990). . .

IV

The Court also granted certiorari to decide whether a "firearm" can "include a weapon parts kit." Statutory text, context, and structure confirm that this aspect of the Rule also exceeds the scope of the statute. The majority's novel artifact-noun methodology cannot alter this conclusion.

A

Section 921(a)(3)(A)'s definition of "firearm" includes "any weapon" that "will or is designed to or may readily be converted to expel a projectile by the action of an explosive." Thus, while an object that "may readily be converted" into a gun qualifies as a "firearm" if that object is *already* a "weapon," an object that is not already a weapon does not.

The ordinary meaning of "weapon" does not include weapon-parts kits. At the time of the GCA's enactment, the word "weapon" was understood to mean "an instrument of offensive or defensive combat . . . something to fight with . . . something (as a club, sword, gun, or grenade) used in destroying, defeating, or physically injuring an enemy." Webster's Third New International Dictionary 2589 (1966) (Webster's); accord, *ante*, at 10. A weapon-parts kit is not a weapon until it is converted into an operable gun. It is no more "something to fight with," Webster's 2589, than the sort of "unformed block of metal" that the Rule expressly exempts from regulation. The operable gun pictured in the majority opinion is "an instrument" one may use in "combat." The unfinished, inoperable kit pieces are not. Because these pieces do not constitute a "weapon," they do not fit within subsection (A)'s statutory definition.

Statutory text and context reinforce this conclusion, as they indicate that the "weapon" contemplated in subsection (A) must have a "frame or receiver"—precisely the parts of a weapon that weapon-parts kits omit. Section 923, for example, requires manufacturers to identify their firearms "by means of a serial number engraved or cast on the receiver or frame *of the weapon*," § 923(i) (emphasis added), clearly implying that any such "weapon" includes a "receiver or frame." Section 921 supports this reading by delimiting the definition of a "firearm" to "any weapon" convertible into a functional gun, and "the frame or receiver *of any such weapon*," §§ 921(a)(3)(A)-(B) (emphasis added). This provision again assumes that the "weapon" in subsection (A) has a "frame or receiver."

That “starter guns and disassembled rifles” are prototypical illustrations of things covered under § 921(a)(3)(A) that nevertheless “are not yet fit for effective use in combat,” *ante*, at 22, underscores this conclusion. Both starter guns and disassembled rifles usually have functional frames or receivers. In contrast, the frames and receivers included in weapon-parts kits are unfinished, inoperable, and so cannot constitute frames or receivers under subsection (B). Since “any weapon” must have an operable “frame or receiver,” a weapon-parts kit cannot be a “weapon.” Accordingly, it cannot become a regulated “firearm” under § 921(a)(3)(A). . .

The statute’s broader context also suggests that weapon-parts kits are not regulable “firearms.” Section 921(a)(3) defines “firearm” for all of Chapter 44. It follows that, “if [Chapter 44] is to be interpreted as a symmetrical and coherent regulatory scheme,” *Gustafson v. Alloyd Co.*, 513 U.S. 561, 569, (1995), the term should to the extent possible receive a consistent meaning. While it is not difficult to envision how weapons that can be immediately *assembled* might be helpful “during and in relation to any crime of violence” under § 924(c) — also part of Chapter 44—it is hard to imagine how an unfinished weapon-parts kit requiring *conversion* could be helpful. At minimum, this understanding would seem to imply a crime “during” which the criminal could take some untold amount of time to convert his kit into a functional gun before using it. That does not fit any crime of violence with which I am familiar. . .

B

Holding otherwise, the majority reasons that, as a “thing created by humans,” the term “weapon” may encompass not only weapons that are “combat ready,” but also those that are “disassembled,” and that the term thus captures weapon-parts kits “[i]n the same way and for the same reason.” The majority again conjures up the “artifact noun” to support an interpretation that is incompatible with our traditional methods of statutory construction.

Unlike a disassembled firearm, a weapon-parts kit requires more than merely assembling the parts to become a functional gun. Special tools and an indeterminate amount of time are required to convert an unfinished weapon-parts kit into a functional weapon. Thus, even assuming that the ordinary meaning of “weapon” does not resolve whether the term includes weapon-parts kits, at minimum the term “weapon” cannot encompass weapon-parts kits in “the same way” it covers disassembled firearms.

The majority also insists that the term “weapon” should cover “some unfinished instruments of combat” like weapon-parts kits because § 921(a)(3)(A) includes starter guns, which, like weapon-parts kits, can be converted into functional weapons. . .

[B]oth a disassembled rifle and a starter gun are “weapons” for the reason a weapon-parts kit is not: Disassembled rifles and starter guns typically have functional frames or receivers.

V

The text, context, and structure of § 921(a)(3) leave little doubt that weapon-parts kits are not “firearms,” and that the unfinished contents of these kits are neither “frame[s]” nor “receiver[s].” But, even if it were reasonable to treat

artifact nouns differently, the Government would — at most — demonstrate statutory ambiguity. And, when a statute with criminal applications is ambiguous, the rule of lenity applies.

This case is similar to *United States v. Thompson/Center Arms Co.*, 504 U.S. 505 (1992). . . That case presented the question whether a gun manufacturer “makes” short-barrelled rifles — and is thus subject to the NFA’s “making tax,” see 26 U.S.C. § 5821 — by selling a pistol and conversion kit from which one could make a short-barreled rifle. After considering several arguments—including analogies to products that “requir[e] some home assembly,” and comparisons to terms referring to “any combination of parts”—the plurality concluded that it was “left with an ambiguous statute.” *Id.* at 509-517. And, because the provision carried the threat of criminal sanction, the plurality held that it was “proper . . . to apply the rule of lenity and resolve the ambiguity in Thompson/Center’s favor. . .” *Id.* at 518.

Even the Government appears to have found . . . competing interpretations persuasive just a few years ago. “Now it says the opposite. The law hasn’t changed, only an agency’s interpretation of it.” *Guedes v. ATF*, 140 S.Ct. 789, 790, (2020) (statement of Gorsuch, J., respecting denial of certiorari). I would apply the rule of lenity here.

Congress could have authorized ATF to regulate any part of a firearm or any object readily convertible into one. But, it did not. I would adhere to the words Congress enacted. Employing its novel “artifact noun” methodology, the majority charts a different course that invites unforeseeable consequences and offers no limiting principle. I respectfully dissent.

NOTES & QUESTIONS

1. This case was a factually simple application of ATF’s “Frame or Receiver” Rule. The rule itself is very complicated, and there are many potential edge cases, because it applies to much more than easy builds such as the Polymer80. For an overview, see Reeves & Dola, LLP, Parts 1, 2, and 3, ATF’s New “Frame or Receiver” Rule: What You Should Know:

- Part 1 (Aug. 11, 2022), [<https://perma.cc/E8A6-79SE>].
- Part 2 (Aug. 16, 2022), [<https://perma.cc/B6TG-BKNZ>].
- Part 3 (Aug. 22, 2022), [<https://perma.cc/5L9R-GEAG>].

2. This case shows the difficulty of identifying regulated firearms at the margins. What is the best approach for dealing with such cases? Justice Thomas urges the rule of lenity because of the criminal liability that results from violations of the GCA. Do you agree? Imagine situations where something might or might not be considered a regulated firearm. Now consider the question from the perspective of a legislator, a judge, a prosecutor, a police officer, and a private citizen.

3. Look again at the illustrations of the unfinished receivers in the majority opinion and in Justice Thomas’s dissent. Are the items depicted easily identifiable

as firearms? Imagine you come upon each item as you are clearing out the possessions of the previous occupant of your new home. Would you recognize the items as a firearm?

4. The *Thompson/Center* decision referenced by Justice Thomas is discussed in Chapter 5.B.1, along with other material dealing with the rule of lenity. One aspect of decisions about lenity is whether a criminal law gives individuals sufficient notice that they are committing a violation. Add another fact to the new home situation described in note 3. Imagine now that you are a person prohibited from possessing firearms. As you will see below, occasional use of marijuana makes you a prohibited person under the GCA.

3. *Prohibited Persons*

This Section describes the nine categories of *prohibited persons* whom GCA § 922(g) forbids from possessing firearms or ammunition. Whereas § 922(g) prohibits possession by prohibited persons, § 922(d) forbids transfers to prohibited persons. This Section also describes the partial prohibitions for individuals who are not on the prohibited persons list: the § 922(n) restrictions on persons under indictment, and the § 922(x) restrictions on juvenile handgun possession. Second Amendment cases and other issues about prohibited persons are mainly addressed in Chapter 7 and online Chapter 17.

a. “Convicted in any court of[] a crime punishable by imprisonment for a term exceeding one year” (g)(1)

The test is the maximum sentence that could have been imposed, not the sentence that actually was imposed. The category applies to more than felonies. In some states, there are misdemeanors punishable by several years in prison. The GCA definitions section says that the above language does not include misdemeanors punishable by two years or less. Nor does it apply even to felonies involving antitrust, unfair trade practice, restraint of trade, and similar business offenses. 18 U.S.C. § 921(a)(20). Convictions in courts of foreign nations do not count, given the weak protections of defendants’ rights in many foreign countries. *Small v. United States*, 544 U.S. 385 (2004).

Chapter 7.A discusses as-applied Second Amendment challenges by persons convicted decades before of a misdemeanor with a potential long sentence. For examination of the minefield of laws that felonize common, seemingly innocent conduct, see Harvey A. Silvergate, *Three Felonies a Day: How the Feds Target the Innocent* (2009); Michael G. Chase, *How to Become a Federal Criminal: An Illustrated Handbook for the Aspiring Offender* (2019).

b. “Fugitive from justice” (g)(2)

A fugitive is “any person who has fled from any State to avoid prosecution for a crime or to avoid giving testimony in any criminal proceeding.” 18 U.S.C. § 921(a)(15).

c. “Unlawful user of or addicted to any controlled substance” (g)(3)

A controlled substance is defined in the Controlled Substances Act, 21 U.S.C. § 802. The Act statutorily defines certain substances to be entirely forbidden or severely restricted and gives the Drug Enforcement Administration the authority to add more. Marijuana is statutorily forbidden. Pending in the Supreme Court as this book goes to the printer is *United States v. Hemani*, No. 24-1234, which was argued in March 2026; the case involves a marijuana user who owned firearms.

The first federal statute regulating marijuana was the Marihuana Tax Act of 1937, 50 Stat. 551 (1937). It copied the National Firearms Act of 1934 (Ch. 3.A.1) by using the federal tax power to impose a near-prohibition on certain items. Before the 1930s, marijuana had been legal, so there was nothing illegal about a marijuana user owning a firearm. *See generally* David B. Kopel & Trevor Burrus, *Sex, Drugs, Alcohol, Gambling, and Guns: The Synergistic Constitutional Effects*, 6 Albany Gov’t L. Rev. 306 (2013).

Some federal courts have ruled in favor of individuals who raise as-applied challenges to bans based on controlled substance use. *See United States v. Cooper*, 127 F.4th 1092 (8th Cir. 2025) (marijuana user, remanding and rejecting district court’s holding that as-applied challenges cannot be filed under (g)(3)); *United States v. Daniels*, 77 F.4th 337 (5th Cir. 2023) (marijuana user who did not carry or handle firearms when under the influence); *United States v. Connelly*, 117 F.4th 269 (5th Cir. 2024) (occasional user of marijuana and crack). *Cf. Wesson v. Town of Salisbury*, 13 F. Supp. 3d 171 (D. Mass. 2014) (granting gun license to persons whose out-of-state marijuana convictions would have been expunged if the convictions had occurred in Massachusetts). Applying the *Bruen* test, the above Courts of Appeals have examined historic analogies, and found the closest ones to be historic laws that never prohibited arms ownership by drunkards, but did sometimes prohibit carrying a gun while intoxicated, or selling a gun to an intoxicated person. While federal lawyers have attempted to analogize (g)(3) to laws against gun possession by the insane, the courts have rejected this approach, since mental illness is a continuing condition, whereas intoxication is only temporary.

The courts have *not* ruled in favor of any defendant who is an “addict.” One article argues that the “addict” prong of (g)(3) is constitutional only for addicts who are dangerous. F. Lee Francis, *The Addiction Restriction: Addiction and the Right to Bear Arms*, 127 W. Va. L. Rev. 135 (2024).

The scope of the controlled substances gun prohibition is described in Kimberly J. Winbush, *Proscription of 18 U.S.C.A. § 922(g)(3) that Persons Who Are Unlawful Users of or Addicted to Any Controlled Substance Cannot Possess Any Firearm or Ammunition in or Affecting Commerce*, 44 A.L.R. Fed. 3d Art. 3 (2019); *Proof of Violation of Proscriptions Under 18 U.S.C.A. §§ 922(d)(3) and 922(g)(3) of Sales of Firearms to or Possession of Firearms by Persons Who Are Unlawful Users of or Addicted to Any Controlled Substance*, 36 Am. Jur. Proof of Facts 3d 247. Marijuana issues are also discussed in online Chapter 17.E.2.

Further reading: Robert Greenberg, *Lawyers, Guns & Weed: Second Amendment Rights for Cannabis Users*, 21 Rutgers J.L. & Pub. Pol’y 249 (2024) (contextualizing the issue in the now-widespread state legality of medical marijuana); Nicholas Goldrosen, *Subtracting 420 from 922: Marijuana Legalization and the Gun Control Act after Bruen*, 21 Ohio St. J. Crim. L. 127 (2024) (the relegalization of marijuana enacted

by various states did not lead to an increase in gun crime or gun deaths); Dru Stevenson, *The Complex Interplay Between the Controlled Substances Act and the Gun Control Act*, 18 Ohio St. J. Crim. L. 211 (2020) (suggesting that (g)(3) and the felon ban be enforced via firearms forfeitures and background check denials, but not with prison sentences).

d. “Adjudicated as a mental defective or has been committed to any mental institution” (g)(4)

ATF regulation defines “Committed to a mental institution” as:

A formal commitment of a person to a mental institution by a court, board, commission, or other lawful authority. The term includes a commitment to a mental institution involuntarily. The term includes commitment for mental defectiveness or mental illness. It also includes commitments for other reasons, such as for drug use. The term does not include a person in a mental institution for observation or a voluntary admission to a mental institution.

27 C.F.R. § 478.11. This includes any involuntary commitment for any period of time, whether or not any due process was provided. It does not include voluntary commitments, such as checking oneself into a drug rehabilitation facility.

By regulation, “adjudicated as a mental defective” means: “A determination by a court, board, commission, or other lawful authority that a person, as a result of marked subnormal intelligence, or mental illness, incompetency, condition, or disease: (1) Is a danger to himself or to others; or (2) Lacks the mental capacity to contract or manage his own affairs.” The term includes a finding of insanity by a court in a criminal case, a finding that a person is incompetent to stand trial, or a finding of not guilty by reason of lack of mental responsibility. *Id.*

The “determination” that a person is a “mental defective” can also include something as simple as a veteran’s request that the Department of Veterans Affairs appoint someone to help the veteran manage her interactions with the VA for veteran’s benefits. The request is, supposedly, a confession that the veteran is a “mental defective,” which means that the VA will give the ATF the veteran’s name to put on ATF’s prohibited persons list. The veteran’s continuing possession of her own firearms and ammunition becomes a federal felony. *See* online Ch. 17.E.3.c. Likewise, any sort of guardianship risks turning an individual into a prohibited person. *See* Darlene Payne Smith, *Estates, Trusts, Mental Commitments, and Guardianships: Dealing with Firearms*, 2018 TXCLE-FL ch. 6.2 (State Bar of Texas, 7th Annual Texas Firearms Law Seminar, What Every Texas Lawyer Needs to Know) (available on Westlaw). ATF has proposed a new regulation for (g)(4) to remove the language about financial affairs, and to instead focus on a person’s dangerousness and on due process. 91 Fed. Reg. 25166 (May 8, 2026).

Right to arms issues relating to mental illness, past or present, are discussed in Chapters 7.D and online Ch. 17.E.1. Further reading: *Interest of N.S.*, 13 N.W.3d 811 (Iowa 2024) (4-3 holding that state statute requiring persons who have been prohibited for mental health reasons must prove they are no longer a threat to public safety passes the strict scrutiny required by the state constitution); *Sagely v. Hutchinson*, 2024 Ark. 37, 685 S.W.3d 238 (2024) (4-3 upholding permanent Arkansas ban

with no possibility of rights restoration; majority relying on *Heller* language about “presumptively” valid bans on the mentally ill); Michael Frost, *Arkansas’s Unconstitutional Gun Restrictions For The Formerly Mentally Ill*, 47 U. Ark. Little Rock L. Rev. 461 (2025) (criticizing *Sagely*); Colin L. Hitt, *Of Felons and the Mentally Ill: Range, § 922(g)(4), and the Dangerousness Solution*, 129 Penn St. L. Rev. 749 (2025) (to comply with *Bruen*, (g)(4) should be limited to dangerous persons); Susan McMahon, *Gun Laws and Mental Illness: Ridding the Statutes of Stigma*, 5 U. Pa. J. L. & Pub. Aff. 133 (2020) (mental health bans lack an empirical basis and are stigmatizing).

e. Illegal or Unlawful Aliens; Some Nonimmigrant Visa Holders (g)(5)

(5) who, being an alien —

(A) is illegally or unlawfully in the United States; or

(B) except as provided in subsection (y) (2), has been admitted to the United States under a nonimmigrant visa (as that term is defined in section 101(a)(26) of the Immigration and Nationality Act (8 U.S.C. § 1101(a)(26)));

A holder of an *immigrant visa* is allowed to reside and work in the United States long term. Such persons have the full right to arms. A nonimmigrant visa is any other sort of visa, such as a tourist or student visa. The statutory exception in 18 U.S.C. § 922(y)(2) exempts from the ban certain nonimmigrant visa holders:

(A) admitted to the United States for lawful hunting or sporting purposes or is in possession of a hunting license or permit lawfully issued in the United States;

(B) an official representative of a foreign government . . . ;

(C) an official of a foreign government or a distinguished foreign visitor who has been so designated by the Department of State; or

(D) a foreign law enforcement officer of a friendly foreign government entering the United States on official law enforcement business.

Arms rights issues involving aliens are covered in Chapter 7.C.

f. “Discharged from the Armed Forces under dishonorable conditions” (g)(6)

A man convicted of violating (g)(6) argued that the statute infringed the Second Amendment. He had been dishonorably discharged from the U.S. Marines after having served 18 months in a military prison for selling stolen military firearms and night vision goggles. The Second Circuit pointed out that his conviction in military court was the equivalent of a felony criminal conviction in civilian court and so was constitutional. *United States v. Jimenez*, 895 F.3d 228, 231 (2d Cir. 2018).

In 1963, President Kennedy was assassinated by Lee Harvey Oswald. Oswald had previously received an “undesirable” (less severe than “dishonorable”) discharge from the U.S. Marines. According to Senator Russell Long (D-La.), “The reason I particularly wanted these categories covered is that this would make it apply to the gun Oswald had with which he killed John F. Kennedy. It would mean that Oswald, having been a man who was discharged from the service under conditions other than honorable—and that is one of the conditions set forth here—and

a man who had renounced his citizenship, unless he had been restored by the President of the United States to the right to carry a rifle, would not have had the right to carry that gun or practice with it or do anything else with it.” *United States v. Stevens*, 440 F.2d 144, 160 (6th Cir. 1971) (app’x to majority opinion).

Dishonorable discharges are discussed in online Chapter 17.E.2.

g. “Having been a citizen of the United States, has renounced his citizenship” (g)(7)

This section, too, was partly related to Oswald, as Senator Long’s speech in the previous subsection stated. Oswald had left the United States to live in the Soviet Union, declared himself a Communist, and had twice attempted to renounce his citizenship.⁴ Later, he asked to return to the United States and was allowed to do so. Upon return, he remained a Communist and was an activist for Communist causes, such as support for the Fidel Castro dictatorship in Cuba. Section (g)(7) also applied to young men who fled to Canada to avoid the Vietnam War draft and renounced their American citizenship.

h. Intimate Party Restraining Order (g)(8)

(8) is subject to a court order that restrains such person from harassing, stalking, or threatening an intimate partner of such person or child of such intimate partner or person, or engaging in other conduct that would place an intimate partner in reasonable fear of bodily injury to the partner or child, except that this paragraph shall only apply to a court order that—

(A) was issued after a hearing of which such person received actual notice, and at which such person had the opportunity to participate; and

(B) restrains such person from harassing, stalking, or threatening an intimate partner of such person or child of such intimate partner or person, or engaging in other conduct that would place an intimate partner in reasonable fear of bodily injury to the partner or child; and

(C) (i) includes a finding that such person represents a credible threat to the physical safety of such intimate partner or child; or

(ii) by its terms explicitly prohibits the use, attempted use, or threatened use of physical force against such intimate partner or child that would reasonably be expected to cause bodily injury. . .

An “intimate partner” is a spouse, former spouse, parent of the person’s child, a cohabitor, or former cohabitor. 18 U.S.C. § 921(a)(32). Section (g)(8) is discussed in depth in *United States v. Rahimi*, 602 U.S. 680 (2024) (Ch. 6.E).

4. Oswald presented himself at the U.S. embassy to renounce his citizenship, but a compassionate official told him that the embassy could not do business on Saturday; the real reason was that she wanted a young, not very intelligent, and agitated person not to make such a momentous decision so quickly. Oswald later wrote a letter to the embassy renouncing citizenship, but renunciation requires an in-person appearance. See Report of the President’s Commission on the Assassination of President Kennedy (“Warren Commission”), App’x 15, at 747-51 (1964).

i. “Convicted in any court of a misdemeanor crime of domestic violence” (g)(9)

A “misdemeanor crime of domestic violence” has an element of the use or attempted use of physical force, or threatened use of a deadly weapon “by a current or former spouse, parent, or guardian of the victim, by a person with whom the victim shares a child in common, by a person who is cohabiting with or has cohabited with the victim as a spouse, parent, or guardian, or by a person similarly situated to a spouse, parent, or guardian of the victim.” 18 U.S.C. § 921(a)(32).

“Force” has been interpreted to mean any offensive or unwanted touching. *United States v. Castleman*, 572 U.S. 157 (2014). Technically, punching someone in the face is the same violation as poking a finger at a person’s shoulder during an argument.

The Supreme Court has held that a disqualifying misdemeanor conviction may be based on reckless rather than intentional conduct. Justices Thomas and Sotomayor dissented because they argued that “use” implies intentional action. Justice Sotomayor did not join Thomas’s argument that an ambiguous statute should be construed narrowly under the doctrine of constitutional avoidance rather than “sweep into patently unconstitutional territory.” *Voisine v. United States*, 579 U.S. 686 (2016).

The misdemeanor conviction need not include a domestic relationship as an element. For example, a (g)(9) prosecution could be predicated on a prior misdemeanor conviction of generic assault. In a subsequent prosecution under (g)(9), the government would have to prove that the misdemeanor conviction involved a domestic relationship. *United States v. Hayes*, 555 U.S. 415 (2009). For a survey of (g)(9) cases, see James Lockhart, *Validity, Construction, and Application of 18 U.S.C.A. § 922(g)(9), Prohibiting Possession of Firearm by Persons Convicted of Misdemeanor Crime of Domestic Violence*, 50 A.L.R. Fed. 2d 31 (2010).

j. “Under indictment for a crime punishable by imprisonment for a term exceeding one year” (n)

An indictment is an accusation, and the accused retains the presumption of innocence. An indicted person may keep the firearms and ammunition she possesses but may not acquire more. The only difference between 922(g) (persons who may not possess) and 922(d) (persons to whom a person may not transfer a firearm or ammunition) is that 922(d)(1) includes persons under indictment in its transfer ban. The 922(n) ban was ruled unconstitutional by a U.S. District Court, but then upheld in *United States v. Quiroz*, 125 F.4th 713 (5th Cir. 2025). See also *United States v. Rowson*, 652 F. Supp. 3d 436 (S.D.N.Y. 2023) (upholding statute).

k. Limits on Handguns for Juveniles (x)

In 1993, Congress banned the possession of handguns by juveniles with specific exceptions. 18 U.S.C. § 922(x)(3):

(3) This subsection does not apply to—

(A) a temporary transfer of a handgun or ammunition to a juvenile or to the possession or use of a handgun or ammunition by a juvenile if the handgun and ammunition are possessed and used by the juvenile—

(i) in the course of employment, in the course of ranching or farming related to activities at the residence of the juvenile (or on property

used for ranching or farming at which the juvenile, with the permission of the property owner or lessee, is performing activities related to the operation of the farm or ranch), target practice, hunting, or a course of instruction. . .

(ii) with the prior written consent of the juvenile's parent or guardian who is not prohibited by Federal, State, or local law from possessing a firearm, except—

(I) during transportation by the juvenile of an unloaded handgun in a locked container directly from the place of transfer to a place at which an activity described in clause (i) is to take place and transportation by the juvenile of that handgun, unloaded and in a locked container, directly from the place at which such an activity took place to the transferor; or

(II) with respect to ranching or farming activities as described in clause (i), a juvenile may possess and use a handgun or ammunition with the prior written approval of the juvenile's parent or legal guardian and at the direction of an adult who is not prohibited by Federal, State or local law from possessing a firearm;

(iii) the juvenile has the prior written consent in the juvenile's possession at all times when a handgun is in the possession of the juvenile; and

(iv) in accordance with State and local law;

(B) a juvenile who is a member of the Armed Forces of the United States or the National Guard who possesses or is armed with a handgun in the line of duty;

(C) a transfer by inheritance of title (but not possession) of a handgun or ammunition to a juvenile; or

(D) the possession of a handgun or ammunition by a juvenile taken in defense of the juvenile or other persons against an intruder into the residence of the juvenile or a residence in which the juvenile is an invited guest.

The statute was upheld against a Second Amendment challenge in *United States v. Rene E.*, 583 F.3d 8 (1st Cir. 2009) (relying on the “important exceptions” for “self- and other-defense in the home, national guard duty, and hunting, among other things.”). The Second Amendment rights of young people are examined further in Chapter 7.F.

4. Regulation of Retail Sales of Ordinary Firearms

The GCA regulates the purchase and sale of firearms by imposing restrictions and obligations on licensed dealers of ordinary firearms, and on their customers. These detailed requirements are complex enough to generate many interesting and difficult questions.

Persons in the business of selling firearms must obtain a Federal Firearms License (FFL). These sellers are designated “dealers” (or “licensees”) under the Act. 18 U.S.C.A. § 921(a)(11); 18 U.S.C. § 923 (licensing procedures and rules for licensees). Colloquially, the term “FFL” is also used to refer to the license itself. Dealers of NFA “firearms” must obtain a special Class III dealer's license. 26 U.S.C. § 5802.

The GCA originally defined “dealer” as someone “engaged in the business of selling firearms.” The phrase was sufficiently vague that it supported prosecutions of people who made small numbers of sales without a license from their individual collections.⁵ These types of prosecutions were one impetus for enactment of the Firearms Owners’ Protection Act (FOPA).⁶ FOPA explicitly defined “engaged in business” to mean that the seller is acting “with the principal objective of livelihood and profit through the repetitive purchase and resale of firearms.” 18 U.S.C. § 921(a)(21)(C). People who make occasional sales and purchases to enhance their personal collection or for a hobby are not dealing in firearms and therefore are not required to obtain an FFL. A 2022 amendment provided separate definitions for various types of FFLs, all focused on whether “a person who devotes time, attention, and labor to engaging in such activity as a regular course of trade or business with the principal objective of livelihood and profit.” 18 U.S.C. § 921(a)(21)(D).

a. Regulation of Buyers

Buyers of firearms from licensed dealers are required to prove their identity to the FFL, usually by providing a government photo ID, and then complete ATF Form 4473 attesting that they do not fall into any of the prohibited categories. A sample Form 4473 is available from ATF Forms at <http://www.atf.gov/forms/firearms>. The penalty for providing a false statement on this form is up to ten years’ imprisonment. 18 U.S.C.A. § 924(a)(2). The buyer’s representations on Form 4473 are verified through the National Instant Check System. 18 U.S.C. § 922(t).

(i) Registration Records and Privacy

Ever since the National Instant Check System became operational in 1998, FBI employees have handled the checks. However, some states exercise the option of having the instant check conducted by a state agency rather than by the FBI. One of the controversies surrounding both paper and electronic screening systems is what happens to the data collected. Gun rights activists worry that the information might be used to develop a system of firearms registration, which they see as a dangerous precursor to firearms confiscation.⁷

When licensed gun dealers go out of business, they are required to submit the records of their transfers to the ATF within 30 days.⁸ “The NTC receives an

5. See, e.g., *United States v. Huffman*, 518 F.2d 80 (4th Cir. 1975) (evidence supported conviction of gun owner who made “more than a dozen transactions in the course of a few months”; government must show profit motive and a greater degree of activity than occasional sales by a hobbyist); *Mandina v. United States*, 472 F.2d 1110 (8th Cir. 1973); *United States v. Ruisi*, 460 F.2d 153 (2d Cir. 1972) (sale of 11 guns at a gun show; “the question of why the government chose to prosecute these cases inevitably arises”).

6. See generally David T. Hardy, *The Firearms Owners’ Protection Act: A Historical and Legal Perspective*, 17 *Cumb. L. Rev.* 585 (1986). This is the definitive article on FOPA, cited by the Supreme Court and by most Circuit Courts of Appeals.

7. See Nicholas J. Johnson, *Imagining Gun Control in America*, 43 *Wake Forest L. Rev.* 837 (2008) (assessing the argument that confiscation cannot work unless preceded by registration, and the post-*Heller* variations on the argument).

8. 18 U.S.C. § 923(g)(4) and 27 C.F.R. § 478.127.

average of 1.2 million out-of-business records per month and is the only repository for these records within the United States.” Bureau of Alcohol, Tobacco, Firearms and Explosives, *Discontinue Being a Federal Firearms Licensee (FFL)*, <https://www.atf.gov/firearms/tools-and-services-firearms-industry/current-licensees/firearms/discontinue-being-a-federal-firearms-licensee-ffl>. Additionally, some retailers voluntarily participate in ATF’s computerized system to report sales immediately. ATF has compiled a database of over 1.3 billion firearms transactions. However, the records are, according to ATF, presently stored so that the name of the consumer cannot be searched.

When Congress enacted the National Instant Check System, it required that if the buyer is approved, “the system shall . . . destroy all records of the system with respect to the call (other than the identifying number and the date the number was assigned) and all records of the system relating to the person or the transfer.” 18 U.S.C. § 922(t)(2). This requirement reinforces a provision of the Firearms Owners Protection Act of 1986 that outlaws the creation of a national gun registry. 18 U.S.C. § 926(a)(3); Pub. L. No. 99-308; *see also* 18 U.S.C. § 923(g)(1)(A) (FFLs may not be required to submit to the Attorney General any records or information “except as expressly required by this section”). The next case illustrates how one administration charged with enforcement of the National Instant Check System approached the obligation to destroy the records of lawful purchases.

National Rifle Ass’n of America, Inc. v. Reno

216 F.3d 122 (D.C. Cir. 2000)

TATEL, Circuit Judge:

The National Rifle Association challenges a Justice Department regulation providing for temporary retention of data generated during background checks of prospective firearms purchasers, as required by the Brady Handgun Violence Prevention Act. According to the NRA, the Brady Act requires immediate destruction of personal information relating to lawful firearm transactions. The Attorney General interprets the statute differently, arguing that temporary retention of data for at most six months is necessary to audit the background check system to ensure both its accuracy and privacy. Finding nothing in the Brady Act that unambiguously prohibits temporary retention of information about lawful transactions, and finding that the Attorney General has reasonably interpreted the Act to permit retention of such information for audit purposes, we affirm the district court’s dismissal of the complaint.

I.

The Gun Control Act of 1968 makes it unlawful for certain individuals, including convicted felons, fugitives from justice, and illegal aliens, to possess firearms. *See* 18 U.S.C. § 922(g). The Brady Handgun Violence Prevention Act of 1993 required the Attorney General to establish a “national instant criminal background check system,” known as the NICS, to search the backgrounds of prospective gun purchasers for criminal or other information that would disqualify them from possessing firearms. *See* § 103(b), 107 Stat. 1536. A computerized system operated by the FBI, the NICS searches for disqualifying information in three separate databases: (1) the “NICS Index,” containing records on persons known to be disqualified

from possessing firearms under federal law; (2) the “National Crime Information Center,” containing records on protective orders, deported felons, and fugitives from justice; and (3) the “Interstate Identification Index,” containing criminal history records. 28 C.F.R. § 25.6(c)(1)(iii).

Before selling a weapon, firearm dealers must submit the prospective purchaser’s name, sex, race, date of birth, and state of residence to the NICS operations center at the FBI. *Id.* § 25.7(a). . .

Justice Department regulation requires the FBI to retain records of all NICS background searches—including names and other identifying information about prospective gun purchasers—in an automated “Audit Log.” According to the regulation, the Audit Log is “a chronological record of system (computer) activities that enables the reconstruction and examination of the sequence of events and/or changes in an event.” The regulation’s preamble describes the purpose of the Audit Log[.]

By auditing the system, the FBI can identify instances in which the NICS is used for unauthorized purposes, such as running checks of people other than actual gun transferees, and protect against the invasions of privacy that would result from such misuse. Audits can also determine whether potential handgun purchasers or [gun dealers] have stolen the identity of innocent and unsuspecting individuals or otherwise submitted false identification information, in order to thwart the name check system. . .

The regulation restricts use of the Audit Log. Information “pertaining to allowed transfers may only be used by the FBI for the purpose of conducting audits of the use and performance of the NICS.” . . .

On the day the NICS regulation became effective, the National Rifle Association of America, joined by the Law Enforcement Alliance of America, Inc., and four John and Jane Does, filed suit in the U.S. District Court for the District of Columbia, arguing that temporary retention of NICS records of allowed transfers violates three provisions of the Brady Act: section 922(t)(2)(C), requiring that the system “destroy” records of allowed transactions; section 103(i)(1), prohibiting the government from “requiring that any [NICS] record . . . be recorded at or transferred to a [government] facility”; and section 103(i)(2), prohibiting the government from “using the [NICS] system . . . to establish any system for the registration of firearms.”

The Attorney General interpreted the Act differently, arguing that neither section 922(t)(2)(C) nor section 103(i)(1) prohibits temporary retention of NICS records, and that the Audit Log is not a “system for . . . registration” within the meaning of section 103(i)(2). For authority to create the Audit Log, the Attorney General relied on her statutory obligations to establish a system capable of providing accurate information on the lawfulness of firearm transactions, and to protect the privacy and security of the NICS.

The district court, finding nothing in the Brady Act to require immediate destruction and the Attorney General’s construction of the statute reasonable, dismissed the complaint. . .

II.

Because the NRA challenges a statute administered by a government agency, we proceed in accordance with the familiar two-part test of *Chevron U.S.A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U.S. 837 (1984). . .

We begin with the NRA's . . . argument that three provisions of the Brady Act unambiguously prohibit the Attorney General from retaining information about allowed transactions for any purpose, including auditing. . .

According to the NRA, when the statute says "destroy all records" it means "destroy all records immediately," not within six months. That is certainly one possible interpretation of section 922(t)(2)(C). At *Chevron* step one, however, the question is whether the statute unambiguously requires immediate destruction. We think the answer is no.

[S]ection 922(t)(2)(C) does not say "destroy immediately"; it says only "destroy." . . .

The NRA contends that the Audit Log represents a "clear violation" of subsection (1) because the Log "constitutes 'any record or portion thereof generated by' NICS, and it is 'recorded at or transferred to' a federal facility." Several considerations persuade us that subsection (1) is not so clear. To begin with, the statute's prohibition against "recording" a "record" is inherently ambiguous. What is a "record," when has it been "recorded," and what kind of "record" cannot be "recorded"? When a NICS operator enters the name of a prospective purchaser into the system, is that a "record"? Has it been "recorded"? If not, when does it become a "record" that cannot be "recorded"? . . .

This brings us to subsection (2), which forbids the government from "using the [NICS] system . . . to establish any system for the registration of firearms, firearm owners, or firearm transactions or dispositions." According to the NRA, the Audit Log regulation violates this subsection because the Audit Log is itself a "form of registration." . . . But subsection (2) does not prohibit all forms of registration. It prohibits only "systems for the registration of firearms, firearm owners, or firearm transactions or dispositions." The Audit Log is not such a system. As designed by the Attorney General, it functions as a system for protecting the privacy of the NICS and for quality control. The Audit Log regulation expressly provides that "information in the Audit Log pertaining to allowed transfers may only be used by the FBI for the purpose of conducting audits of the use and performance of the NICS." To enforce this restriction, "the Audit Log will be monitored and reviewed on a regular basis to detect any possible misuse of the NICS data."

The Audit Log, moreover, contains no information about "firearms" or "firearm transactions or dispositions." Nor does it contain a comprehensive list of "firearm owners."

To illustrate the difference between the Audit Log and a firearms registry, the Attorney General calls our attention to the central registry of machine guns established by the National Firearms Act. The machine gun registry contains information on all machine guns not possessed by the United States, including data on the weapons themselves, dates of registration, and the names and addresses of persons entitled to possess them. Far less comprehensive, the Audit Log includes no addresses of persons approved to buy firearms, nor any information on specific weapons, nor even whether approved gun purchasers actually completed a transaction. . .

We think the Attorney General's position represents a reasonable interpretation of section 103(b)'s requirement that the NICS provide "information" on whether firearm transfers would be unlawful. . .

. . . [K]eeping in mind *Chevron* . . . highly deferential standard, we find that the Audit Log regulation represents a “permissible construction” of sections 103(b) and 103(h). We think it “common sense” . . . that Congress, having directed the Attorney General to establish a system for preventing disqualified persons from purchasing firearms, would expect the Attorney General to ensure that the system produces accurate information and guards against misuse. Indeed, by limiting retention of NICS information to “the minimum reasonable period for performing audits on the system,” the Attorney General has obeyed the “destroy” command of section 922(t) (2)(C) while fulfilling her section 103(b) and 103(h) responsibilities. . .

The judgment of the district court is affirmed.

NOTES & QUESTIONS

1. *Destruction of NICS records on lawful purchasers.* The administrations of Presidents Bill Clinton and George W. Bush took different views on the disposition of NICS information. On January 24, 2001, President Bush ordered all pending Clinton administration regulations withdrawn from the Federal Register “for review and approval.” In defiance of this order, two days later the Federal Register published a final rule under the authority of Janet Reno (who was no longer Attorney General) requiring that the NICS Audit Log be shared with the ATF. Attorney General John Ashcroft delayed implementation of this rule, was sued by the Violence Policy Center for unlawful suspension of the rule, and then declared the rule effective.

Then, Ashcroft proposed a new regulation that required information about lawful transfers to be destroyed within 24 hours. 28 C.F.R. § 25.9(b) (1) (iii) now reads: “In cases of NICS Audit Log records relating to allowed transactions, all identifying information submitted by or on behalf of the transferee will be destroyed within 24 hours after the FFL receives communication of the determination that the transfer may proceed.”

2. Note the court’s description of the registration system under the National Firearms Act (Ch. 3.A). Registration has been a significant point of controversy in the gun debate. What is the objection to, and argument in favor of, registration? Is there a constitutional objection to the government keeping records of one’s book purchases, Internet sites visited, birth control used, or organizations belonged to? What about automobile or attorney registration? How are these similar or dissimilar to gun registration?⁹

3. *Privacy of persons in FFL records.* The issue in *NRA v. Reno* was the privacy of retail buyers in an FBI database for the National Instant Check System. The National Firearms Act (Ch. 3.A) is based on the tax power, so registration and tax filings under the NFA have the same privacy protections as other federal tax forms. Ch. 3.C.1. The names and addresses of all persons who hold FFL licenses (except for holders of the Curios & Relics license) are publicly available on the ATF website at <https://www.atf.gov/firearms/listing-federal-firearms-licensees>.

9. See Johnson, *supra* note 4; David B. Kopel, *Treating Guns Like Consumer Products*, 148 U. Pa. L. Rev. 1213 (2000).

Several riders on ATF appropriations bills forbid the ATF to spend taxpayer money to disclose certain private information:

Provided, That no funds appropriated herein or hereafter shall be available for salaries or administrative expenses in connection with consolidating or centralizing, within the Department of Justice, the records, or any portion thereof, of acquisition and disposition of firearms maintained by Federal firearms licensees . . . or any information required to be kept by licensees pursuant to section 923(g) of title 18, United States Code, or required to be reported pursuant to paragraphs (3) and (7) of such section. . .

Consolidated and Further Continuing Appropriations Act, 2012, Pub. L. No. 112-55, 125 Stat. 552, 609-610 (2011); 18 U.S.C.A. § 923 Note. There are exceptions for certain law enforcement disclosures, and for annual statistical reports on manufacturing, imports, and exports.

4. *Privacy of persons in ATF traces.* The rider cited in Note 3 also restricts, under identical terms, disclosure of “part or all of the contents of the Firearms Trace System database maintained by the National Trace Center of the Bureau of Alcohol, Tobacco, Firearms and Explosives.” The same exceptions apply. *Id.* at 609-10. The ATF conducts traces at the request of federal, state, local, and foreign law enforcement agencies. Additionally, ATF publishes annual reports of aggregate data—for example, in a particular year, of the X guns in state A that ATF traced, Y were traced to state B. A disclaimer on all of ATF’s tracing data web pages states that traces can be requested for any reason, and that ATF traces “should not be considered representative of the larger universe of all firearms used by criminals, or any subset of that universe.” Consolidated Appropriations Act of 2008, 18 U.S.C. § 923; Pub. L. No. 110-161 § 518 (requiring the statement). Among the types of information that can be found in trace records are the names and addresses of victims of gun thefts.

The City of Chicago’s Freedom of Information Act (FOIA) lawsuits to obtain individual ATF traces to support the city’s lawsuit against the firearms industry (Part C) led to the first riders limiting disclosure of trace records.¹⁰

In 2009, Congress passed the OPEN FOIA Act, which specifies that future exemptions from FOIA must specifically invoke FOIA. The Ninth Circuit held that the 2010 Tiahrt rider repealed its 2008 and 2005 predecessors. Accordingly, the 2010 rider (and its 2012 reenactment) did not provide a valid FOIA exemption. *Ctr. for Investigative Reporting v. Dep’t of Justice*, 982 F.3d 668 (9th Cir. 2020). The Second Circuit disagreed; when Congress enacts a new law (Tiahrt 2012), it can alter the effect of an older law (OPEN FOIA 2009). *See Everytown for Gun Safety Support Fund v. Bureau of Alcohol, Tobacco, Firearms and Explosives*, 984 F.3d 30 (2d Cir. 2020) (including appendix with text of the riders in different years).

10. *See City of Chicago v. United States Dep’t of Treasury, Bureau of Alcohol, Tobacco and Firearms*, 423 F.3d 777 (7th Cir. 2005) (ending the Chicago suit because of the then-applicable version of the rider).

(ii) Gifts and Straw Purchases

Since passage of the GCA, retail firearm buyers have been required to complete Form 4473. The form includes a long checklist requiring buyers to aver that they are not legally ineligible to purchase a firearm. Making material false statements on the form is unlawful and a knowing violation is punishable by up to ten years' imprisonment. 18 U.S.C. § 924(a)(2). Sometimes, people who are legally prohibited from purchasing firearms send someone with a clean record to buy a gun for them. This is called a "straw purchase," and is specifically outlawed by the Firearms Owners Protection Act of 1986. The ATF conducts a joint program with the National Shooting Sports Foundation (the trade association for the gun industry) called "Don't Lie for the Other Guy." The program educates consumers that making a straw purchase is a serious crime, and also provides training to gun store employees in detecting straw purchases. The next case illustrates the legislative and regulatory response to straw purchases and raises an interesting policy question.

United States v. Moore

109 F.3d 1456 (9th Cir. 1997) (en banc)

TROTT, Circuit Judge.

Mary Peggy Moore ("Mrs. Moore") and Lee Roy Wiley ("Wiley") appeal their respective convictions for conspiracy and for making a material false statement in connection with the purchase of a firearm. Wiley allegedly bought a firearm as a "straw man" on behalf of Mrs. Moore's fourteen-year-old son, Bobby Moore ("Bobby"). Mrs. Moore allegedly was liable as Wiley's aider and abettor and coconspirator in his making of the false statement. . .

[W]e affirm the district court. . .

On September 2, 1993, fourteen-year-old Bobby Moore saw a .25 caliber handgun in a pawnshop which had a federal license to sell firearms. When he showed interest in the weapon, a clerk shooed him off the premises because his age rendered him ineligible under federal law to buy it. Undaunted, Bobby set out to find a way to acquire the handgun for himself. He approached his mother to buy it for him, but she turned him down. Bobby's friend Jason Marks witnessed this discussion. Jason's unchallenged testimony about the discussion established not only that Mrs. Moore refused to buy the gun on behalf of her son, but that she explicitly told him he would have to "get someone else" to get it for him because she "didn't want her name on the papers." . . .

Mrs. Moore then pawned Bobby's CD player and gave him the cash she received from the transaction. She did so knowing that he intended to use it to purchase a firearm.

The next day, Bobby went looking for someone else to help him acquire the weapon, as suggested by his mother. He took the cash to Wiley's residence to see if Wiley would assist him. The neighborhood knew Wiley as "Grandpa," and he frequently did favors for the neighborhood children. The record reflects that Wiley is a man of limited intelligence. Wiley was neither Bobby's parent nor guardian, nor was he related to him in any respect whatsoever.

Wiley balked at first, but Bobby persisted; and with the promise of money as a sweetener, Wiley relented and agreed to purchase the gun on Bobby's behalf.

Mrs. Moore then drove Wiley, Bobby, and Jason to the pawnshop. During this trip, Wiley asked Mrs. Moore if the purchase of the gun was all right with her, to which she replied that it was fine.

When the group arrived at the pawnshop, Mrs. Moore waited in the car while Wiley, Bobby, and Jason went inside. Wiley asked the clerk to see the handgun Bobby had spotted on his earlier visit. Because the two boys were present, the clerk inquired for whom Wiley wanted to purchase the gun. Wiley responded that the gun was for Bobby, but that he Wiley was Bobby's grandfather, and that he was going to hold it for Bobby until Bobby was 21 years of age. Both of these statements were false and were intended to facilitate the transaction. On cross-examination, Wiley conceded that the only reason he was in the pawnshop was "to stand in for Bobby to get that gun."

The clerk responded to Wiley's representations with an inquiry about Bobby's parents and whether they knew about this purchase. Bobby said that his mother was outside, and he went to get her. In short order, Mrs. Moore appeared briefly in the doorway and, without prompting by Wiley, said to the clerk, "His grandfather is buying a gun for him. He's going to hold it until he's 21, and everything is fine with me."

Satisfied by Mrs. Moore's representations, the clerk had Wiley sign BATF Form 4473 as the "transferee (buyer)," accepted the cash Bobby had given to Wiley for the transaction, and turned the gun over to Wiley. Back in the car, and contrary to the intentions he expressed to the clerk, Wiley gave the gun to Mrs. Moore, expecting that it would go to Bobby. As Bobby intended from the start, he then took the firearm as his own possession.

Mrs. Moore's reluctance to buy this weapon for her son and to put her name on the papers was well founded, and her worry about Bobby hurting someone with it was prescient. On January 20, 1994, Bobby used it to shoot Ronald Wade Feldner, a New Plymouth, Idaho police officer, in the face. Officer Feldner died, leaving behind a wife and minor children.

B. THE FALSE STATEMENT

In 18 U.S.C. § 922(a)(6), Congress made it a federal offense for any person in connection with the acquisition or attempted acquisition of any firearm or ammunition from a licensed importer, licensed manufacturer, licensed dealer, or licensed collector, knowingly to make any false or fictitious oral or written statement or to furnish or exhibit any false, fictitious, or misrepresented identification, intended or likely to deceive such importer, manufacturer, dealer, or collector with respect to any fact material to the lawfulness of the sale or other disposition of such firearm or ammunition under the provisions of this chapter.

In the same statute, Congress also rendered it illegal for a licensed firearms dealer to sell or deliver "any firearm or ammunition to any individual who the licensee knows or has reasonable cause to believe is less than eighteen years of age," or to sell or deliver a handgun to anyone less than twenty-one years of age. 18 U.S.C. § 922(b)(1). Thus, federal law made Bobby Moore ineligible to purchase a firearm from a federally-licensed dealer.

The government's theory of its case against Wiley, and against Mrs. Moore as an aider and abettor and conspirator, is straightforward and simple. As charged in the indictment and as explained to the jurors in the jury instructions, the government alleges that the true buyer of the .25 caliber handgun was the ineligible Bobby Moore, and that Wiley acted merely as his disguised agent—in the parlance, as a “straw man” purchaser. Thus, goes the government's argument, when Wiley the straw man agent signed his name on Form 4473 as the “transferee (buyer),” he made a false statement because the buyer was not Wiley, but Bobby himself. The manifest materiality of this false statement, says the government, stems from the law's prohibition against Bobby buying a firearm.

The appellants, on the other hand, contend that Mrs. Moore consented to the acquisition of this firearm by Wiley on behalf of her son. They argue here, as they did to the trial court and to the jury, that such consent rendered the sale lawful per se, and accordingly, that any false statements that Wiley and Mrs. Moore made to the clerk were flatly immaterial. To support this argument, the appellants assert that, at the time of sale, transferring firearms to minors was legal in Idaho, so long as the minor's parents gave consent.² . . .

C. THE STRAW MAN DOCTRINE

The straw man doctrine, which is nothing more than a long-standing construction of the relevant statutes, holds that a person violates section 922(a) (6) by acting as an intermediary or agent of someone who is ineligible to obtain a firearm from a licensed dealer and making a false statement that enables the ineligible principal to obtain a firearm. . . In *Lawrence*, for example, the Sixth Circuit found determinative of straw man status that, like Wiley, the transferee (1) acted under the direction and control of the ineligible buyer, (2) purchased weapons selected by the ineligible buyer with the buyer's money, (3) took a commission that showed agency, and (4) had no intention of keeping the gun for himself. 680 F.2d at 1128. . . In this context, it is a construction of the statute that directly serves the primary purpose of the Gun Control Act, which is “to make it possible to keep firearms out of the hands of those not legally entitled to possess them because of age, criminal background, or incompetency.” *Barrett v. United States*, 423 U.S. 212, 220 (1976). . .

In the instant case, the uncontested facts presented to the jury did not as a matter of law establish a defense to the straw man doctrine. Nothing in the statute, the case law, or the rules of statutory construction suggests that a parent can either (1) render an unlawful straw man purchase legal by consenting to it, or (2) override the clear prohibition against making material false statements in a firearms transaction. Appellants ignore the specific rules that apply when someone purchases

2. At the time this firearm was purchased, Idaho law did not prohibit the sale of a firearm to a minor so long as the minor had the consent of a parent or a guardian. Idaho Code § 18-3302A (1990). Since these events, the Idaho Legislature amended section 18-3302A to require the written permission of a parent or a guardian. The Gun Control Act has also been amended to make it illegal for a juvenile to possess a handgun without a parent's or guardian's written consent. 18 U.S.C. §§ 922(x) (1) (A), 922(x) (3) (A) (iii) (1994).

a firearm from a federally licensed dealer. Their suggestion that Idaho Code § 18-3302A “empowers” a parent to arm a child is misleading and a non sequitur. The fact that Idaho law permits a weapons transfer to a minor under 16 years of age with parental consent does not “empower” a juvenile to purchase a firearm from a federal dealer through an intermediary who falsely identifies himself as the buyer. The gravamen of the charge against Mrs. Moore and Wiley was the allegation that they made a material false statement. . .

Wiley’s involvement in the transaction is the smoking gun that proves both the illegality of this purchase and the existence of the conspiracy. Under the circumstances and given the jury’s verdict, Mrs. Moore’s words spoken in the pawnshop in support of the grandfather ruse serve primarily to connect her both to the false statement offense and to the conspiracy, rather than to provide the appellants with a defense. In her cameo appearance in the pawnshop’s doorway, she did not reveal what was actually happening. Instead, she lied about the transaction in progress, and by so doing, purposefully enabled Wiley to make a material false statement on BATF Form 4473 and thereby consummate an illegal purchase. Her precise misrepresentation about Wiley’s status as Bobby’s grandfather and about who was going to control the weapon can hardly be called “consent.” What the record demonstrates that she said and did does not square with the appellants’ characterization of it. Thus, the appellants’ argument that the evidence is insufficient to sustain these verdicts is demonstrably without merit. . .

Affirmed.

TASHIMA, Circuit Judge, with whom PREGERSON and REINHARDT, Circuit Judges, join, dissenting: . . .

The majority’s . . . error is to ignore Mrs. Moore’s consent and, thus, the central issue in this case—the scope of the parental consent exception. The majority ignores Mrs. Moore’s consent to the sale because it does not want to deal with the consequences of recognizing it.

Even the Bureau of Alcohol, Tobacco and Firearms (“BATF”) agrees that Congress intended that guns purchased for juveniles by their parents be excepted from the Gun Control Act’s (“GCA”) prohibition, and has administered the GCA to recognize such an exception.⁴ However, the BATF would limit that exception to transactions in which the parent herself or himself is the purchaser—the “Transferee (Buyer).”

As the panel opinion makes clear, there is no justification in the legislative history to construe the parental consent exception as narrowly as does the BATF, particularly when construing a criminal statute. For the reasons stated in Parts III and IV of the panel opinion, *Moore I*, 84 F.3d at 1571-73, the majority errs in failing to recognize Congress’ intent that under the GCA, a parent may validly consent to the purchase of a gun for her minor child without being the physical purchaser.

4. No party has cited and the court has not found any reported case in which a straw purchaser has been prosecuted for buying a firearm for a juvenile where the straw purchaser is a parent or other close relative of the juvenile.

Congress simply did not intend to criminalize acquisition of firearms by minors where the parent knows of and consents to the purchase.

The report of the Senate Judiciary Committee on the GCA listed among the serious national problems addressed by the legislation the acquisition of firearms by “juveniles *without the knowledge and consent of their parents or guardians*. . .” The report elaborated:

The *clandestine* acquisition of firearms by juveniles and minors is a most serious problem facing law enforcement and the citizens of this country. The controls proposed in the title are designed to meet this problem and to substantially curtail it.

Id. at 2167 (emphasis added).

The committee report made clear that Congress did not intend to frustrate all gun acquisitions by minors:

Under the title, a minor or juvenile would not be restricted from owning or learning the proper usage of the firearm, since any firearm which his parent or guardian desired him to have could be obtained for the minor or juvenile by the parent or guardian.

Id.

There is no indication that Congress intended to limit the exception for the purchase of a firearm for a minor exclusively to purchases made by the parent himself or herself. What the legislative history indicates is that Congress considered parental permission sufficient to allow a third party to purchase the firearm on behalf of a minor. The Senate Judiciary Committee’s report clearly indicates that Congress’ purpose was only to prohibit those acquisitions of firearms by minors that are “clandestine” or made “without the knowledge and consent of their parents.” *Moore I*, 84 F.3d at 1571-72. . .

According to the government’s theory of the case, the only material false statement made was by Wiley when he signed the BATF form stating that he was the “transferee (buyer).” This statement was false, according to the government, because Bobby was the “true” purchaser and Wiley was a “straw man.” However, even under this theory, under the BATF’s own interpretation of what its own forms and regulations require, Wiley was *required* to state that he was the “transferee (buyer).”

According to the testimony of BATF Special Agent Sterling Nixon, when a parent purchases a gun for her child, even with the child’s own money, she is *required* to list her own name as the “transferee (buyer).”⁷ BATF Form 4473 simply is not designed to accommodate a straw purchase, whether or not it is lawful.⁸ There was no place on the form where Wiley could have disclosed that he intended

7. Agent Nixon further testified that this required listing of the parent’s name as transferee (buyer) would be true even if the parent intended immediately to transfer the firearm to her child, and that it would not be a false statement.

8. As noted in the panel opinion, not all straw transactions are illegal. *Moore I*, 84 F.3d at 1570. The paradigmatic straw transaction is, of course, the legal stand-in of a parent for her or his minor child.

immediately to transfer the gun to Mrs. Moore, for eventual transfer to Bobby. Wiley did not make a false statement. He was, in fact, the “transferee (buyer)” and listed himself as such. Because he fully complied with the requirements of the BATF form and the form nowhere required disclosure of the “straw” aspect of the transaction, Wiley did not make a false statement by listing himself as the “transferee (buyer),” unless that action were criminalized by the “straw man” doctrine, discussed below.

Further analysis of the BATF’s design and administration of its Form 4473 demonstrates the “Catch 22” in which straw purchasers are placed. According to BATF Agent Nixon’s testimony, straw purchasers are required to list themselves as the “transferee (buyer),” even though they are standing in for the “true” purchaser, *e.g.*, where a parent is purchasing a firearm for her child. Thus, in the BATF’s view, straw purchasers are required to make a false statement. The BATF then, in its discretion, determines whether or not that false statement is material, *i.e.*, whether or not Congress intended that transaction to be exempted from the BATF’s “true” purchaser requirement. Whatever the merits of such an administration of the GCA for regulatory purposes, it is hardly a fair way to administer the criminal law. . .

This court should not default to the BATF, or any other Executive Branch agency, the power to construe our criminal laws in derogation of the intent of Congress. Congress did not intend to criminalize the sale of a firearm to a minor, where the sale is made with the consent of the minor’s parent. If, as it should be, the underlying transaction is seen as one within the parental consent exception, then the sale was lawful and any false statement made to facilitate it could not have been of “any fact material to the lawfulness of the sale,” within the meaning of 18 U.S.C. § 922(a)(6).

For these reasons, I would reverse the convictions. I respectfully dissent.

NOTES & QUESTIONS

1. *Straw purchases*. In the 5-4 decision of *Abramski v. United States*, 573 U.S. 169 (2014), the U.S. Supreme Court affirmed Abramski’s conviction for purchasing a handgun for his uncle while stating on federal Form 4473 that he was purchasing the firearm for himself. Abramski was a law-enforcement officer and took advantage of a law-enforcement discount to buy the gun for his uncle. It was irrelevant to the Court that Abramski’s uncle could legally purchase the gun himself or that Abramski transferred the gun to his uncle at a licensed firearms dealer’s premises after being told by three licensed dealers that he could legally transfer the gun to his uncle through a dealer. *United States v. Abramski*, 706 F.3d 307, 310 (4th Cir. 2013). The Court also rejected the argument by Abramski that his misstatement on Form 4473 was not material.

2. The back of ATF Form 4473 sets forth some explanations and examples to assist licensees and nonlicensees in complying with federal regulations at the point of sale. One of the questions on the form asks the buyer: “Are you the actual transferee/buyer of the firearm(s) listed on this form and any continuation sheet(s) (ATF Form 5300.9A)?” Here is the instruction from the government form:

Question 21.a. Actual Transferee/Buyer: For purposes of this form, a person is the actual transferee/buyer if he/she is purchasing the firearm for him/herself or otherwise acquiring the firearm for him/herself

(e.g., redeeming the firearm from pawn, retrieving it from consignment, firearm raffle winner). A person is also the actual transferee/buyer if he/she is legitimately purchasing the firearm as a bona fide gift for a third party. A gift is not bona fide if another person offered or gave the person completing this form money, service(s), or item(s) of value to acquire the firearm for him/her, or if the other person is prohibited by law from receiving or possessing the firearm.

EXAMPLES: Mr. Smith asks Mr. Jones to purchase a firearm for Mr. Smith (who may or may not be prohibited). Mr. Smith gives Mr. Jones the money for the firearm. Mr. Jones is NOT THE ACTUAL TRANSFEREE/BUYER of the firearm and must answer “no” to question 21.a. The licensee may not transfer the firearm to Mr. Jones. However, if Mr. Brown buys the firearm with his own money to give to Mr. Black as a gift (with no service or tangible thing of value provided by Mr. Black), Mr. Brown is the actual transferee/buyer of the firearm and should answer “yes” to question 21.a. However, the transferor/seller may not transfer a firearm to any person he/she knows or has reasonable cause to believe is prohibited under 18 U.S.C. 922(g), (h), (n), or (x).

Can you think of circumstances where an innocent “gift” of a firearm could get someone in trouble under the “straw man doctrine”? Is buying a gun as a gift for your boss a “service or tangible thing of value” if he or she has the power to keep you employed? What if a lobbyist buys a hunting rifle to make a gift to a legislator who carried an important bill through the legislature?

3. In many parts of the country, it is not unusual for minors to have guns of their own or have easy access to guns owned by the family. Based on statutory provisions, Idaho is one of those places. What is your assessment of the Idaho statute? Under federal law and in many states, guns are not registered to particular owners in the fashion of automobiles. Absent a registration system, what does it mean to “own” a firearm? What if the parent says that the firearm belongs to the minor, but keeps the gun locked away except when accompanying the minor to shoot the gun? How does this fit in with Child Access Prevention (CAP) laws? (Chs. 1.C.3. and 10.A.)

4. The question of what it means to own or possess a gun in a family situation where several people might have access also arises in the context of rules that prohibit gun possession by felons or other disqualified individuals. Consider the arguments you would make in a situation where the father of a juvenile felon purchases a firearm and brings it to his home, where the juvenile felon resides.¹¹ Would CAP laws cover this situation? What is to be done if the prohibited person is not a minor, but an adult child or spouse who has had a mental health episode resulting in a court-ordered commitment? In states (like California) where spouses can have written agreements designating what is community property (jointly owned with equal right of possession) and what is separate property (solely owned by one spouse with

11. See, e.g., *United States v. Stine*, 458 F. Supp. 366 (E.D. Pa. 1978) (wife was a straw purchaser for her convicted felon husband).

exclusive right of possession) the *de jure* problem can be solved with a properly executed property agreement. The *de facto* problem can best be resolved by denying the disqualified adult access to firearms and ammunition by using a gun safe. Does this situation make a gun safe an essential accessory to firearm ownership? What other precautions would you advise the gun-owning adult in a home to take if it becomes necessary for the “innocent” spouse to prove (or disprove) who has access to firearms and ammunition?¹²

5. Licensed dealers violate the prohibition on straw sales if they knowingly sell to a straw purchaser.¹³ The ATF hosts a webpage that specifically addresses Straw Purchases and provides links to industry partnerships like the National Shooting Sports Foundation to assist federally licensed firearms dealers in detecting such purchases. ATF, *Don't Lie for the Other Guy*, <https://www.atf.gov/firearms/tools-services-law-enforcement/atf-firearms-programs/dont-lie-other-guy>.

b. Regulation of Sellers

In addition to the licensing requirements and the obligation to perform background checks on firearms purchasers discussed above, federally licensed firearms dealers (FFLs) have many other obligations. Among the most important are that dealers must (1) keep an acquisitions and dispositions log recording the details of every purchase and sale (including the identity of the buyer or seller and the make, model, and serial number of the gun); (2) retain all Forms 4473 completed by purchasers for at least 20 years; (3) complete and retain copies of Form 3310.4, which reports to the ATF and the state or local law enforcement of the sale of more than one handgun to a single buyer within five business days; and (4) complete and retain all Form 3310.11 reports of theft or loss of a firearm to the ATF.

FFLs may freely ship firearms in interstate commerce to other FFLs but may not ship or transport a firearm in interstate commerce to a nonlicensee. 18 U.S.C. § 922(a)(3). Thus, customers cannot buy a gun directly from a dealer over the Internet or through any other transaction that is not face-to-face. All transactions must take place face-to-face at the dealer's place of business (a storefront or a home office) or at a gun show. To purchase a gun remotely, the buyer must arrange for the licensed seller to ship the gun to another licensed dealer in the buyer's location. The buyer takes delivery from that local dealer, after providing a photo ID, completing a Form 4473, and passing the NICS background check. If the seller is a private individual in a different state, the seller must have an FFL ship the gun to a licensed dealer in the buyer's state where the standard purchasing procedure will occur.

12. Federal law prohibits any disqualified person from possessing firearms OR ammunition. 18 U.S.C. § 922(g) & (n). Subsection (d) also prohibits knowingly giving a firearm OR ammunition to any disqualified person. Putting all the guns in a safe, but storing the ammunition on a shelf in the garage is an invitation to prosecution.

13. A known straw purchase would be illegal for the dealer because it would be a known, material false statement on the Form 4473. 18 U.S.C. § 922(a)(6) & § 924(a)(1)(A). For an analysis of the incentives that restrain off-the-books sales by licensed dealers, see Nicholas J. Johnson, *Imagining Gun Control in America: Understanding the Remainder Problem*, 43 Wake Forest L. Rev. 837 (2008).

There are limited exceptions to these rules. Most notably, an individual may ship a firearm to an FFL or a licensed manufacturer, typically for repair, and the FFL or manufacturer may return the repaired firearm or a replacement firearm of the same type. 18 U.S.C. § 922(a)(2)(A), (a)(5). An individual may also ship a firearm to a resident of his or her own state. *Id.* § 922(a)(5); 27 C.F.R. § 478.31. An individual may ship a firearm to him- or herself to another state, provided that no one other than the sending owner takes possession of the firearm in any way other than receiving the package in which it was shipped. 18 U.S.C. § 922(a)(2)(A), (a)(5); BATFE Guidance, *May a Nonlicensee Ship Firearms Interstate for His or Her Use in Hunting or Other Lawful Activity?*

Dealers are subject to on-premises inspection of their records and inventory, raising a Fourth Amendment question that was addressed by the Supreme Court in the case below.

United States v. Biswell

406 U.S. 311 (1972)

[Biswell held a Federal Firearms License that entitled him to sell guns at his pawn shop. Local and federal agents visited his shop, identified themselves, and asked to enter and inspect his locked gun storage room. Biswell asked if they had a warrant. The agents showed him the provisions of the GCA that permitted warrantless searches, and he consented to the search. During the inspection, agents found two guns covered under the National Firearms Act of 1934 (Ch. 3.A)). Neither gun had the tax stamp required under the NFA. Biswell was indicted and convicted. The Fourth Circuit reversed on the grounds that the provision in the GCA for warrantless searches violated the Fourth Amendment. The Supreme Court reversed, and upheld the GCA provisions that permit unannounced warrantless searches of the premises of dealers who hold Federal Firearms Licenses. *See* 18 U.S.C. § 923(g).]

MR. JUSTICE WHITE delivered the opinion of the Court. . .

. . . Federal regulation of the interstate traffic in firearms . . . is undeniably of central importance to federal efforts to prevent violent crime and to assist the States in regulating the firearms traffic within their borders. *See* Congressional Findings and Declaration, Note preceding 18 U.S.C. § 922. Large interests are at stake, and inspection is a crucial part of the regulatory scheme, since it assures that weapons are distributed through regular channels and in a traceable manner and makes possible the prevention of sales to undesirable customers and the detection of the origin of particular firearms.

It is also apparent that if the law is to be properly enforced and inspection made effective, inspections without warrant must be deemed reasonable official conduct under the Fourth Amendment. . . Here, if inspection is to be effective and serve as a credible deterrent, unannounced, even frequent inspections are essential. . .

We have little difficulty in concluding that where, as here, regulatory inspections further urgent federal interest, and the possibilities of abuse and the threat to privacy are not of impressive dimensions, the inspection may proceed without a warrant where specifically authorized by statute. The seizure of respondent's sawed off rifles was not unreasonable under the Fourth Amendment. . .

NOTES & QUESTIONS

1. *Biswell* is a leading administrative law case for the principle that regulated businesses can be subjected to warrantless inspections. Do you agree with the Court's Fourth Amendment analysis?

5. *Private Sales: The Secondary Market and Gun Shows*

Not all sellers of firearms are licensed dealers. Recall that in the previous treatment of what constitutes dealing in firearms, Congress did not require all sellers of firearms to obtain a federal license, only persons "engaged in the business." Federal law restricts but does not bar these private transfers. All secondary sales are of *used* guns, because firearms manufacturers and wholesalers of new guns only sell to FFLs.

Private or secondary sales are at the heart of debate and complaints about what has been called the "Gun Show Loophole." *E.g.*, Violence Policy Center, *Closing the Gun Show Loophole* (2001). Strictly speaking, the label is inaccurate. Current law does allow licensed dealers to sell guns at gun shows, and they must comply with the same requirements that apply to sales made at their business premises: The buyer must provide proper identification, complete Form 4473, and pass NICS scrutiny. 18 U.S.C. § 923(j). Likewise, the laws regulating secondary sales between private individuals at gun shows are exactly the same as for secondary sales anywhere else, like a hunting club meeting, or at one's home. The Internet has made it easier for secondary sellers and purchasers to find each other. Many firearms enthusiast sites on the Internet contain classified sections where residents of the same state can communicate to purchase and sell used firearms.

Gun shows are usually one- or two-day weekend events where scores, and sometimes hundreds, of licensed dealers gather to display and sell a portion of their inventory. The gun show is open to members of the public who pay a fee to enter and get access to the inventory of many dealers in one location. Members of the public also may bring their private firearms to sell or trade. People who do not hold FFLs will sometimes rent a table at a gun show to display items for sale. At a typical gun show, there are many products for display other than firearms—such as books, videos, ammunition, accessories such as slings or scopes, outdoor gear, and even hot sauce. Local gun rights groups and politicians like to rent tables to distribute literature, taking advantage of the opportunity for contact with hundreds or thousands of potential customers or supporters.

Federal law generally permits secondary sales between people who are otherwise permitted to own firearms, so long as they reside in the same state. Some states, however, have imposed additional regulations on secondary sales. As the

next case illustrates, regulation of sales at gun shows has raised constitutional questions that go beyond the Second Amendment.

SCOPE, Inc. v. Pataki

386 F. Supp. 2d 184 (W.D.N.Y. 2005)

SIRAGUSA, District Judge.

INTRODUCTION

Plaintiffs are challenging a statute enacted by the New York Legislature pertaining to the sale of guns and the creation of a State database for guns sold in New York. Before the Court are defendants' motion for judgment on the pleadings, or motion to dismiss, pursuant to Federal Rules of Civil Procedure 12(c) and 12(b), and plaintiffs' cross-motion, also pursuant to Rule 12(c), for "partial summary judgment" and injunctive relief. For the reasons stated below, the Court partially grants and partially denies both motions.

BACKGROUND

The issues raised in the parties' applications can be resolved at this juncture by examination of the complaint and referenced statute. As to the identity of the plaintiffs, the complaint, filed on April 23, 2004, asserts that the Shooter's Committee on Political Education, Inc. ("SCOPE") is a New York not-for-profit corporation devoted to preserving the legal possession and use of handguns, rifles and shotguns. . .

The first four causes of action in the complaint pertain to New York General Business Law sections 895, 896 and 897, all enacted as Article 39-DD—Sale of Firearms, Rifles, or Shotguns at Gun Shows (McKinney 2000). L. 2000, c. 189, § 5, eff. Aug. 8, 2000. Those statutes state in relevant part as follows:

§ 895. Definitions

For the purposes of this article:

1. "Gun show" means an event sponsored, whether for profit or not, by an individual, national, state or local organization, association or other entity devoted to the collection, competitive use, sporting use, or any other legal use of firearms, rifles or shotguns, or an event at which (a) twenty percent or more of the total number of exhibitors are firearm exhibitors or (b) ten or more firearm exhibitors are participating or (c) a total of twenty-five or more pistols or revolvers are offered for sale or transfer or (d) a total of fifty or more firearms, rifles or shotguns are offered for sale or transfer. The term gun show shall include any building, structure or facility where firearms, rifles or shotguns are offered for sale or transfer and any grounds used in connection with the event.

§ 896. Operation of a gun show

1. A gun show operator shall:

(a) at all times during such show conspicuously post and maintain signs stating "A National Instant Criminal Background Check must be completed prior to all firearm sales or transfers, including sales or transfers of

rifles or shotguns.” Signs must be posted at all entrances to the gun show, at all places where admission tickets to the gun show are sold and not less than four additional locations within the grounds of the gun show;

(b) notify all firearm exhibitors in writing that a national instant criminal background check must be completed prior to all firearm sales or transfers, including sales or transfers of rifles or shotguns; and

(c) provide access at the gun show to a firearm dealer licensed under federal law who is authorized to perform a national instant criminal background check where the seller or transferor of a firearm, rifle or shotgun is not authorized to conduct such a check by (i) requiring firearm exhibitors who are firearm dealers licensed under federal law and who are authorized to conduct a national instant criminal background check to provide such a check at cost or (ii) designating a specific location at the gun show where a firearm dealer licensed under federal law who is authorized to conduct a national instant criminal background check will be present to perform such a check at cost. Any firearm dealer licensed under federal law who performs a national instant criminal background check pursuant to this paragraph shall provide the seller or transferor of the firearm, rifle or shotgun with a copy of the United States Department of Treasury, Bureau of Alcohol, Tobacco and Firearms Form ATF F 4473 and such dealer shall maintain such form and make such form available for inspection by law enforcement agencies for a period of ten years thereafter.

2. Whenever the attorney general shall believe from evidence satisfactory to him or her that a gun show operator has violated any of the provisions of this section, the attorney general may bring an action or special proceeding in the supreme court for a judgment enjoining the continuance of such violation and for a civil penalty in an amount not to exceed ten thousand dollars. If it shall appear to the satisfaction of the court or justice that the defendant has violated any provisions of this section, no proof shall be required that any person has been injured thereby nor that the defendant intentionally violated such provision. In such action preliminary relief may be granted under article sixty-three of the civil practice law and rules. In connection with any such proposed application, the attorney general is authorized to take proof, issue subpoenas and administer oaths in the manner provided in the civil practice law and rules.

§ 897. Sale of a firearm, rifle or shotgun at a gun show

1. A national instant criminal background check shall be conducted and no person shall sell or transfer a firearm, rifle or shotgun at a gun show, except in accordance with the provisions of 18 U.S.C. § 922(t).

2. No person shall offer or agree to sell or transfer a firearm, rifle or shotgun to another person at a gun show and transfer or deliver such firearm, rifle or shotgun to such person or person acting on his or her behalf thereafter at a location other than the gun show for the purpose of evading or avoiding compliance with 18 U.S.C. § 922(t).

3. Any person who knowingly violates any of the provisions of this section shall be guilty of a class A misdemeanor punishable as provided for in the penal law.

N.Y. Genl. Bus. Law §§ 895(1), 896, 897 (McKinney's 2000). . .

DISCUSSION

Plaintiffs have alleged that the statutory definition of “gun show” is unconstitutionally vague, overbroad, violative of the Due Process clause, gives too much discretion to police and violates plaintiffs’ rights to free speech, assembly and petition.

. . . It is indeed conceivable that plaintiffs could sponsor a pig roast at which two individuals discuss the private sale of a gun, and the sale is later consummated, and that plaintiffs could then be found in violation of the statute for not having followed the requirements imposed by section 896 on gun show operators. . .

On this point, in support of its determination, the Court refers to defense counsel’s exchange with the Court at oral argument:

The Court: If I’m at the pancake breakfast sponsored by a gun club and I say to you, gee, I heard you have this nifty gun, that it is for sale. Yeah, it’s in the trunk here. Why wouldn’t that apply?

Defense Counsel: At the risk of taxing the Court’s patience, because we say it doesn’t. Because we are not going to prosecute (seek) civil actions or enforcement under that situation. In our wisdom, we have reviewed the legislature, the title and concluded these criteria set forth by Mr. Nocenti apply and I’m sorry if the Court feels that procedurally that is beyond the scope of what it can consider, but I think it’s important to consider that.

. . . With due respect to the defense, it is not the wisdom of the Attorney General that controls, but the plain text of the statute.

The statute is not vague. Quite the contrary, the statute is clear in its plain language. Any event sponsored by a gun club would constitute a gun show under the definition of the statute. . .

“GUN SHOW” DEFINITION OVERBROAD

Plaintiff’s Third cause of action alleges that section 895(1) is so broad that it essentially declares any assembly of gun owners for any purpose a “gun show” and infringes on plaintiffs’ right to lawfully assemble, right to free speech and right to petition the government. The Court agrees that the statute is overbroad. . .

“Facial overbreadth has not been invoked when a limiting construction has been or could be placed on the challenged statute.” *Broadrick v. Oklahoma*, 413 U.S. 601, 613 (1973). The Supreme Court wrote that to invalidate a state statute that regulates harmful, or constitutionally unprotected conduct, “the overbreadth of a statute must not only be real, but substantial as well, judged in relation to the statute’s plainly legitimate sweep.” *Broadrick v. Oklahoma*, 413 U.S. 601, 615 (1973). “Where a statute’s literal scope, unaided by a narrowing state court interpretation, is capable of reaching expression sheltered by the First Amendment, the doctrine demands a greater degree of specificity than in other contexts.” *Smith v. Goguen*, 415 U.S. 566, 573 (1974) (footnote omitted). . .

As the Supreme Court wrote in *Keyishian v. Board of Regents*, 385 U.S. 589, 602 (1967) (quoting *Shelton v. Tucker*, 364 U.S. 479, 488), “‘even though the governmental purpose be legitimate and substantial, that purpose cannot be pursued by means that broadly stifle fundamental personal liberties when the end can be more narrowly achieved.’”

As indicated above, the Court determines that the plain meaning of the first clause of section 895(1) defines any gathering of a gun club to be a “gun show.” Since the Court is unaided by a narrowing State court interpretation, it is not persuaded by defendants’ argument that by relying on the title of Article 39-DD, the first clause of section 895(1) can be interpreted in a manner that passes constitutional muster. Here, unaided by a narrowing State court interpretation, the Court finds that the first clause in the definition of a “gun show” in New York General Business Law section 895(1) is overbroad and infringes on the gun club plaintiffs’ constitutionally protected rights to free speech, assembly and petition. Therefore, the Court grants plaintiffs’ motion for judgment on the pleadings with respect to the Third cause of action. . . .

Ordered, that judgment be entered for plaintiffs on the Third cause of action as it pertains to the following language in New York General Business Law section 895(1) . . . which the Court determines is unconstitutional as an overbroad restriction on plaintiff gun clubs’ First Amendment rights to free speech, assembly and petition; and it is further Ordered, that defendants are enjoined from enforcing the following clause of New York General Business Law section 895(1). . . .

Thus far, the focus has been on the sale or gift of firearms. But the number of firearms loans far exceeds the number of firearms sales. For example, a woman might purchase a firearm at age 25, and keep it her whole life. She might lend the firearm to neighbors for target shooting, to her cousin who feared being stalked, to a work colleague for a hunting trip, and so on. Some states require that these temporary transfers be treated as if they were firearms sales, and be processed by gun stores, with the attendant paperwork, fees, and so on. *See* David B. Kopel, *Background Checks for Firearms Sales and Loans: Law, History, and Policy*, 53 Harv. J. Legis. 303 (2016).

Federal law permits private transfers of firearms within the limits discussed above. 18 U.S.C.A. § 922(d). State laws on transfers are varied. *See, e.g., Chow v. Maryland*, 903 A.2d 388 (Md. 2006) (loan among adult friends is not a “transfer”).

6. *Firearms Imports and “Sporting Use”*

A major, long-standing issue in the modern gun control debate is whether a firearm is suitable for sporting use. Many argue that only sporting firearms should be legal. Some gun control laws, such as the Gun Control Act’s criteria for what kinds of firearms may be imported, are explicitly based on the gun’s suitability for sporting purposes. While suitability for sporting use is widely employed in the general debate, its statutory function is more limited, as the next case shows.

Gilbert Equip. Co. v. Higgins

709 F. Supp. 1071 (S.D. Ala. 1989)

[The district court adopted the opinion of the magistrate judge, which follows.]

WILLIAM E. CASSADY, United States Magistrate.

FACTS

In 1986, Gilbert Equipment Company, a licensed importer of firearms, applied to the Bureau of Alcohol, Tobacco and Firearms (hereinafter “ATF”) for a permit to import the USAS-12 shotgun. . . The USAS-12 is a highly advanced magazine-fed semiautomatic 12-gauge shotgun manufactured by Daewoo Precision Industries in Korea. Soon after applying for the permit, Gilbert submitted information to the Bureau in an attempt to demonstrate that the USAS-12 “is generally recognized as particularly suitable for or readily adaptable to sporting purposes” and is thus importable under 18 U.S.C. Section 925(d)(3). . . [The ATF] denied permission to Gilbert to import the USAS-12. . . On March 24, 1988, plaintiff filed in this Court a complaint seeking: (1) mandamus relief; (2) a determination by this Court that defendant’s actions were arbitrary, capricious, and an abuse of discretion; (3) a determination by the Court that defendant’s conclusions were unwarranted by the facts and were not based on any facts; (4) a determination by this Court that the defendant violated its rights to due process of law and equal protection of the laws, rights which are guaranteed by the Fifth Amendment; and (5) a determination by this Court that defendant violated plaintiff’s Second Amendment right to keep and bear arms.

STATUTORY HISTORY

In 1968, Congress enacted the Gun Control Act which was designed to keep firearms out of the hands of those not legally entitled to possess them. . . In 1968, Section 925(d) of the Act provided in pertinent part as follows:

The Secretary [of the Treasury] *may* authorize a firearm or ammunition to be imported or brought into the United States or any possession thereof if *the person importing or bringing in the firearm or ammunition establishes to the satisfaction of the Secretary that the firearm or ammunition. . .*

(3) is of a type that does not fall within the definition of a firearm as defined in Section 5845(a) of the Internal Revenue Code of 1954 [the National Firearms Act] and is generally recognized as particularly suitable for or readily adaptable to sporting purposes, excluding surplus military firearms.

18 U.S.C. § 925(d)(3) (emphasis added).

The clear intent of Section 925(d)(3) was to “curb the flow of surplus military and other firearms being brought into the United States which are not particularly suitable for target shooting or hunting.” 1968 U.S. Code Cong. & Admin. News 2112, 2167. . . [T]he apparent general criteria relied upon from 1968 through 1986 for determining what is “generally recognized” as a sporting firearm is as follows:

The Director may compile an Importation List of firearms and ammunition which he determines to be generally recognized as particularly suitable for or readily adaptable to sporting purposes. . . No firearm shall be placed on the Importation List unless it is found that:

- (1) the caliber or gauge of the firearm is suitable for use in a recognized shooting sport,
- (2) the type of firearm is generally recognized as particularly suitable or readily adaptable to such use, and
- (3) the use of the firearm in a recognized shooting sport will not endanger the person using it due to deterioration through such use or because of workmanship, materials or design.

Specifically, with regard to shotguns, the two factors [of concern] were the lack of easy convertability to full automatic and the barrel and overall length of the weapon (18-inch barrel length and 26-inch overall length for shotguns).

In 1986, Section 925(d) of the Gun Control Act was amended by the Firearms Owner's [sic, Owners'] Protection Act to read in pertinent part as follows:

The Secretary *shall* authorize a firearm or ammunition to be imported or brought into the United States or any possession thereof if the firearm or ammunition. . .

(3) is of a type that does not fall within the definition of a firearm as defined in *Section 5845(a) of the Internal Revenue Code of 1954* and is generally recognized as particularly suitable for or readily adaptable to sporting purposes, excluding surplus military firearms, *except in any case where the Secretary has not authorized the importation of the firearm pursuant to this paragraph, it shall be unlawful to import any frame, receiver, or barrel of such firearm which would be prohibited if assembled.*

18 U.S.C. § 925(d) (3) (emphasis added).

The amendments to the Statute provide that the Secretary [of the Treasury] shall (instead of "may") authorize the importation of firearms generally recognized as particularly suitable for or readily adaptable to sporting purposes. Additionally, the amendments whittled away at the Secretary's discretion by eliminating the requirement that the importer of firearms establish to the satisfaction of the Secretary that the particular firearm sought to be imported is generally recognized as particularly suitable for or readily adaptable to sporting purposes. . .

DISCUSSION

I. Was ATF's Determination That the USAS-12 Shotgun Is Not a "Sporting" Weapon Arbitrary or Capricious?

A. *The Scope and Standard of Review.* As the Magistrate has noted previously, plaintiff has alleged that ATF's determination that the USAS-12 is not a "sporting" weapon was "arbitrary, capricious, an abuse of discretion, in excess of statutory authority, and otherwise not in accordance with law." . . .

B. *"Sporting Purposes" Test.* The statute establishes that a "sporting" firearm is a weapon which is generally recognized as particularly suitable or readily adaptable to sporting purposes. 18 U.S.C. § 925(d) (3). The Bureau claims that in making a

sporting determination it attempts to determine whether the firearm is of a type traditionally used in recognized sporting activities or is as suitable for recognized sporting activities as firearms traditionally used for such activities. . . ATF views the “generally recognized” qualification to require both that the firearm itself or the “type” of firearm to which the subject firearm is being compared have attained general recognition as being particularly suitable for or readily adaptable to sporting purposes, and that a particular use of a firearm have attained general recognition as being a “sporting purpose,” or that an event have attained general recognition as being a “sport,” before those uses and/or events can be “sporting purposes” or “sports” under Section 925(d)(3).¹⁵ . . .

C. *Application of the “Sporting Purposes” Test by ATF to the USAS-12.* As this Court has heretofore stated, ATF, after testing and examining the USAS-12, concluded that due to the weight, size, bulk, designed magazine capacity, configuration, and other factors, Gilbert’s semiautomatic shotgun is not particularly suitable for or readily adaptable to sporting purposes; rather, ATF is of the opinion that the weapon is a semiautomatic version of a selective fire military type assault shotgun. . . The Bureau argues that the aforementioned factors or characteristics provide a rational basis for its determination denying Gilbert permission to import the USAS-12 into the United States. Since the curt administrative denial of Gilbert’s application to import the USAS-12 and the mere reaffirmation of that decision in late March, 1988, . . . ATF has provided this Court with further elucidation of its reasons for denying Gilbert’s application for a permit to import the firearm, as follows:

1. The weight of the weapon, 12.4 pounds, makes it much heavier than traditional 12-gauge sporting shotguns and thus makes it awkward to carry for extended periods, as is required in hunting, and cumbersome to lift repeatedly to fire at multiple small moving targets as used in skeet and trap shooting.

2. The width of the USAS-12 with drum magazine (approximately 6 inches) and the depth with box magazine (in excess of 11 inches) far exceed that of traditional sporting shotguns which do not exceed three inches in width or four inches in depth. The Bureau argues that because of the large size and bulk of the USAS-12, the firearm is extremely difficult to maneuver quickly enough to engage in moving targets as is necessary in most types of hunting, and in skeet and trap shooting.

3. The detachable box (12-cartridge capacity) and the drum magazine (28-cartridge capacity) have larger capacities than those of traditional repeating sporting shotguns which contain tubular magazines with a capacity of three to five cartridges. Additionally, detachable magazines permit more rapid reloading than do tubular magazines. Finally, the few manually operated 12-gauge shotguns which incorporate detachable box magazines are supplied with two (2) cartridge capacity magazines; those 12-gauge semiautomatic and fully automatic shotguns which employ larger capacity detachable magazines are specially designed combat weapons or conventional shotguns modified for law enforcement and military use.

15. Thus, ATF argues that while hunting, and trap and skeet shooting have been recognized shotgun “sports” for centuries, and target shooting a recognized handgun and rifle “sport,” events such as police combat competitions only recently have generated interest outside the military and law enforcement arena and may or may not attain general recognition as “sports.” . . .

4. The combat style pistol grip (located on the bottom of the receiver forward of the buttstock), the barrel-to-buttstock configuration, the bayonet lug, and the overall appearance and general shape of the gun are radically different from traditional sporting shotguns and strikingly similar to shotguns designed specifically for or modified for combat and law enforcement use. Specifically, the pistol grip facilitates the handling of the weapon when fired from positions other than the shoulder and also facilitates control of the weapon with one hand while traditional shotgun sports generally involve firing from the shoulder. Additionally, the bayonet is a distinct military feature which has no sporting application.

In addition to giving further explanation of the specific reasons for denying to Gilbert a permit to import the USAS-12, ATF spokesman Edward M. Owen has stated that ATF relied in part on Gilbert's own marketing and advertising literature, which listed the various combat uses of the weapon (but listed no recognizable sporting uses), in determining that the USAS-12 was not a sporting shotgun. The Bureau argues that the representations, concerning the weapon, made by Gilbert in its advertising literature, together with the physical characteristics of the firearm, indicate that its determination to deny the application to import the weapon was rational, based on relevant factors, and was not a clear error in judgment. . .

D. Decision. It is clear to this Magistrate that the 1986 amendments to Section 925(d) (3) of the Gun Control Act were meant not only to liberalize importation of firearms but also to ease the burden on importers by eliminating the requirement that the importer satisfy the Secretary that the firearm sought to be imported is particularly suitable or readily adaptable to sporting purposes. Nevertheless, there is left the basic and undeniable requirement that the particular firearm sought to be imported must be particularly suitable or readily adaptable to sporting purposes.

. . . Although the factors relied upon by ATF, to the Court's knowledge, have never been previously cited by ATF as factors determinative of the sporting purposes test, they are characteristic of all firearms and thus, the Magistrate opines that they are logical characteristics for ATF to consider in determining whether a particular firearm is particularly suitable for or readily adaptable to sporting purposes. Given the narrow standard by which this Court must judge agency decisions, the undersigned Magistrate cannot determine that the Bureau's decision to deny permission to Gilbert to import the USAS-12 is arbitrary and capricious. The administrative record supports the agency's determination that the overall appearance and design of the weapon (especially the detachable box magazine and the pistol grip) is that of a combat weapon and not a sporting weapon. In fact, the USAS-12 was specifically marketed by Gilbert as a military and law enforcement weapon. Accordingly, the Magistrate finds that there was a rational relationship between the facts and the decision made by the Bureau not to allow the importation of the USAS-12, and therefore, the Court does not find the decision to be arbitrary or capricious. It is of no moment that the administrative record might also support the opposite conclusion that the USAS-12 is suitable for use as a sporting weapon. This Court need only decide that a rational basis exists for the agency's decision and having done so, the Magistrate turns to Gilbert's remaining arguments. . .

III. CONSTITUTIONAL CLAIMS . . .

B. *Second Amendment.* The Second Amendment to the United States Constitution guarantees to all Americans the right “to keep and bear arms” and further provides that this right “shall not be infringed.” Plaintiff alleges that the right to keep and bear arms includes the right to manufacture, import, sell and purchase firearms and to the extent that 18 U.S.C. § 925(d)(3) allows ATF not to authorize importation of the USAS-12 on the ground that it is not a sporting shotgun, said code section infringes upon the right of the people to keep arms and is thus unconstitutional void. In the context of this case, the Magistrate is concerned with whether the Second Amendment’s right to keep arms necessarily involves the right to import firearms. The plaintiff, of course, desires to bootstrap the right to import firearms to the right to keep and bear arms. However, Gilbert has cited this Court to no authority, and the Court finds none, where it has been found that the right to keep and bear arms necessarily involves, or extends to, the right to import arms. . .

NOTES & QUESTIONS

1. **CQ:** In light of the constitutional protection recognized by *District of Columbia v. Heller*, 554 U.S. 570 (2008) (Ch. 6.A) to handguns commonly used for self-defense, is the sporting use filter now irrelevant? Unconstitutional? Could a firearm like the USAS-12 shotgun be subject to regulation or prohibition on a different basis, such as that it is a type of “dangerous and unusual weapon” that is not in common use today by law-abiding citizens for self-defense or other purposes?

2. **Import rights and tariffs.** If there is a right to own certain items—such as books, printing presses, contraceptives, or guns—is there a correlative right to import them? Can the government ban the importation of a particular item, even if the government could not constitutionally prohibit its domestic sale or possession? *Andrews v. State*, 50 Tenn. (3 Heisk.) 165 (1871) (Ch. 16.H.1), suggested that the right to keep arms includes the right to buy arms. Does this extend to imports? What about heavy taxes on imported items (such as guns or books) if the tax is intended as a protectionist measure to boost the domestic industry? In the Early Republic, tariff policies were protectionist, with the objective of encouraging the growth of domestic American industries, including the firearms industry. See Stephen Halbrook & David B. Kopel, *Tench Coxe and the Right to Keep and Bear Arms in the Early Republic*, 7 Wm. & Mary Bill Rts. J. 347 (1999). Because the early presidents who implemented the protectionist import tax on firearms all supported the right to arms, is it reasonable to conclude that federal taxes on gun imports, such as a 10-percent tariff, do not violate the Second Amendment? Indeed, one of the important reasons for the GCA’s import bans was pure protectionism for U.S. gun manufacturers. Does this motive make the import restrictions more or less legitimate, from a Second Amendment viewpoint?

7. GCA Penalties

Knowledge of sentencing law is essential to the practice of criminal law. In the case of the GCA, the stakes can be very high. The penalties for violation of

various provisions of the GCA are set out in § 924. The summary below describes those penalties. The summary also indicates the section whose violation triggers each penalty. Some of the penalties overlap. There are harsh mandatory minimums in subsections (c), (e), and (o) for use of a gun in a crime and for possession of a firearm by a person with three previous convictions. For most of the rest of the GCA, the penalties do not have a minimum term of imprisonment but do allow for lengthy imprisonment. Section 924(c) appears frequently in federal criminal law practice, as it imposes severe mandatory sentences for use of a gun in a crime, and the sentence must be consecutive to the sentence for the underlying crime.

a. Statutory Penalties in § 924

(a) (1) Up to 5 years: Making a false statement with respect to any FFL records required by the GCA (multiple sections). Transporting any NFA item interstate without advance permission from ATF (e.g., taking your short-barreled rifle from your home in Kansas into Texas) (922(a)(4)). A common carrier delivering a package containing a firearm without obtaining a written receipt (922(f)). Possessing a firearm with an altered or obliterated serial number (922(k)). Possessing a firearm within gun free school zones (922(q)).

(2) Up to 10 years: Making any false statement to an FFL affecting the legality of the transaction (922(a)(6)). Transferring a firearm or ammunition to any person whom there is reasonable cause to believe is a prohibited person (922(d)). Possession of a firearm by a prohibited person (922(g)). Possessing or receiving a firearm in the course of employment if the employer is a prohibited person (922(h)). Transporting or receiving in interstate commerce any firearm with reasonable cause to believe it is stolen (922(i)). Possessing, concealing, selling a stolen firearm (922(j)). Possessing a “machinegun” made after May 19, 1986 (922(o)).

(3) Up to 1 year: FFL making a false statement on required records or failing to maintain records per (922(m)).

(4) Possessing a firearm in a gun free school zone is a misdemeanor but shall be punished by up to 5 years in prison. The sentence shall not be concurrent with any other sentence (922(q)).

(5) Up to 1 year: Violating the procedures of the National Instant Check System, (922(t)). Note that most attempts to evade the system (e.g., buying a gun with a false ID) would be covered by other penalties, such as making a false statement under 922(a)(6).

(6)(A) Up to 1 year: A juvenile who possesses a handgun in violation of (922(x)). Except only probation if the juvenile has never been convicted of anything that would be criminal for an adult to do and has never been adjudicated a juvenile delinquent for similar conduct.

(B) Up to one year: A person other than a juvenile who violates the juvenile handgun law, such as by providing a handgun. Unless the person knew that the juvenile intended to use it in a crime of violence—if so, up to 10 years.

(7) Up to 3 years: Possession of body armor by a person convicted of a violent crime punishable by more than one year of prison (931).

(8) Up to 15 years: knowingly violating 922(d) or (g),

(b) Up to 10 years: Shipping, transporting, or receiving a firearm knowing or with reasonable cause to believe it will be used for a crime punishable by over a year in prison.

(c)(1)(A) An additional sentence of at least 5 years: Using or carrying a firearm in any crime of violence or drug trafficking crime. Or 7 for brandishing, 10 for discharge.

(B) At least 10 years: If the firearm is a short-barreled rifle or short-barreled shotgun.

(ii) at least 30 years: If a machinegun, destructive device, or silencer.

(C) at least 25 years: If the person has a prior conviction under 924(c), and

(ii) Mandatory life sentence: If the person with the prior conviction used a machinegun, destructive device, or silencer.

(D) No probation for violations of 922(c), and no concurrent sentences. . .

(3) A “crime of violence” is a felony with an element of the use, attempt, or threat of physical force against person or property, or by its nature involves a substantial risk that physical force may be used in the course of the offense.

(4) “brandish” includes showing or referencing the firearm in order to intimidate.

(5) At least 15 years: Use of armor piercing ammunition in any crime of violence or drug trafficking crime (929). Unless some other part of the crime has a higher mandatory minimum. If death results, then life in prison or capital punishment for murder, the usual statutory penalty for manslaughter (15 for voluntary, 8 for involuntary).

A person may be convicted of “using” a firearm in a crime under § 924(c) even if the firearm was not used as a weapon—for example, if the firearm were traded for illegal drugs. *See Smith v. United States*, 508 U.S. 223 (1993). However, in *Bailey v. United States*, 516 U.S. 137 (1995), the Court ruled that mere ownership or possession of a gun while committing a crime was not sufficient reason for a 924(c) conviction. Before *Bailey*, if a college student selling drugs had an unloaded rifle in an upstairs closet while selling marijuana in his downstairs living room, federal prosecutors could charge him not only with drug dealing but also with using a weapon in the commission of a crime. In 1998, Congress diminished that exposure by enacting the “Bailey Fix” which states that possession of the firearm must be “in furtherance of any such crime.” 18 U.S.C. § 924(c). The mandatory sentence under 924(c) increases to 30 years if the offender uses a machine gun (regulated under the NFA). However, a defendant can only be sentenced for using a machine gun in a crime if the jury finds that the gun is a machine gun; a judicial finding in a sentencing decision is insufficient. *Castillo v. United States*, 530 U.S. 120 (2000).

(d) Forfeitures.

(1) The following may be seized and forfeited: Firearms or ammunition involved in false statements, delivered by a common carrier without collecting a written receipt, possessed by prohibited persons, stolen, illegally imported, or in violation of anything else in the GCA, or violation of any other criminal

law of the United States, or intended to be used in any crime of violence or drug trafficking crime. The last item must be demonstrated by clear and convincing evidence. Upon acquittal or dismissal of charges, the firearms and ammunition shall be returned, as long as the owner can legally possess them. Forfeiture proceedings must be initiated within 120 days of seizure.

(2) In any action for return of seized firearms or ammunition, the prevailing owner “shall” be awarded reasonable attorney’s fees. Attorney’s fees are also available against forfeitures that were vexatious, frivolous, or in bad faith. Forfeiture actions must specifically identify the firearms or quantities of ammunition.

(3) Forfeitures for certain record-keeping or interstate commerce offenses when “involved in a pattern of activities.”

(e) **Prior convictions.** At least 15 years: Possession of a firearm or ammunition by a person with three prior convictions for violent felonies or serious drug offenses, committed on occasions different from one another. No suspended sentence or probation. Further reading: Jondavid S. DeLong, *What Constitutes “Violent Felony” for Purpose of Sentence Enhancement under Armed Career Criminal Act (18 U.S.C.A. § 924(e)(1))*, 119 A.L.R. Fed. 319.

(f) Up to 5 years: Possessing a firearm in violation of the Undetectable Firearms Act (922(p)).

(g) Up to 10 years for leaving one’s state to attempt to illegally acquire a firearm in furtherance of racketeering, federal or state drug crime, or a crime of violence.

(h) Up to 15 years for transferring a firearm knowing it will be used in a crime of violence or drug trafficking crime.

(i) Up to 10 years for stealing a firearm from an FFL.

(j) Killing a person with a firearm in the course of a subsection (c) crime: life imprisonment or capital punishment, if murder. If manslaughter, the ordinary penalty—up to 15 years for voluntary, 8 for involuntary.

(k)-(n) Up to 15 years: Smuggling a firearm into or out of the U.S. for use in controlled substances crime or crime of violence. Up to 10 years: Stealing a firearm. Stealing a firearm from a licensed importer, manufacturer, dealer, or collector. Traveling out of one’s State in order to acquire a firearm in violation of the GCA.

(o) Up to 20 years: Conspiring to commit an offense under subsection (c) (e.g., use of a firearm in a violent or drug crime). If the conspiracy involved a machine-gun, destructive device, or silencer, imprisonment for any term of years or life.

(p) FFLs who fail to provide handgun buyers with some type of lock may have their FFL administratively suspended for up to six months or revoked.

b. The Sentencing Guidelines¹⁴

The federal sentencing guidelines were designed to provide federal judges with fair and consistent sentencing ranges to consult when sentencing a defendant in federal court. The guidelines are promulgated by the United States

14. This Section was drafted by Nathan Robert Cowper, J.D. University of Wyoming College of Law 2021.

Sentencing Commission (USSC). The USSC was created by Congress in the Sentencing Reform Act, which was passed as a part of the Comprehensive Crime Control Act of 1984. Prior to the creation of the USSC and guidelines, federal court judges were given broad discretion in sentencing defendants. This discretion created wide disparities in sentencing; some judges were tough, others lenient. Some took a defendant's character into account, and some did not. Congress sought to provide a determinate sentencing scheme to eliminate disparity, create certainty, and reduce crime.

The USSC is an independent agency of the judicial branch, with seven appointed commissioners. Besides creating sentencing guidelines, the USSC and staff are also tasked with advising and assisting Congress and the Executive in the development of effective crime policy and in distributing information relating to federal crime and sentencing issues. 28 U.S.C. §§ 991-98.

The sentencing guidelines are designed to help federal judges make sentencing determinations. The guidelines provide base offense levels for specific crimes and adjustments made for aggravating circumstances. The central document within the guidelines is the sentencing table, which determines the duration of imprisonment by correlating an offense level with a criminal history category. The vertical axis of the table provides a numerical rating for the seriousness of the defendant's conduct in the instant federal offense. The guidelines assign an offense level to federal crimes ranging from 1 to 43. The horizontal axis of the table provides a roman numeral measuring the severity of the defendant's prior criminal conduct, from I to VI. The intersection of the offense level and the criminal history category provides the discretionary range of imprisonment in months. USSC Guidelines Manual 2018, Sentencing Table. A federal judge may sentence the defendant within the box's guideline range but retains limited authority to increase or decrease the term of imprisonment.

The Supreme Court upheld the constitutionality of the sentencing guidelines against claims that they violated the Nondelegation Doctrine and the Separation of Powers. *Mistretta v. United States*, 488 U.S. 361 (1989). Justice Scalia dissented, opining that mandatory "guidelines" were laws, and Congress could not delegate so much lawmaking power to "a sort of junior-varsity Congress." *Id.* at 427 (Scalia, J., dissenting). Sixteen years later, the Supreme Court held that mandatory application of the guidelines violated the Sixth Amendment's right to trial by jury. Federal judges must take the guidelines into account when sentencing but are not bound to apply them strictly. *United States v. Booker*, 543 U.S. 220 (2005). *Cf. Gall v. United States*, 552 U.S. 38 (2007) (federal judges have significant discretion in imposing sentences under the guidelines). Despite these clear holdings, federal circuit courts look unfavorably upon a sentence that departs from the guidelines. *See Carrie Leonetti, De Facto Mandatory: A Quantitative Assessment of Reasonableness Review After Booker*, 66 DePaul L. Rev. 51 (2016).

Sentencing information for firearm-related crimes is located in the U.S. Sentencing Guidelines Manual §§ 2K2.1 to 2K2.6 (U.S. Sentencing Commission 2025). The guidelines provide a base offense level for specific firearm-related crimes and increase the offense level for the number of firearms involved in the crime. § 2K2.1(b)(1). The manual increases the offense by four levels when a firearm is used in connection with another felony. § 2K2.1(b)(6)(B).

The USSC also maintains a record of all reports and notices related to firearms. These reports provide, among other things, quick facts related to firearm offenses and primers for a general overview of major firearm statutes and sentencing guideline issues related to firearms.¹⁵

8. *Restoration of Rights*

When Congress enacted the GCA, it provided a means for convicted felons and misdemeanants to petition for the restoration of their rights—also known as “relief from disabilities.” Under the statutory structure, the ATF has discretion to grant relief. Such relief would typically require, at a minimum, that the petitioner has been law-abiding for many years. The 1968 restoration of rights provision only applied to people with criminal convictions. The 1986 FOPA reforms allowed petitions by all categories of prohibited persons—such as someone who has long been recovered from mental illness. 18 U.S. Code § 925(c).

Since 1993, congressional appropriations riders have forbidden the ATF from spending appropriated funds to process and decide applications for relief from disabilities programs.¹⁶ Thus, a person convicted of a federal crime was deprived of any process for relief.

In 2025, a Department of Justice Interim Final Rule withdrew the Attorney General’s delegation to ATF of authority to process applications for relief from disability. The appropriations rider on rights restoration only limits ATF, not the DOJ as a whole. Thus, the Department of Justice has begun processing applications for relief from disability. 90 Fed. Reg. 13080 (Mar. 20, 2025). A Notice of Proposed Rulemaking issued in July 2025 set forth criteria for DOJ decisions on applications for relief from disability. The proposal puts the burden on the applicant to prove nondangerousness to public safety. Among the “presumptively disqualifying” convictions, for which relief would be granted in extraordinary cases, a “crime of violence,” felony sex offenses, and “threatening or stalking offenses and certain firearm-related offenses that are most often associated with violence or dangerousness.” 90 Fed. Reg. 34394 (July 22, 2025). The U.S. Department of Justice maintains a webpage that provides updates on the status of this implementing this restoration program. U.S. Dep’t Just., Fed. Firearm Rts. Restoration, <https://www.justice.gov/ffrr>.

The answer is more complicated for restoration of rights for state crimes. Given the three decades of absence of funding of the ATF relief from disabilities process, ATF has accepted *some* state restorations of rights determinations as sufficient to provide relief from GCA disabilities. However, restoration of rights under state law will not automatically restore the client’s rights under the Gun Control

15. Firearm sentencing topics are available at <https://www.ussc.gov/topic/firearms>.

16. See *United States v. Bean*, 537 U.S. 71 (2002) (discussing history of the appropriations rider; holding that courts may not review the ATF’s failure to consider a petition for relief from disabilities).

Act. Individuals with state-restored rights still might be deemed a prohibited person in possession of a firearm under the GCA.¹⁷

Consider the defendant who never loses any state rights because of her state court conviction. Perhaps she was convicted of a misdemeanor, and her state inflicts no loss of rights for misdemeanors. But her misdemeanor is one for which the GCA imposes a lifetime federal ban on gun possession. Because she never lost her state rights, her rights cannot be “restored.” And therefore, she can never be relieved from the federal prohibition, other than by pardon or expungement.¹⁸

Under ATF interpretation, if a state restores a person’s right to arms, but does not allow that person to exercise another right, such as holding elected office, the person is still prohibited by federal law from possessing arms. Thus, the Tenth Circuit certified to the New Mexico Supreme Court the question of whether an individual whose arms rights had been restored could be elected to public office in the State. The affirmative answer saved the individual from conviction as a prohibited person in possession of a firearm.¹⁹

If a state law says that a former convict may possess long guns anywhere, and may possess handguns at his home or business, but he may not be issued a handgun carry permit, the person may be federally prosecuted for possessing a long gun, since the restoration of his state rights did not include the full scope of firearms rights. *Caron v. United States*, 524 U.S. 308, 311 (1998).

Most but not all states have some sort of restoration of rights process, although not necessarily one that satisfies the GCA. In states with no statutory process for restoration of rights, pardon or expungement of criminal convictions is theoretically available, but rarely attainable. For non-criminal prohibited persons, such as anyone ever committed to a mental institution, the only remedy for the individual may be an as-applied lawsuit claiming infringement of Second Amendment rights. Ch. 7.D.

Further reading: Richard Belfiore, *State Restoration of Federal Felon’s Civil Rights as Nullification of Conviction under 18 U.S.C.A. § 921(a)(20) Which Defines Conviction for Purposes of Penalizing Possession of Weapon by Convicted Felon Pursuant to 18 U.S.C.A. § 922(g)(1)*, 117 A.L.R. Fed. 247 (1994).

17. See, e.g., *Wyoming ex rel. Crank v. United States*, 593 F.3d 1236, 1247 (10th Cir. 2008) (express restoration of firearms rights pursuant to state law did not protect the defendant from being federally prosecuted as a prohibited person in possession of a firearm), and *United States v. Chovan*, 735 F.3d 1127 (9th Cir. 2013) (California’s automatic restoration of rights and other statutory remedies after misdemeanor domestic violence conviction insufficient under federal law.)

18. See *Logan v. United States*, 552 U.S. 23 (2007). This strange result is not inconsistent with the statutory language, which is poorly written. The federal domestic violence misdemeanor lifetime prohibition does not apply to “an offense for which the person has been pardoned or has had civil rights restored (if the law of the applicable jurisdiction provides for the loss of civil rights under such an offense) unless the pardon, expungement, or restoration of civil rights expressly provides that the person may not ship, transport, possess, or receive firearms.” 18 U.S.C. § 921(a)(33)(B)(ii). See also *United States v. Brailey*, 408 F.3d 609 (9th Cir. 2005) (expressing same Catch-22 rule that rights not taken away can never be restored.)

19. *United States v. Reese*, 505 Fed. Appx. 733 (10th Cir. 2012) (Gorsuch, J.).

9. *Interstate Transportation of Firearms*

Federal law provides a uniform floor of firearms regulation. State laws may supplement the federal rules and impose additional, more stringent restrictions on firearms possession and use. Restrictive local and state laws raise issues for interstate travelers. In 1986 Congress amended the GCA to incorporate the Firearms Owners' Protection Act. One goal of FOPA was to address these problems surrounding interstate travel with firearms. The material below highlights some of the practical limits of FOPA's traveler protection.

Revell v. Port Authority of New York and New Jersey

598 F.3d 128 (3d Cir. 2010)

JORDAN, Circuit Judge.

Gregg C. Revell appeals from the dismissal of his claims, brought pursuant to 42 U.S.C. § 1983, seeking to impose liability upon the Port Authority of New York and New Jersey ("Port Authority") and Port Authority Police Officer Scott Erickson for arresting him under New Jersey's gun laws and seizing his firearm and ammunition. According to Revell, his arrest was unlawful because he was in compliance with a provision of the Firearm Owners' Protection Act ("FOPA"), 18 U.S.C. § 926A, which allows gun owners licensed in one state to carry firearms through another state under certain circumstances. Because we conclude that, at the time of his arrest, Revell's conduct did not bring him within the protection of that statute, we will affirm both the dismissal of his § 926A-based claim and the grant of summary judgment to the Port Authority and Erickson on Revell's closely related Fourth Amendment claim. We will likewise affirm the grant of summary judgment against Revell on his due process claim under the Fourteenth Amendment.

I. BACKGROUND

A. Revell's Arrest

On March 31, 2005, Revell, a resident of Utah, embarked on a flight from Salt Lake City to Allentown, Pennsylvania, via Minneapolis/St. Paul and Newark, New Jersey. When he arrived at the Northwest Airlines counter in the Salt Lake City Airport, he checked his luggage through to his final destination and declared that, in the luggage, he was carrying an unloaded firearm contained in a locked hard case and ammunition in a separate locked hard case. He signed an orange firearm declaration tag, which was placed inside the locked hard case containing the firearm. That was apparently the last thing on the trip that went as expected. The several mishaps that followed ultimately relate to the accessibility of the firearm and ammunition and are thus key to this dispute.

Because his flight into Newark was late, Revell missed his connection from Newark to Allentown. He booked the next flight to Allentown, which was scheduled to leave Newark at 8 p.m. that evening, but, after the airline changed arrangements, the passengers scheduled for that flight were asked to board a bus, instead of a plane, headed for Allentown. Revell got on the bus; however, when he learned

that his luggage was not on board, he got off to locate it.² By the time he retrieved his luggage, he had missed the bus, and no other connections to Allentown were available. He then went directly to the Newark Airport Sheraton Hotel in a hotel shuttle, taking his luggage with him. The driver of the shuttle van placed Revell's luggage, which contained the locked hard case containers, in the rear storage area of the van, which was not immediately accessible from the passenger compartment where Revell was seated. Revell stayed at the hotel overnight but did not open either of the locked containers during his stay.

The next morning, he took the hotel's airport shuttle back to the Newark Airport and, again, his luggage was placed out of his reach in the rear of the shuttle. Upon arriving at the airport around 8:30 a.m., he proceeded to the ticket counter to check his luggage and declared that he was carrying an unloaded firearm in a locked hard case and ammunition in a separate locked hard case. Revell was told to take his luggage to the Transportation Security Administration ("TSA") area so that it could be x-rayed. After the luggage went through the x-ray machine, the TSA agent at the other end of the machine took the hard cases out and asked Revell for the key to them, which Revell provided. The TSA agent opened the cases using Revell's key and removed the firearm and ammunition. The orange declaration sheet from Salt Lake City was still in the case with the firearm.

About twenty minutes later, several Port Authority officers, including Officer Erickson, escorted Revell to an area away from other passengers where they questioned him about the firearm and ammunition. Revell explained that he had declared his weapon and ammunition, and that he was merely passing through New Jersey en route to Allentown, Pennsylvania. He also showed the officers his Utah concealed firearm permit and his driver's license. When Erickson questioned Revell about why he had the firearm, Revell explained that he was traveling to Pennsylvania to pick up a car to bring back to Utah and that "he was going to need the weapon for protection" as he drove the car home. . . . Revell also informed Erickson that, upon missing his flight the day before, he had taken possession of his bag with the firearm in it and had gone to a hotel in Newark to stay for the night. Erickson asked Revell whether he had authority to carry the firearm in Pennsylvania, but Revell did not respond.³

Erickson arrested Revell for possession of a handgun without a permit in violation of N.J. Stat. Ann. § 2C:39-5(b) and for possession of hollow-point ammunition in violation of N.J. Stat. Ann. § 2C:39-3(f). Revell was handcuffed, held overnight at the Port Authority jail, and then transferred to the Essex County, New Jersey, Jail, where he was incarcerated for three days until he was released on bond. Four months later, on August 2, 2005, the Essex County prosecutor administratively

2. In a triple-whammy for Revell, not only had the airline made him miss his connection and then put him on a bus instead of a plane, a Northwest Airlines employee had mistakenly checked his luggage to Newark, instead of Allentown, as his final destination.

3. At his deposition, Revell stated that he did not check to make sure that he could carry his firearm in Pennsylvania prior to traveling there but believed that it was legal for him to carry a weapon there because the instructor for his concealed firearm permit class did not mention that he could not do so.

dismissed all of the charges against him. However, Revell's firearm, ammunition, holster, locks, and hard cases, which were seized at the time of his arrest, were not returned until July 24, 2008, more than two years after the ill-fated trip and approximately a year after he filed his amended complaint in this action.

B. Revell's Complaint

Understandably troubled about his and his property's treatment, Revell brought the present § 1983 case, alleging that the Port Authority and Erickson had violated his rights under § 926A of FOPA. In essence, § 926A allows a person to transport a firearm and ammunition from one state through a second state to a third state, without regard to the second state's gun laws, provided that the traveler is licensed to carry a firearm in both the state of origin and the state of destination and that the firearm is not readily accessible during the transportation. 18 U.S.C. § 926A. Revell also alleged that the appellees violated his Fourteenth Amendment rights by retaining his firearm, holster, locks, containers and ammunition, thereby depriving him of his property without due process. He sought damages and an injunction requiring the Port Authority to return his property. . .

III. DISCUSSION . . .

A. Section 926A and the Fourth Amendment

Revell challenges both the District Court's dismissal of his § 926A claim and the Court's grant of summary judgment on his Fourth Amendment claim. He asserts that he never should have been required to re-frame his § 926A claim in terms of the Fourth Amendment, since, as he sees it, § 926A provides a federal right that may be remedied by way of § 1983, independent of the Fourth Amendment. As to his Fourth Amendment claim, Revell asserts that the District Court erred in concluding that probable cause existed for his arrest. More specifically, and returning to the same § 926A theme, he says that the District Court incorrectly determined that he did not fall within the protection provided by that statute. Revell does not dispute that his conduct violated New Jersey law but instead claims that he was not subject to arrest because he complied with § 926A and that § 926A preempts New Jersey's gun laws under the circumstances presented here. He also challenges the District Court's conclusion that Erickson was entitled to qualified immunity against the Fourth Amendment claim.

In order for Revell to prevail either on the theory that he had a right under § 926A that can be remedied through § 1983 or on the theory that the Fourth Amendment should have protected him from arrest because § 926A gave him a right to transport his gun, he must first establish that he complied with the conditions set forth in § 926A so as to be entitled to its protection. Accordingly, we begin our analysis with the question of whether Revell was in compliance with § 926A when he was arrested in New Jersey.

Section 926A of FOPA, entitled "Interstate transportation of firearms," provides:

Notwithstanding any other provision of any law or any rule or regulation of a State or any political subdivision thereof, any person who is not otherwise

prohibited by this chapter from transporting, shipping, or receiving a firearm shall be entitled to transport a firearm for any lawful purpose from any place where he may lawfully possess and carry such firearm to any other place where he may lawfully possess and carry such firearm if, during such transportation the firearm is unloaded, and neither the firearm nor any ammunition being transported is readily accessible or is directly accessible from the passenger compartment of such transporting vehicle: Provided, That in the case of a vehicle without a compartment separate from the driver's compartment the firearm or ammunition shall be contained in a locked container other than the glove compartment or console.

18 U.S.C. § 926A. It is clear from the statute that a person transporting a firearm across state lines must ensure that the firearm and any ammunition being transported is not “readily accessible or . . . directly accessible from the passenger compartment of [the] transporting vehicle.” *Id.* Looking solely at the allegations of Revell’s original complaint, it is also clear that what happened here does not fall within § 926A’s scope because his firearm and ammunition were readily accessible to him during his overnight stay in New Jersey.

Revell attempts to invoke the protection of the statute by alleging that “[d]uring the transportation of the firearm, neither the firearm nor the ammunition were readily accessible or directly accessible from the passenger compartment of the aircraft or the bus [that he took to the hotel].” . . . But only the most strained reading of the statute could lead to the conclusion that having the firearm and ammunition inaccessible while in a vehicle means that, during the owner’s travels, they can be freely accessible for hours at a time as long as they are not in a vehicle. The complaint reveals that Revell’s luggage containing the firearm was, in fact, available to him while he was at the hotel. He alleged that, “[a]fter retrieving his bag, because there were no more connections to Allentown until 9:45 a.m. the following morning . . . , [he] went directly to, and stayed the night at, the Airport Sheraton Hotel.” . . . He further alleged that he returned with his luggage directly to the airport the next day and that a TSA agent, after x-raying the luggage, opened it with a key that Revell gave him. Taking those facts as true, it is clear that the gun and ammunition were readily accessible to Revell during his stay in New Jersey and, thus, by the allegations of his own complaint, he was not within the scope of § 926A. Dismissal of the § 926A claim was therefore proper.

Turning to the summary judgment motion on Revell’s Fourth Amendment claim, the depositions filed in support of that motion serve to confirm the conclusion that Revell had access to his gun and ammunition, contrary to § 926A’s requirement. Erickson testified that, under questioning, Revell said he had been forced to stay overnight at a hotel in Newark because he had missed his flight. Erickson also testified that Revell acknowledged he “had the firearm with him when he left for Newark, that he had picked up the bag and taken it with him.” . . . Revell’s own deposition further confirms that, upon missing his flight to Allentown, he retrieved his luggage, took a shuttle to a nearby hotel, and then returned to the airport the following morning with his bags.

Revell thus had access to his firearm and ammunition during his stay at the New Jersey hotel, whether or not he in fact accessed them and regardless of whether they were accessible while he was traveling by plane or van. That crucial fact takes Revell outside the scope of § 926A’s protection, as the District Court correctly

noted.¹⁵ . . . Accordingly, Revell was subject to arrest for violating New Jersey's gun laws. We will therefore affirm the District Court's grant of summary judgment on his Fourth Amendment claim.

Although we conclude that Revell fell outside of § 926A's protection during his stay in New Jersey, we recognize that he had been placed in a difficult predicament through no fault of his own. However, Section 926 clearly requires the traveler to part ways with his weapon and ammunition during travel; it does not address this type of interrupted journey or what the traveler is to do in this situation. Stranded gun owners like Revell have the option of going to law enforcement representatives at an airport or to airport personnel before they retrieve their luggage. The careful owner will do so and explain his situation, requesting that his firearm and ammunition be held for him overnight.¹⁸ While this no doubt adds to the inconvenience imposed upon the unfortunate traveler when his transportation plans go awry, it offers a reasonable means for a responsible gun owner to maintain the protection of Section 926 and prevent unexpected exposure to state and local gun regulations. . .

IV. CONCLUSION

Section 926A does not apply to Revell because his firearm and ammunition were readily accessible to him during his stay in New Jersey. That conclusion is fatal to his § 926A claim and the associated Fourth Amendment claim. We accordingly affirm the District Court's dismissal and grant of summary judgment, respectively, on those claims. We also affirm the District Court's grant of summary judgment on Revell's due process claim because he did not take advantage of state procedures available to him for the return of his property.

15. With regard to whether probable cause existed for his arrest, Revell attempts to raise factual disputes concerning what Erickson knew at the time he arrested Revell, arguing that Erickson did not know what Revell did with his bag when he went to the hotel and that Erickson did not know whether he stayed overnight. First, Revell mischaracterizes the record, as Revell himself testified that he told the officers that he "had been forced to stay in the hotel." . . . Second, even if Erickson were required to consider § 926A's impact in his probable cause analysis, an issue on which we express no holding, Revell told Erickson that he had picked up his luggage from the airport and went to a hotel for the night. A reasonable officer would be entitled to infer from Revell's statements that he had access to his firearm and ammunition while at the New Jersey hotel. Whether Revell in fact accessed them is irrelevant. Given our conclusion that Revell was not protected by § 926A when he was arrested in New Jersey, we need not address the interrelation between § 926A and probable cause. We do, however, note our concern with the implications of Revell's argument that § 926A requires an officer to "investigate the laws of the jurisdiction from which the traveler was traveling and the laws of the jurisdiction to which the traveler was going" prior to making an arrest. (Appellant's Reply Br. at 13.) It seems doubtful that, in passing § 926A, Congress intended to impose upon police officers such a potentially burdensome requirement. *See Torraco v. Port Auth. of N.Y. & N.J.*, 539 F. Supp. 2d 632, 644 (E.D.N.Y. 2008) ("[I]t is simply too much to read into § 926A a Congressional intent to require local police to have on-the-spot knowledge of the firearms laws of all 50 States").

18. Of course, this suggestion leaves unanswered the question of what the gun owner should do if the law enforcement officers decline to assist him. It may be hoped, however, that officers will not compound a blameless owner's problems in that way.

NOTES & QUESTIONS

1. In *Russo v. Port Authority*, 2008 WL 4508558 (E.D.N.Y. Sept. 30, 2008), a similar but more violent exchange took place. The plaintiff attempted to check firearms at LaGuardia Airport for a flight to Florida. Police were called and the plaintiff was arrested. The charges later were dropped. The plaintiff then filed a civil action complaining that he was treated roughly and injured during the arrest. The court dismissed his false imprisonment, malicious prosecution, and excessive force claims on summary judgment.

2. Further reading: Alexander E. Hartzell, *Implied Fundamental Rights and the Right to Travel with Arms for Self-Defense: An Application of Glucksberg to Anglo-American History and Tradition*, 69 Am. U. L. Rev. F. 69 (2020); Fern L. Kletter, *Restrictions on Ownership, Possession, or Sale of Weapons as Infringing Federal Constitutional Right to Travel*, 3 A.L.R. Fed. 3d Art. 8 (2015).

10. Due Process

A *prohibited person* who even briefly handles a firearm or ammunition is subject to fifteen years' imprisonment.²⁰ See Sections C.4, C.7. Normally, the government must prove beyond a reasonable doubt that a defendant engaged in a proscribed act (*actus reus*) coupled with the requisite intent (*mens rea*). Congress *can* make a crime strict liability, with no *mens rea*, but courts are reluctant to infer the elimination of *mens rea* unless Congress is explicit. See, e.g., *Staples v. United States*, 511 U.S. 600 (1994) (Ch. 5.A).

Ninth Circuit Jury Instructions Committee

Manual of Model Criminal Jury Instructions for the District Courts of the Ninth Circuit

(2022) (last updated Sept. 2025)

14.13 Firearms—Unlawful Receipt (18 U.S.C. § 922(g))

The defendant is charged in [Count _____ of] the indictment with receiving [a firearm] [ammunition] in violation of Section 922(g) of Title 18 of the United States Code. For the defendant to be found guilty of that charge, the government must prove each of the following elements beyond a reasonable doubt:

First, the defendant knowingly received [specify firearm] [specify ammunition];

20. Cf. *United States v. Gomez*, 92 F.3d 770 (9th Cir. 1996) (An affirmative defence, where defendant bears the burden, is a question for the jury to determine whether temporary possession during actual threat is justified.)

Second, the [specify firearm] [specify ammunition] had been [[shipped] [transported]] [[from one state to another] [between a foreign nation and the United States]];

Third, at the time the defendant received the [specify firearm] [specify ammunition], the defendant [specify applicable prohibited status from 18 U.S.C. §§ 922(g)(1)-(9)]; and

Fourth, at the time the defendant received the [specify firearm] [specify ammunition], the defendant knew [he] [she] was [specify applicable prohibited status from 18 U.S.C. § 922(g)(1)-(9)].

If a person knowingly takes possession of [a firearm] [ammunition], [he] [she] has “received” it.

a. Proving Mens Rea: *Rehaif v. United States*, 588 U.S. 225 (2019)

Hamid Rehaif was convicted of violating § 922(g) (5), which prohibits firearms possession by unlawful aliens. The defendant requested a jury instruction requiring the government to prove both *knowing* possession of a firearm and ammunition, and that he *knew* that his immigration status was “without authorization.”

Rehaif entered the United States on a nonimmigrant student visa to attend university. After he received poor grades, the university dismissed him and told him that his “immigration status” would be terminated unless he transferred to a different university or left the country. Rehaif did neither.

Rehaif subsequently visited a firing range, where he shot two firearms. The Government learned about his target practice and prosecuted him for possessing firearms as an alien unlawfully in the United States, in violation of § 922(g) and § 924(a) (2). At the close of Rehaif’s trial, the judge instructed the jury (over Rehaif’s objection) that the “United States is not required to prove” that Rehaif “knew that he was illegally or unlawfully in the United States.” The jury returned a guilty verdict, and Rehaif was sentenced to 18 months’ imprisonment.

The Supreme Court reversed Rehaif’s conviction. Thus, for federal criminal cases on direct appeal, relief may be readily available. A conviction obtained without the jury or judge finding beyond a reasonable doubt that the defendant had the requisite *mens rea* should be voided, and the defendant entitled to a new trial.

b. Relief from Conviction after *Rehaif*?

Was *Rehaif* enough of a change in the law that any person previously convicted under the old rule was deprived of a fair trial? “For years, all 12 Courts of Appeals with criminal jurisdiction agreed that a defendant need not know he is a felon to be guilty of being a felon in possession of a firearm under 18 U.S.C. §§ 922(g) (1) and 924(a) (2). This Court came to the opposite conclusion in *Rehaif*. . .” *Greer v. United States*, 593 U.S. 503, 515 (Sotomayor, J. dissenting.)

Justice Alito anticipated the issue in his *Rehaif* dissent,

Tens of thousands of prisoners are currently serving sentences for violating 18 U.S.C. § 922(g). It is true that many pleaded guilty, and for most direct review is over. Nevertheless, every one of those prisoners will be

able to seek relief by one route or another. Those for whom direct review has not ended will likely be entitled to a new trial. Others may move to have their convictions vacated under 28 U.S.C. § 2255, and those within the statute of limitations will be entitled to relief if they can show that they are actually innocent of violating § 922(g), which will be the case if they did not know that they fell into one of the categories of persons to whom the offense applies.

Id. at 260.

Most of the § 922(g) prohibiting categories are defined by a change in status that arises out of a court trial, a noticed hearing, or some other official government action, of which the prohibited person presumably had notice of. Two of those categories do not necessarily put the § 922(g) defendant on such notice. It is not a foregone conclusion that (1) unlawful users or addicts of controlled substances under § 922(g)(3) or (2) someone whose changed from legal to illegal alien or to nonimmigrant visa holder under § 922(g)(5), was given the notice.

A slew of cases still on direct appeal raised *Rehaif*, and none succeeded. *See Greer v. United States*, 593 U.S. 503 (2021) for a full opinion from the Supreme Court on applying the nuances of *Rehaif* and claims of *Rehaif* error.).

For federal prisoners who are past the direct appeal stage, collateral attacks via habeas corpus are allowed in limited circumstances. A federal habeas corpus statute severely restricts collateral attacks made more than one year after time for direct appeal has expired. 28 U.S.C. § 2255 (enacted in 1996, as part of anti-terrorism legislation in response to the 1994 Oklahoma City bombing). There are only three exceptions.

One exception is when a novel post-conviction legal rule is created, and a defendant can show prejudice. But this is a conjunctive, not disjunctive, test. The prisoner challenging his or her conviction must show both prejudice and error. Proving *Rehaif* error is the easy part; the defendant was not informed about the mens rea issue before pleading guilty, or the jury was not fully instructed. But for such an error to be grounds for relief under 28 U.S.C. § 2255, that error must also be prejudicial. This is nearly impossible where the question is whether a defendant knew he was: a convicted felon § 922(g)(1), a fugitive from justice § 922(g)(2), committed to a mental institution by a court § 922(g)(4), dishonorably discharged from the Armed Forces § 922(g)(6), subject to a domestic violence restraining order § 922(g)(8), or a domestic violence misdemeanor § 922(g)(9). Unlike *Rehaif*'s transition to prohibited person based on a change in immigration status, which may or may not have included adequate notice, most of the prohibiting categories under § 922(g) arise out of circumstances where the government can prove, beyond a reasonable doubt, that the defendant was present at a court hearing that rendered them a prohibited person by conviction or commitment, or that he was dishonorably discharged from the military. Ironically, the same meticulous record keeping by American courts that makes it easy to prove *Rehaif* error also makes it difficult to obtain habeas relief if the prohibiting event was something more than a change in immigration status.

Furthermore, it is not entirely clear that *Rehaif* was novel or radical departure from existing law. See, e.g., *United States v. Duell*, 2021 WL 858445 *3 (W.D. Pa. Mar. 8, 2021) (The issue was not so radical that Mr. Rehaif's counsel neglected to raise the issue, the fact that this defendant did not raise the issue on direct appeal in this case means that defendant procedurally defaulted, and so the defendant cannot raise the issue on collateral attack.)

The remaining grounds for post-conviction relief under 28 U.S.C. § 2255 are ineffective assistance of counsel and actual innocence. But ineffective assistance does not include failing to preserve an obviously futile issue under the theory that the Supreme Court might overturn circuit precedent.

Finally, Maryland's intermediate court of appeals declined to apply *Rehaif* to a state law prohibited person conviction: "Because the *Rehaif* decision was based on statutory interpretation of a federal statute, rather than on constitutional law, we are not bound by *Rehaif*'s precedent." *Howling v. State*, 2021 WL 402519 (Md. Ct. Spec. App. Feb. 4, 2021).

NOTES & QUESTIONS

1. Whether prosecuting or defending a case under 18 U.S.C. § 922(g), how would you go about proving (or negating the proof) of knowledge of prohibited status for each of the statutory categories?

- (g) (1): Felons (convicted of a crime punishable by over one year).
- (g) (2): Fugitives from justice.
- (g) (3): Unlawful users or addicts of controlled substances.
- (g) (4): Adjudicated mentally defective or committed to a mental institution.
- (g) (5): Illegal aliens or nonimmigrant visa holders (with exceptions).
- (g) (6): Dishonorably discharged from the Armed Forces.
- (g) (8): Subject to certain domestic violence restraining orders.
- (g) (9): Misdemeanor domestic violence offenders.

11. *Bipartisan Safer Communities Act Amendments*

On June 25, 2022, President Joe Biden signed into law S. 2938, the Bipartisan Safer Communities Act, which made many significant changes to the Gun Control Act. The bill was privately negotiated by a bipartisan group of Senators and immediately brought to the floors of the Senate and House, bypassing the standard process of committee hearings. The excerpt below summarizes the major changes implemented by the Act and some of the issues raised by those changes.

Robert Leider

The Bipartisan Safer Communities Act: Doctrinal and Policy Problems

(The excerpt below is edited from a version prepared for the 2024 annual Supplement to the third edition of this textbook. A modified version of the work appeared in 49 J. Legis. 234 (2023). In March 2025, Robert Leider was appointed Assistant Director/Chief Counsel of ATF.)

INTRODUCTION

The Bipartisan Safer Communities Act injects substantial uncertainty throughout the Gun Control Act. This was the unfortunate byproduct of a rushed and aborted legislative process.

A. Modifying the Rules for Juveniles

The Gun Control Act contains two comprehensive, largely overlapping lists of prohibited persons. The first list is contained in subsection (d). That subsection makes it “unlawful for any person to sell or otherwise dispose of any firearm or ammunition knowing or having reasonable cause to believe that such person” falls into one of the prohibited categories.⁴ The second list is in subsection (g), which makes it unlawful for any person who fits within one of the categories to *possess* a firearm that has ever moved in or affected interstate commerce.⁵ The list of prohibited persons in each list is nearly identical, including, for example, felons, those addicted to drugs, and those unlawfully present in the United States. . .

Strangely, the Bipartisan Safer Communities Act made changes to subsection (d) (sale or transfer) without making the corresponding changes to subsection (g) (possession). Among these changes, it is now unlawful under subsection (d) to make a sale knowing the recipient falls into a prohibiting category for conduct that was done “including as a juvenile.”⁶ Subsection (g), however, does not include this “including as a juvenile” language.⁷ . . . The effect this omission will have is unclear.

. . . Congress made the opposite error for involuntary mental health commitments. Congress added to (d)(4) that a person is prohibited if he “has been adjudicated as a mental defective or has been committed to any mental institution at 16 years of age or older.”⁸ . . .

B. Expanding the Domestic Violence Gun Ban

In 1996, the “Lautenberg Amendment” prohibited the possession of firearms by those convicted of a misdemeanor crime of domestic violence. Congress defined the provision only to apply misdemeanor violent crimes “committed by a current or

4. 18 U.S.C. § 922(d).

5. 18 U.S.C. § 922(g); *see Scarborough v. United States*, 431 U.S. 563, 575 (1977) (interpreting the Act to apply to any former transportation of the firearm in interstate commerce).

6. Bipartisan Safer Communities Act, Pub. L. 117-159, § 12001(a)(1)(A)(1), 136 Stat. 1314, 1322 (2022).

7. *See* 18 U.S.C. § 922(g)(1).

8. Bipartisan Safer Communities Act § 12001(a)(1)(A)(ii), 136 Stat. 1322.

former spouse, parent, or guardian of the victim, by a person with whom the victim shares a child in common, by a person who is cohabiting with or has cohabited with the victim as a spouse, parent, or guardian, or by a person similarly situated to a spouse, parent, or guardian of the victim.” . . .

The Bipartisan Safer Communities Act expands the prohibition to cover some people convicted of domestic violence against dating partners. The amendment applies the domestic violence gun ban to an individual “who has a current or recent former dating relationship with the victim.” . . .

The misdemeanor gun ban applies differently to dating partners than it does to family members. First, unlike for family members, the ban is not retroactive for crimes committed before its effective date. The Lautenberg Amendment was retroactive and did not exempt government employees acting within the scope of their duties. Before 1996, many police officers had pleaded guilty to misdemeanor crimes of domestic violence so they could avoid felony convictions and keep their jobs. These officers found themselves dismissed after the Lautenberg Amendment, which applied to convictions that predated its effective date. The dating partner ban avoids this problem.

Second, the ban is only permanent for recidivists. A person with a single conviction may regain his right to bear arms after five years have elapsed.

C. Increasing Statutory Maximum Penalties for Prohibited Possessors

One of the potentially most serious facets of the current bill is that it increases the maximum penalty for violations of § 922(d) and (g) from 10 years to 15 years.⁹ This is surprising. In recent years, progressives have railed against regulatory gun offenses because the crimes are not violent and minorities face disproportionate punishment. A recent report from the Sentencing Commission showed that a majority of all federal firearm convictions were against Black defendants.¹⁰ Yet, Democrats in Congress increased the maximum penalties with no real dissent.

D. Prohibited Transfers

The act also adds two new prohibited transfer categories under § 922(d). It is now prohibited to transfer a firearm to a person who “Intends to sell or otherwise dispose of the firearm or ammunition in furtherance of a felony, a Federal crime of terrorism, or a drug trafficking offense” or who “intends to sell or otherwise dispose of the firearm or ammunition” to a prohibited person.

II. CHANGES TO THE PROHIBITED PERSONS RULES

The Bipartisan Safer Communities Act makes several changes to the legal regime surrounding purchasing and trafficking in firearms. The substantive changes described in Part I will have profound effects on the operation of the

9. Bipartisan Safer Communities Act § 12004(c), 136 Stat. 1329 (codified at 18 U.S.C. § 924(a)).

10. Matthew J. Iaconetti et al., U.S. Sent’g Comm’n, What Do Federal Firearms Offenses Really Look Like? 10 (2022).

National Instant Check System. The new Act also makes other changes to the federal legal regime, some of which may be quite significant, while others appear cosmetic.

A. Modifying the Rules for Juveniles . . . Again.

The most significant rule change for firearm sales involves sales to those between 18 and 21. To implement the new provision regarding juvenile convictions, the Act creates special provisions for young adults who purchase firearms.

Ordinarily, one who purchases a firearm from a licensed dealer is subject to a background check through the National Instant Check System. The transaction may proceed once the system gives its approval or, if no approval is forthcoming, three business days have elapsed.

For young-adult transactions in which there is “a possibly disqualifying juvenile record,” the research period will now expand to 10 business days. So young adults may find themselves with a two-week waiting period to purchase firearms.

C. New Crimes for Straw Purchases and Trafficking in Firearms

The law adds two new sections to the Gun Control Act. Section 932 prohibits straw purchasing of firearms, while § 933 contains a new crime of trafficking in firearms.

Section 932 makes it a crime for “any person to knowingly purchase, or conspire to purchase, any firearm in or otherwise affecting interstate or foreign commerce for, on behalf of, or at the request or demand of any other person, knowing or having reasonable cause to believe such other person” is prohibited from possessing a firearm, intends to commit a felony, drug trafficking offense, or a federal crime of terrorism with the firearm.¹¹ The maximum penalty is 15 years for ordinary offenses and 25 years if the crime involves drug trafficking or terrorism.¹²

D. Redefining Engaged in the Business

The previous version of the Gun Control Act stated that a person was a dealer in firearms if he “devoted time, attention, and labor to dealing in firearms as a regular course of trade or business with the principal objective of livelihood and profit through the repetitive purchase of firearms.” The new bill changed “with the principal objective of livelihood and profit” and inserted in its place “to predominantly earn a profit.”

On the surface, this seems like Congress is playing word games. A person acts with the “principal objective” of earning a profit if he seeks “to predominantly earn a profit.” The two appear synonymous.

A more charitable understanding of what Congress is trying to accomplish here is confirming that a person can unlawfully deal in firearms with mixed motives. . . Congress may be signaling to ATF that it needs to take a stronger hand in enforcing this provision against those engaged in occasional, but still unlawful, sales.

11. 18 U.S.C. § 932(b).

12. *Id.* § 932(c).

III. RED-FLAG LAWS . . .

Red-flag laws have been adopted in several states. Many members of Congress wished to include a new federal red-flag law. But as explained, gun groups remain opposed, and there were not sufficient votes to pass a federal law.

Unable to reach agreement, Congress instead provided grants to states that have red-flag laws. The law imposes many conditions to obtain the grants, including that there be adequate pre-deprivation and post-deprivation due process. The provision requires that there be “at the appropriate phase” certain guarantees including “notice, the right to an in-person hearing, an unbiased adjudicator, the right to know opposing evidence, the right to present evidence, and the right to confront adverse witnesses.” . . .

B. *LAYERS OF REGULATION: AGENCY RULES AND AGENCY GUIDANCE*

1. *Statutory Authority and APA Constraints*

Like many modern statutes, the GCA is administered by an executive branch agency (ATF) that has generated its own additional layer of regulations. These regulations are subject to an array of constitutional and general statutory requirements that constrain agency rulemaking. Article I, § 1 of the U.S. Constitution grants “[a]ll legislative powers” to Congress, and thus the law-making function may not be conveyed to another branch or entity. *Loving v. United States*, 517 U.S. 748, 758 (1996). Agencies like the ATF may engage in rulemaking consistent with powers granted through their particular enabling statutes (e.g., the GCA and the NFA) and in accordance with the Administrative Procedure Act (APA). 5 U.S.C. § 553 et seq. (agency procedures), § 701 et seq. (judicial review).

Agencies may promulgate rules through formal, adjudicative rulemaking arising from a particular case, or more commonly through informal notice-and-comment procedures. Notice-and-comment rulemaking requires the agency to publish a “general notice” of proposed rulemaking in the Federal Register, *id.* § 553(b), and “give interested persons an opportunity to participate in the rulemaking through submission of comments.” *Id.* § 553(c). Agencies “must consider and respond to significant comments.” *Perez v. Mortgage Bankers Ass’n*, 575 U.S. 92, 95-97 (2015). After consideration of the comments, the agency must incorporate in the final rule “a concise general statement of their basis and purpose.” 5 U.S.C. § 553(c).

The APA’s notice-and-comment process only applies to substantive *legislative rules* that intend to create new rights or duties, *Mendoza v. Perez*, 754 F.3d 1002, 1021 (D.C. Cir. 2014), or that impose legally binding obligations or prohibitions. *Nat’l Mining Ass’n v. McCarthy*, 758 F.3d 243, 251 (D.C. Cir. 2014). These legislative rules have the force and effect of law. *General Motors Corp. v. Ruckelshaus*, 742 F.2d 1561, 1565 (D.C. Cir. 1984) (en banc).

2. *Interpretive Rules and Non-Binding Guidance*

Agencies also may generate *interpretive rules*, which are “general statements of policy, or rules of agency organization, procedure, or practice.” 5 U.S.C.

§ 553(b), (d). In contrast to legislative rules, interpretive rules are not required to comply with notice-and-comment rulemaking requirements. An interpretive rule is any “agency action that merely interprets a prior statute or regulation and does not itself purport to impose new obligations or prohibitions or requirements on regulated parties.” *Nat’l Mining Ass’n*, 758 F.3d at 252. Interpretive rules in the form of policy statements, agency manuals, enforcement guidelines, and opinion letters, “lack the force of law.” *Christensen v. Harris County*, 529 U.S. 576, 587 (2000).

The distinction between “legislative” versus “interpretive” rules is contestable and may turn on the particulars of the agency’s mission and the details of the disputed rule. *Am. Hosp. Ass’n v. Bowen*, 834 F.2d 1037, 1045 (D.C. Cir. 1987) (distinguishing between the two types of rules is “an extraordinarily case specific endeavor”). In some cases, courts have determined that so-called interpretative rules are really legislative in nature and have struck down those rules for failure to follow the notice-and-comment requirements of the APA. *See, e.g., Mendoza*, 754 F.3d at 1025 (vacating guidance documents as legislative rules that failed to comply with APA notice-and-comment requirements); *Elec. Privacy Info. Ctr. v. U.S. Dep’t of Homeland Sec.*, 653 F.3d 1, 8 (D.C. Cir. 2011).

Courts have offered a variety of benchmarks to aid in identifying interpretive rules and distinguishing them from legislative rules. Interpretive rules “only remind affected parties of existing duties.” *Gen. Motors*, 742 F.2d at 1565. They allow agencies “to explain ambiguous terms in legislative enactments without having to undertake cumbersome proceedings.” *Am. Hosp. Ass’n*, 834 F.2d at 1045. Interpretive rules are “statements issued by an agency to advise the public prospectively of the manner in which the agency proposes to exercise a discretionary power.” Tom C. Clark, Attorney General, Attorney General’s Manual on the Administrative Procedure Act 30 n.3 (1947). They allow agencies to communicate their “tentative intentions for the future” in a nonbinding manner. *Pacific Gas and Elec. Co. v. Fed. Power Comm’n*, 506 F.2d 33, 38 (D.C. Cir. 1974).

3. ATF’s Legislative Rules and Interpretive Guidance Tools

ATF’s legislative rules are published in Title 27 of the Code of Federal Regulations, which is devoted to “Alcohol, Tobacco Products and Firearms.” The arms regulations are in Parts 53 (manufacturer excise taxes), 447 (imports), 478 (GCA), and 479 (NFA). Definitions of Gun Control Act terms are in 27 C.F.R. § 478.11 (previously at 27 C.F.R. § 178.11).

ATF communicates with the regulated community not only through legislative rules published in the C.F.R., but also through interpretive rules in the form of “ATF Rulings,” “Open Letters,” and a broad category of “ATF Publications,” which includes guidebooks, newsletters, brochures, studies, and reports. ATF, Publications, <https://www.atf.gov/resource-center/publications-library>. These interpretative rules can offer useful information to the regulated community, but the contingent status of these communications also generates risks. Consider, for example, ATF’s various communications regarding the GCA rules that hinge on residency.

a. Residency Determinations: Statutory Rule, Regulation, and Ruling 80-21

The GCA discusses residency in Section 922, which limits private sales to residents of the same state. Section 922 also says that a firearms retailer (a holder of a Federal Firearms License, FFL) may not deliver a handgun to “any person whom the licensee knows or has reasonable cause to believe does not reside in . . . the State in which the licensee’s place of business is located.”²¹ Determining residency is a straightforward task in some situations. But what about people who have multiple residences? ATF rulemaking addresses the issue. An ATF rule defines “State of residence” as the state in which an individual regularly resides or maintains a home. 27 C.F.R. § 478.11. The regulation also provides an example of an individual who maintains a home in State X and a home in State Y. The individual regularly resides in State X except for the summer months, and in State Y in the summer. The regulation states that during the time the individual actually resides in State X he is a resident of State X, and during the time he actually resides in State Y he is a resident of State Y. *Id.* Publication of the residency rule in the C.F.R. was the capstone of notice-and-comment rulemaking that complied with the requirements of the Administrative Procedure Act.

The definition and example in 27 C.F.R. § 478.11 will cover many people, but many cases still remain unclear. Consider a college student who might reside several places over the course of a school year: in a dorm room one semester, with his parents during the summer, and a shared apartment the next semester.

ATF has deployed a procedure short of actual rulemaking to address the situation. In a publication titled “Ruling 80-21,” ATF extrapolates from 27 C.F.R. § 478.11 to conclude: “Applying the above example to out-of-State college students it is held, that during the time the students actually reside in a college dormitory or at an off-campus location they are considered residents of the State where the dormitory or off-campus home is located. During the time out-of-State college students actually reside in their home State they are considered residents of their home State.”

Note that Ruling 80-21 *is not* a formal agency regulation. It has not gone through the notice-and-comment process required for agency rulemaking under the Administrative Procedure Act. It does not appear in the Code of Federal Regulations. The ATF website describes the status of such “Rulings” as follows:

ATF publishes rulings and procedures to promote uniform understanding and application of the laws and regulations it administers, and to provide uniform methods for performing operations in compliance with the requirements of the law and regulations. Rulings represent ATF’s

21. 18 U.S.C. § 922(b)(3). Sales of long guns to non-residents are permitted if the sale complies with laws of both states. *Id.* § 922(b)(3)(A). Loans or rentals of handguns or long guns for sporting purposes are allowed. *Id.* § 922(b)(3)(B).

guidance as to the application of the law and regulations to the entire state of facts involved, and apply retroactively unless otherwise indicated.

ATF, Rulings, Jan. 26, 2026, <https://www.atf.gov/rules-and-regulations/rulings>.

b. Open Letters and Other Informal Publications

The ATF also has addressed another type of residency situation, using a different informal process—the Open Letter. In a June 1, 2012, Open Letter to Alaska firearms dealers, the ATF provided guidance on a relatively common issue in Alaska, where some residents’ government identification shows an address that is “neither a street address nor a rural route and box number address.” The Open Letter said that FFLs may transfer firearms to customers who provide identification listing only a Rural Route address that is considered by the jurisdiction to be a legal residence address—for example, “Mile 50 on Old Richardson Highway.” Open Letter to All Alaska Federal Firearms Licensees, June 1, 2012.

The intent of ATF Open Letters is “to remind or assist licensees with understanding their regulatory compliance responsibilities under the laws and regulations administered by ATF. ATF, Open Letters, Jan. 26, 2026, <https://www.atf.gov/rules-and-regulations/open-letters>.” Communications that fall under the category “ATF Publications”—including guidebooks, newsletters, brochures, studies, and reports—are subject to an identical explanation of their legal status.

In 2017 the Attorney General issued a Memorandum regarding “Prohibition of Improper Guidance Documents,” which concludes that:

In promulgating regulations, the Department must abide by constitutional principles and follow the rules imposed by Congress and the President. These principles and rules include the fundamental requirement that agencies regulate only within the authority delegated to them by Congress. They also include the Administrative Procedure Act’s requirement to use, in most cases, notice-and-comment rulemaking when purporting to create rights or obligations binding on members of the public or the agency. . . It has come to my attention that the Department has in the past published guidance documents or similar instruments of future effect by other names, such as letters to regulated entities that effectively bind private parties without undergoing the rulemaking process. The Department will no longer engage in this practice. Effective immediately, Department components may not issue guidance documents that purport to create rights or obligations binding on persons or entities outside the Executive Branch.

Memorandum for All Components From: The Attorney General “Prohibition on Improper Guidance Documents,” Nov. 16, 2017.

Constitutional and administrative law issues surrounding administrative agency guidance are complex and unsettled. *See, e.g.*, Philip Hamburger, *Is Administrative Law Unlawful?* (2014); Zachary S. Price, *Reliance on Nonenforcement*, 58 Wm. & Mary L. Rev. 937 (2017). One always should be aware that agency guidance is easier to change than legislative rules or legislation and therefore might shift dramatically when the executive branch changes hands.

C. *SUING THE GUN INDUSTRY AND THE LEGISLATIVE RESPONSE: THE PROTECTION OF LAWFUL COMMERCE IN ARMS ACT*

As long as there have been product liability suits, gun manufacturers have faced civil claims by plaintiffs alleging damages from design or manufacturing defects. Claims have also been brought under breach of warranty. Traditionally, the claims alleged that the firearm was defective in the sense that it did not perform as a normal gun should. For example, a gun might fail to fire. Or the barrel might explode because the quality of the metal was inadequate. The product liability and warranty suits filed in these cases pushed substandard manufacturers out of the business and caused other manufacturers to ensure production of properly functioning firearms. Such suits continue to be filed today, and some succeed.²²

In the 1970s, a new type of lawsuit began to appear: product liability design defect suits alleging that a properly functioning handgun had a design defect. Some claimed that the handgun was too small, and therefore easy for criminals to conceal. Others alleged that the handgun was not very good for target shooting or hunting and therefore was made for criminal use. Other claims alleged that particular handguns were too powerful. Somewhat more conventional versions of the design defect suits pointed out that the gun lacked a particular safety feature—although most of these safety features had trade-offs (e.g., making the gun more difficult to use in a sudden emergency) that made them undesirable to many consumers.²³

Generally speaking, the innovative product liability suits were unsuccessful. Most courts viewed them as attempts to eliminate types of handguns that legislatures had decided should remain legal.²⁴ Many legislatures took the same view, and enacted statutes specifically prohibiting product liability suits against properly functioning firearms.

The one success of the product liability cases was in Maryland, where the Court of Appeals (the highest court) in 1985 ruled that manufacturers of “Saturday Night Specials” were strictly liable for injuries suffered by crime victims. *Kelley v. R. G. Industries, Inc.*, 497 A.2d 1143 (Md. 1985). The Maryland legislature promptly changed the state’s liability law to nullify this decision, but the legislature also created

22. See Richard E. Kaye, *Cause of Action in Strict Tort Liability for Injury or Death Caused by Defective Firearm*, 60 Causes of Action 2d 663.

23. See Cynthia Leonardatos, Paul H. Blackman & David B. Kopel, *Smart Guns/Foolish Legislators*, 34 Conn. L. Rev. 157 (2001).

24. See, e.g., *Patterson v. Rohm Gesellschaft*, 608 F. Supp. 1206, 1212 (N.D. Tex. 1985) (plaintiffs’ attorneys said manufacturing a handgun is an “ultrahazardous activity”—akin to blasting with dynamite; judge: “the plaintiff’s attorneys simply want to eliminate handguns.”); David Kopel & Richard Gardiner, *The Sullivan Principles: Protecting the Second Amendment from Civil Abuse*, 19 Seton Hall Legis. J. 737, 750 n.43 (1995) (listing 26 cases decided 1983-90, plus one from 1973).

a Handgun Roster Board to approve the sale of new models of handguns in Maryland.²⁵ So, the Maryland lawsuit did have utility in advancing gun control.

Beginning in the mid-1990s, private plaintiffs, with the assistance of gun control organizations, began moving beyond product liability to bring suits on a wide variety of innovative tort theories. *See, e.g., Hamilton v. ACCU-TEK*, 62 F. Supp. 2d 802 (E.D.N.Y. 1999), *vacated sub nom. Hamilton v. Beretta*, 264 F.3d 21 (2d Cir. 2001) (claiming that defendants' distribution practices created an underground market that gave criminals easy access to handguns); *Merrill v. Navegar*, 89 Cal. Rptr. 2d 146 (Cal. App. 1999), *rev'd*, 28 P.3d 116 (Cal. 2001) ("The record includes evidence Navegar deliberately targeted the marketing of the TEC-9 to people attracted to or associated with violence."); *McCarthy v. Olin Corp.*, 119 F.3d 148, 155 (2d Cir. 1997) (alleging that the "Black Talon" bullet was defectively designed because it "results in enhanced injuries beyond ordinary bullets"). Several claimants obtained favorable jury verdicts that were overturned by appellate decisions holding that manufacturers were not liable for the criminal misuse of their products. *See, e.g., Merrill* (California statute barred tort claim against manufacturers where injury was caused by criminal use of product); *Hamilton* (gun manufacturers' connection to victims of criminal gun violence too "remote" to establish a duty of care).

In 1998, the litigation dynamic changed as big-city mayors joined the ranks of plaintiffs against the gun industry. Backed by public resources and political clout, more than two dozen large municipalities and New York State raised the stakes of litigation against the handgun industry. The Clinton administration, under the leadership of Housing and Urban Development Secretary Andrew Cuomo, also participated in the suits. The suits were designed by Handgun Control, Inc. (now, "Brady"), working together with anti-tobacco lawyers and other top plaintiffs' attorneys. Because state statutes resulting from the previous round of litigation had made product liability claims so difficult, the municipal lawsuits tried new theories, such as the argument that "oversupplying" handguns to a particular market constituted negligence or public nuisance.²⁶

Plaintiffs' attorney John Coale successfully aimed for and hit "critical mass . . . where the costs alone of defending these suits are going to eat up the gun companies." Fox Butterfield, *Lawsuits Lead Gun Maker to File for Bankruptcy*, N.Y. Times, June 24, 1999. As he put it, "the legal fees alone are enough to bankrupt the industry."²⁷ Secretary Cuomo threatened manufacturers with "death by a thousand cuts."²⁸

The goal of the lawsuits was a voluntary settlement by the firearms industry. In the summer of 2000, there was progress toward that goal. Smith & Wesson, at

25. Md. Code, Public Safety, § 5-404; Code of Md. Regs. § 29.03.03.01 et seq.

26. *See, e.g., Archer v. Arms Tech., Inc.*, No. 99-912658 NZ, slip op. (Mich. Cir. Ct. May 16, 2000); *City of Gary v. Smith & Wesson*, 801 N.E.2d 1222, 1228 (Ind. 2003); Rachana Bhowmik, *Aiming for Accountability: How City Lawsuits Can Help Reform an Irresponsible Gun Industry*, 11 J.L. & Pol'y 67 (2002).

27. Sharon Walsh, *Gun Industry Views Pact as Threat to Its Unity*, Wash. Post, Mar. 18, 2000.

28. Walter Olson, *Plaintiffs Lawyers Take Aim at Democracy*, Wall St. J., Mar. 21, 2000.

the orders of its British parent corporation, signed a consent decree that imposed a host of new restrictions on its gun sales and put its future business operations under the supervision of a five-person committee consisting of four gun control advocates and one industry representative. In exchange, the lawsuits against Smith & Wesson would be terminated.²⁹

For a few days, it appeared that the rest of the American handgun manufacturers might fall in line. Glock came closest, with the dealbreaker being the requirement that supervision of the business be transferred to a five-person committee, four of them appointed by gun control advocates. As the company was wavering, New York Attorney General Eliot Spitzer warned a Glock executive: “if you do not sign, your bankruptcy lawyers will be knocking at your door.” 146 Cong. Rec. H2017 (Apr. 11, 2000) (Rep. Stearns).

A consumer boycott of Smith & Wesson spread the moment that Smith & Wesson settled. The rest of the industry apparently decided that a settlement might create problems worse than it would solve. In response, Spitzer and Connecticut Attorney General Richard Blumenthal announced they would sue other manufacturers for shunning S&W—for instance, by no longer sharing joint legal defense with S&W. This would have been “the first antitrust action in history aimed at punishing smaller companies for not cooperating with the largest company in the market in an agreement restraining trade.”³⁰

The lawsuits had been brought not only against handgun manufacturers, but also against firearms trade associations, such as the National Shooting Sports Foundation (NSSF). The trade associations did not sell handguns; like all trade associations, they advocated for their members’ businesses and promoted best practices—activities unquestionably protected by the First Amendment. When New Orleans and Chicago filed the first suits in 1998, NSSF organized a joint legal defense for the industry defendants. The National Rifle Association joined the fray; as an association of consumers, it had sometimes been on different sides of some issues from NSSF, when the interests of the industry and consumers diverged. On the lawsuits, NSSF and NRA worked toward a common goal. Building on the existing state laws against product liability gun suits, NSSF and NRA now sought bans on any tort lawsuit involving a properly functioning gun. More than 30 states enacted some type of legislation limiting or eliminating the new lawsuits. As more and more states passed lawsuit restrictions, most of the remaining suits lost in state courts. Even Boston—the city that had brought Smith & Wesson to its knees—recognized the trend and asked for dismissal of the proposed consent decree, which had never gone into effect.

Finally, on October 26, 2005, President George W. Bush signed a bill that had passed by large margins in both houses of Congress: the Protection of

29. See *Agreement Between Smith & Wesson and the Departments of the Treasury and Housing and Urban Development, Local Governments and States*, U.S. Department of Housing and Development; David B. Kopel, *Smith and Wesson’s Faustian Bargain*, Nat’l Rev. Online, Mar. 20 & 21, 2000, <https://davekopel.org/NRO/2000/Smith-and-Wesson’s-Faustian-Bargain.htm>.

30. Olson, at 127.

Lawful Commerce in Arms Act. 15 U.S.C. §§ 7901-7903. With a few exceptions, the PLCAA retroactively bans civil suits in any federal or state court against manufacturers, wholesalers, or retailers of properly functioning firearms. *Id.* § 7902. There are exceptions for transferring a firearm knowing it will be used in a crime of violence or drug crime, negligent entrustment, breach of warranty, malfunction from manufacturing defect,, and actions by the Attorney General to enforce the GCA or NFA. The other, and most litigated, exception is violation of a state or federal statute that “expressly” or “clearly can be said to” regulate the sale or marketing of firearms. 15 U.S.C. § 7903(5) (A). The exception is contested in the case below.

Smith & Wesson Brands, Inc. v. Estados Unidos Mexicanos

605 U.S. 280 (2025)

Justice KAGAN delivered the opinion of the Court.

The Government of Mexico brought this lawsuit against seven American gun manufacturers. As required by a federal statute, Mexico seeks to show (among other things) that the defendant companies participated in the unlawful sale or marketing of firearms. More specifically, Mexico alleges that the companies aided and abetted unlawful sales routing guns to Mexican drug cartels. The question presented is whether Mexico’s complaint plausibly pleads that conduct. We conclude it does not.

I

A

The Protection of Lawful Commerce in Arms Act (PLCAA), bars certain lawsuits against manufacturers and sellers of firearms. Congress enacted the statute in response to a spate of litigation trying to hold gun companies liable in tort for harms “caused by the misuse of firearms by third parties, including criminals.” To curb such suits, PLCAA provides that a “qualified civil liability action,” as defined in the Act, “may not be brought in any Federal or State court.” The Act’s definition of that term includes a “civil action or proceeding” against a firearms manufacturer or seller stemming from “the criminal or unlawful misuse” of a firearm by “a third party.”

But PLCAA’s general bar on those suits has an exception, usually called the predicate exception, relevant here. That exception applies to suits in which the defendant manufacturer or seller “knowingly violated a State or Federal statute applicable to the sale or marketing” of firearms, and that “violation was a proximate cause of the harm for which relief is sought.” If a plaintiff can show that provision is satisfied—that, say, a manufacturer committed a gun-sale violation proximately causing the harm at issue—then a suit can proceed, even though it arises from a third party’s later misuse of a gun. Or otherwise said, the predicate violation opens a path to making a gun manufacturer civilly liable for the way a third party has used the weapon it made.

Notably here, the predicate violation PLCAA demands may come from aiding and abetting someone else’s firearms offense. The predicate exception itself lists as

examples two ways in which aiding and abetting qualifies—when a gun manufacturer (or seller) aids and abets another person either in making a false statement about a gun sale’s legality or in making specified criminal sales. And more broadly, aiding and abetting can qualify as a PLCAA predicate violation by virtue of another law assimilating an accomplice’s liability to a principal’s. . .

B

Mexico has a severe gun violence problem, which its government views as coming from north of the border. The country has only a single gun store, and issues fewer than 50 gun permits each year. But gun traffickers can purchase firearms in the United States—often in illegal transactions—and deliver them to drug cartels in Mexico. Those groups, predictably enough, use the imported firearms to commit serious crimes—drug dealing, kidnapping, murder, and others. According to the Mexican Government, as many as 90% of the guns recovered at crime scenes in Mexico originated in the United States.

The Mexican Government, seeking redress for this gun violence, brought suit in 2021 against seven American firearms manufacturers. The suit, brought in a U.S. District Court, asserts a variety of tort claims against the defendants, mostly sounding in negligence. The basic theory is that the defendants failed to exercise “reasonable care” to prevent trafficking of their guns into Mexico, and so are responsible for the harms arising there from the weapons’ misuse. *Id.*, at 184a. That theory, as all agree, runs straight into PLCAA’s general prohibition. Mexico’s action, that is, seeks to hold firearms manufacturers liable for “the criminal or unlawful misuse” of guns by third parties—and so, according to PLCAA, “may not be brought.” The complaint thus tries to plead its way into PLCAA’s predicate exception. It asserts, as that exception requires, that the third-party misuse of guns in Mexico resulted from the manufacturers’ knowing violations of gun laws.

. . . The manufacturers, according to Mexico, were “willful accessories” in unlawful gun sales by retail dealers, which in turn enabled Mexican criminals to acquire guns (and use them to commit violent offenses). The complaint sets out three kinds of allegations relating to how the manufacturers aided and abetted retailers’ unlawful sales.

Mexico’s primary line of argument is that the manufacturers supply firearms to retail dealers whom they know illegally sell to Mexican gun traffickers. The complaint explains that the manufacturers use a three-tier distribution system: They sell to wholesale distributors, who sell to retail dealers, who sell to customers. A “small minority” of the dealers are responsible for most of the sales to Mexican traffickers; and those sales often violate federal gun laws—by, for example, involving straw purchasers or proceeding without background checks. Still more, the complaint alleges—and this is key—that the manufacturers know “who th[ose] bad apple dealers are.” Yet the manufacturers continue to supply those dealers, as they do legitimate ones, in order to boost their own profits. By choosing not to cut off the flow of firearms to the known rogue dealers, the complaint asserts, the manufacturers become “culpable and intentional participant[s]” in the dealers’ federal “statutory violations.”

Second, Mexico claims that the manufacturers have failed to impose the kind of controls on their distribution networks that would prevent illegal sales to Mexican

traffickers. There are, Mexico contends, a raft of ways manufacturers could put “commonsense restraints on their supply chains.” For example, they could prohibit dealers from making “bulk sales” to individual customers, because guns sold in that way (Mexico says) are likely to be “diverted to the illegal market.” So too, they could bar dealers from selling their firearms at gun shows or out of their homes, because those sales (Mexico again says) often ignore regulatory requirements like background checks. And more generally, manufacturers could implement processes for “monitor[ing] or “supervis[ing] their [dealers’] sales practices,” so as to minimize illegal sales to traffickers. Yet the defendant manufacturers, Mexico states, have done none of those things. Rather, they have embraced “a see-no-evil, hear-no-evil, speak-no-evil approach” to “their gun distribution system.” And that quite “deliberate[]” approach works to “funnel firearms to the cartels.”

And third, Mexico alleges that the manufacturers make “design and marketing decisions” intended to stimulate cartel members’ demand for their products. Most prominently, Mexico asserts that the manufacturers have “increased production of military-style” assault weapons, with an eye toward cultivating the criminal market. For example, one manufacturer has made a “.50 caliber long range sniper rifle,” which cartels have used to attack the police and military. In addition, Mexico says, the manufacturers make guns whose serial numbers can be “obliterated or defaced,” thus hindering police tracing efforts. And the manufacturers produce firearms whose names or aesthetic features appeal to cartel members. Colt, for example, makes the “.38 caliber Super ‘El Jefe’ pistol; the .38 caliber Super ‘El Grito’ pistol; and the .38 caliber ‘Emiliano Zapata 1911’ pistol”—the last of which includes Zapata’s image and the words “It is better to die standing than to live on your knees.”

The defendant manufacturers moved to dismiss Mexico’s complaint, contending that PLCAA barred the suit. The District Court granted the motion. But the Court of Appeals for the First Circuit reversed. It found that Mexico’s complaint plausibly “allege[d] that defendants have been aiding and abetting the [illegal] sale of firearms by dealers.” And because, in the court’s view, the complaint also plausibly alleged that the defendants’ aiding-and-abetting conduct proximately caused injury to Mexico, PLCAA’s predicate exception was satisfied. As a result, Mexico’s suit against the manufacturers could go forward. . .

II

Mexico’s complaint survives PLCAA only if, in accord with usual pleading rules, it has plausibly alleged conduct falling within the statute’s predicate exception. Because Mexico relies exclusively on an aiding-and-abetting theory, that means plausibly alleging that the manufacturers have aided and abetted gun dealers’ firearms offenses (such as sales to straw purchasers), so as to proximately cause harm to Mexico. We need not address the proximate cause question, because we find that Mexico has not plausibly alleged aiding and abetting on the manufacturers’ part. “Plausibly” does not mean “probably,” but “it asks for more than a sheer possibility that a defendant has acted unlawfully.” And Mexico has not met that bar. Its complaint does not plausibly allege the kind of “conscious . . . and culpable participation in another’s wrongdoing” needed to make out an aiding-and-abetting charge.

A

Federal aiding-and-abetting law “reflects a centuries-old view of culpability: that a person may be responsible for a crime he has not personally carried out” if he deliberately “helps another to complete its commission.” *Rosemond v. United States*, 572 U.S. 65, 70, (2014). . .

In elaborating on that demand, this Court has developed several ancillary principles. First, aiding and abetting is most commonly “a rule of secondary liability for *specific* wrongful acts.” It is possible for someone to aid and abet a broad category of misconduct, but then his participation must be correspondingly “pervasive, systemic, and culpable.” Second, aiding and abetting usually requires misfeasance rather than nonfeasance. Absent an “independent duty to act,” a person’s “failure[s],” “omissions,” or “inactions”—even if in some sense blameworthy—will rarely support aiding-and-abetting liability. And third, routine and general activity that happens on occasion to assist in a crime—in essence, “incidentally”—is unlikely to count as aiding and abetting. So, for example, an “ordinary merchant[]” does not “become liable” for all criminal “misuse[s] of [his] goods,” even if he knows that in some fraction of cases misuse will occur. The merchant becomes liable only if, beyond providing the good on the open market, he takes steps to “promote” the resulting crime and “make it his own.” . . .

B

Viewed against the backdrop of that law, Mexico’s complaint does not plausibly allege that the defendant manufacturers aided and abetted gun dealers’ unlawful sales of firearms to Mexican traffickers. We have little doubt that, as the complaint asserts, some such sales take place—and that the manufacturers know they do. But still, Mexico has not adequately pleaded what it needs to: that the manufacturers “participate in” those sales “as in something that [they] wish[] to bring about,” and “seek by [their] action to make” succeed.

To begin with, Mexico’s complaint sets for itself a high bar. The complaint does not pinpoint, as most aiding-and-abetting claims do, any specific criminal transactions that the defendants (allegedly) assisted. It does not say, for example, that a given manufacturer aided a given firearms dealer, at a particular time and place, in selling guns to a given Mexican trafficker not legally permitted to buy them under a specified statute. Instead, the complaint levels a more general accusation: that all the manufacturers assist some number of unidentified rogue gun dealers in making a host of firearms sales in violation of various legal bars. . .

Mexico’s lead claim—that the manufacturers elect to sell guns to, among others, known rogue dealers—fails to clear that bar, for a package of reasons. For one thing, it is far from clear that such behavior, without more, could ever count as aiding and abetting under our precedents. . .

And in any event, we cannot take the allegation here at face value, because Mexico has not said enough to make it plausible. In asserting that the manufacturers intentionally supply guns to bad-apple dealers, Mexico never confronts that the manufacturers do not directly supply any dealers, bad-apple or otherwise. They instead sell firearms to middlemen distributors, whom Mexico has never claimed lack independence. Given that industry structure, Mexico’s complaint must offer

some reason to believe that the manufacturers attend to the conduct of individual gun dealers, two levels down. But it does not so much as address that issue. . .

What Mexico has plausibly pleaded respecting sales to offenders is a lesser wrong, which does not rise to the level of aiding and abetting. Mexico's complaint alleges that some, though unidentified, dealers often engage in illegal transactions with Mexican traffickers. So too, the complaint alleges that the manufacturers know that much to be true—that among the whole class of dealers, there are some who routinely violate the law. And finally the complaint alleges, with sufficient plausibility, that the manufacturers could do more than they do to figure out who those rogue dealers are, and then to cut off their supply of guns. . . Mexico's plausible allegations are of "indifferen[ce]," rather than assistance. They are of the manufacturers' merely allowing some unidentified "bad actors" to make illegal use of their wares.

For related reasons, Mexico's second set of allegations—that the manufacturers have declined to suitably regulate the dealers' practices, cannot fill the gap. Of course, responsible manufacturers might well impose constraints on their distribution chains to reduce the possibility of unlawful conduct. (Mexico's prime examples, recall, are bans on bulk sales or sales from homes—permitted under federal law, but in Mexico's view conducive to unlawful transactions.) So too, those manufacturers might decide, as Mexico urges, to themselves monitor dealers' sales for law violations. But a failure to do so is, again, what *Twitter [v. Taamneh*, 598 U.S. 471 (2023)] called "passive nonfeasance"—a "failure to stop" independent retailers downstream from making unlawful sales. Such "omissions" and "inactions," especially in an already highly regulated industry, are rarely the stuff of aiding-and-abetting liability. And nothing special in Mexico's allegations makes them so. A manufacturer of goods is not an accomplice to every unaffiliated retailer whom it fails to make follow the law.

Finally, Mexico's allegations about the manufacturers' "design and marketing decisions" add nothing of consequence. As noted above, Mexico here focuses on the manufacturers' production of "military style" assault weapons, among which it includes AR-15 rifles, AK-47 rifles, and .50 caliber sniper rifles. But those products are both widely legal and bought by many ordinary consumers. (The AR-15 is the most popular rifle in the country. *See* T. Gross, *How the AR-15 Became the Bestselling Rifle in the U.S.*, NPR (Apr. 20, 2023). The manufacturers cannot be charged with assisting in criminal acts just because Mexican cartel members like those guns too. The same is true of firearms with Spanish-language names or graphics alluding to Mexican history. Those guns may be "coveted by the cartels," as Mexico alleges; but they also may appeal, as the manufacturers rejoin, to "millions of law-abiding Hispanic Americans." That leaves only the allegation that the manufacturers have not attempted to make guns with nondefaceable serial numbers. But the failure to improve gun design in that way (which federal law does not require) cannot in the end show that the manufacturers have "join[ed] both mind and hand" with law-breakers in the way needed to aid and abet.

C

All of that means PLCAA prevents Mexico's suit from going forward. The kinds of allegations Mexico makes cannot satisfy the demands of the statute's predicate exception. That exception permits a suit to be brought against a gun manufacturer

that has aided and abetted a firearms violation (and in so doing proximately caused the plaintiff's harm). And Mexico's complaint, for the reasons given, does not plausibly allege such aiding and abetting. So this suit remains subject to PLCAA's general bar: An action cannot be brought against a manufacturer if, like Mexico's, it is founded on a third-party's criminal use of the company's product.

And that conclusion, we note, well accords with PLCAA's core purpose. Recall that Congress enacted the statute to halt a flurry of lawsuits attempting to make gun manufacturers pay for the downstream harms resulting from misuse of their products. In a "findings" and "purposes" section, Congress explained that PLCAA was meant to stop those suits—to prevent manufacturers (and sellers) from being held "liable for the harm caused by those who criminally or unlawfully misuse firearm[s]." Mexico's suit closely resembles the ones Congress had in mind: It seeks to recover from American firearms manufacturers for the downstream damage Mexican cartel members wreak with their guns. Of course, the law Congress wrote includes the predicate exception, which allows some suits falling within PLCAA's general ban to proceed. But that exception, if Mexico's suit fell within it, would swallow most of the rule. We doubt Congress intended to draft such a capacious way out of PLCAA, and in fact it did not. The predicate exception allows for accomplice liability only when a plaintiff makes a plausible allegation that a gun manufacturer "participate[d] in" a firearms violation "as in something that [it] wishe[d] to bring about" and sought to make succeed. Because Mexico's complaint fails to do so, the defendant manufacturers retain their PLCAA-granted immunity.

We therefore reverse the judgment of the Court of Appeals and remand the case for further proceedings consistent with this opinion.

It is so ordered.

Justice THOMAS, concurring.

The Court today correctly decides that Mexico has not plausibly pleaded that its suit falls under the predicate exception to the Protection of Lawful Commerce in Arms Act (PLCAA). This exception allows otherwise-prohibited suits against gun manufacturers to go forward if, among other requirements, the manufacturer has "knowingly violated a State or Federal statute applicable to the sale or marketing of the product." I write separately to note that the Court's opinion does not resolve what a plaintiff must show to establish that the defendant committed a "violation." It concludes only that Mexico has not adequately pleaded its theory of the case—that, as a factual matter, the defendant gun manufacturers committed criminal aiding and abetting.

In future cases, courts should more fully examine the meaning of "violation" under the PLCAA. It seems to me that the PLCAA at least arguably requires not only a plausible *allegation* that a defendant has committed a predicate violation, but also an earlier *finding* of guilt or liability in an adjudication regarding the "violation." Allowing plaintiffs to proffer mere allegations of a predicate violation would force many defendants in PLCAA litigation to litigate their criminal guilt in a civil proceeding, without the full panoply of protections that we otherwise afford to criminal defendants. And, these defendants might even include ones who were *cleared* in an earlier proceeding, such as through a noncharging decision or a not-guilty or not-liable verdict. Such collateral adjudication would be at best highly unusual, and would likely raise serious constitutional questions that would counsel

in favor of a narrower interpretation. Particularly given the PLCAA's aim of *protecting* gun manufacturers from litigation, this issue warrants careful consideration.

Justice JACKSON, concurring.

The Court holds that Mexico's complaint fails to plausibly allege that gun manufacturers aided or abetted violations of firearms laws, as necessary to trigger the predicate exception to the Protection of Lawful Commerce in Arms Act (PLCAA). I agree. I write separately to explain that, in my view, the complaint's core flaw is its failure to allege any nonconclusory statutory violations in the first place.

Tellingly, that failure exposes Mexico's lawsuit as precisely what Congress passed PLCAA to prevent. PLCAA was Congress's response to a flood of civil lawsuits that sought to hold the firearms industry responsible for downstream lawbreaking by third parties. Activists had deployed litigation in an effort to compel firearms manufacturers and associated entities to adopt safety measures and practices that exceeded what state or federal statutes required. Congress expressed concern that these lawsuits "attempt[ed] to use the judicial branch to circumvent the Legislative branch." PLCAA embodies Congress's express rejection of such efforts—stymying those who, as Congress put it, sought "to accomplish through litigation that which they have been unable to achieve by legislation." Put differently, PLCAA reflects Congress's view that the democratic process, not litigation, should set the terms of gun control.

Viewed in light of this objective, Congress's inclusion of the predicate exception makes perfect sense. The exception allows lawsuits to proceed—despite PLCAA's general grant of immunity—if the complaint alleges that a gun manufacturer or seller "knowingly violated a State or Federal statute applicable to the sale or marketing of the product, and the violation was a proximate cause of the harm for which relief is sought." By tying the exception to statutory violations, Congress kept the door open to civil liability—but only liability flowing from duties that the People, rather than the courts, had chosen to impose.

PLCAA's predicate exception might well be triggered by aiding and abetting another's violation of a firearms statute, as the provision's two examples make clear. First, § 7903(5)(A)(iii)(I) describes, for example, aiding and abetting "any person in making any false or fictitious oral or written statement with respect to any fact material to the lawfulness of the sale or other disposition of a qualified product"—conduct that violates 18 U.S.C. §§ 922(m), 923(g), or 924(a)(3)(A). Likewise, § 7903(5)(A)(iii)(II) covers aiding and abetting "any other person to sell or otherwise dispose of a qualified product, knowing, or having reasonable cause to believe, that the actual buyer of the qualified product was prohibited from possessing or receiving a firearm or ammunition under" 18 U.S.C. §§ 922(g) and (n)—sales that breach §§ 922(b), (d), or (t)(1), for instance. Critically, both predicate-exception examples relate to the aiding and abetting of *particular statutory violations*.

All that Mexico alleges here is that firearms-industry-wide practices—though lawful on their own—facilitated dealers' unspecified downstream violations. . . . At bottom, then, Mexico merely faults the industry writ large for engaging in practices that legislatures and voters have declined to prohibit.

It is for these reasons that I view Mexico's allegations as insufficient to satisfy PLCAA's predicate exception, regardless of whether the business practices described might suffice to establish aiding-and-abetting or other forms of vicarious

liability in distinct statutory or common-law contexts. Devoid of nonconclusory allegations about particular statutory violations, Mexico's lawsuit seeks to turn the courts into common-law regulators. But Congress passed PLCAA to preserve the primacy of the political branches—both state and federal—in deciding which duties to impose on the firearms industry. Construing PLCAA's predicate exception to authorize lawsuits like the one Mexico filed here would distort that basic design.

NOTES & QUESTIONS

1. The law enacting the PLCAA consisted of two Acts: the Protection of Lawful Commerce in Arms Act and the Child Safety Lock Act (CSLA). Pub. L. No. 109-92. Sections 1-4 of the law contain the PLCAA, codified at 15 U.S.C. §§ 7901-7903; section 5 contains the CSLA, codified at 18 U.S.C. § 922(z). The CSLA requires handguns transferred to consumers by licensed firearm dealers to be accompanied by a "secure gun storage or safety device." 18 U.S.C. § 922(z)(1). A secure gun storage or safety device can either be a gun safe or similarly lockable storage unit, or a device that attaches to the gun. The Act immunizes the lawful owner of a handgun from most civil damages lawsuits resulting from the misuse of his or her weapon by unauthorized third parties, including thieves. The immunity applies as long as the handgun had been made inoperable by the requisite safety device when accessed. Like the PLCAA, the CSLA does not provide protection from suits for negligent entrustment or negligence per se. Unlike its companion statute, CSLA protects both business and consumer firearm owners. For more on the PLCAA and CSLA, see George A. Mocsary, *Insuring Against Guns?*, 46 Conn. L. Rev. 1209, 1213-15, 1242 (2014).

2. Some have argued that the price of firearms does not reflect the full costs that they impose on society. Do you agree? Would you apply that reasoning to alcohol, food, cell phones, or other products that create social or environmental costs and benefits? CQ: Consider the costs and benefit data from Chapter 1.

3. Critics of the pre-PLCAA lawsuits pointed out that the municipal plaintiffs also had contributed to the problem they complained about by selling or trading in used police guns at below-market prices.³¹ Should firearms that are owned by the government and no longer needed, or that are confiscated by the government pursuant to criminal laws, be sold to the public, via licensed firearms dealers, to help pay for the costs of government? Or does the government putting guns into the hands of citizens send the wrong message?

4. The federal power to regulate "commerce . . . among the several states" was originally envisioned as mainly empowering Congress to act against state government interference with interstate commerce, such as state tariffs on the interstate transport of goods.

31. See, e.g., Vanessa O'Connell, *Unloading Old Police Guns: More Cities Ban Trade-ins and Resales*, Wall St. J., Nov. 10, 1999, at B1 (discussing the decisions of New Orleans, Miami, St. Louis, and Bridgeport, Connecticut, to abandon trading in old police side arms because they end up in the citizen market).

Section 5 of the Fourteenth Amendment empowers Congress to enact “appropriate legislation” enforcing the “privilege or immunities of citizens of the United States” and against state deprivation of “life, liberty, or property, without due process of law.” The Due Process Clause has been interpreted to make most of the Bill of Rights enforceable against the states. *See* Ch. 6.B.

In enacting the PLCAA, Congress found that

- (1) The Second Amendment to the United States Constitution provides that the right of the people to keep and bear arms shall not be infringed.
- (2) The Second Amendment to the United States Constitution protects the rights of individuals, including those who are not members of a militia or engaged in military service or training, to keep and bear arms. . .
- (6) The possibility of imposing liability on an entire industry for harm that is solely caused by [“those who criminally or unlawfully misuse firearm products or ammunition products that function as designed and intended”] constitutes an unreasonable burden on interstate and foreign commerce of the United States.

15 U.S.C. § 7901(a).

In light of these findings, Congress stated that among the PLCAA’s purposes was

- (3) To guarantee a citizen’s rights, privileges, and immunities, as applied to the States, under the Fourteenth Amendment to the United States Constitution, pursuant to section 5 of that Amendment.
- (4) To prevent the use of such lawsuits to impose unreasonable burdens on interstate and foreign commerce.
- (5) To protect the right, under the First Amendment to the Constitution, of manufacturers, distributors, dealers, and importers of firearms or ammunition products, and trade associations, to speak freely, to assemble peaceably, and to petition the Government for a redress of their grievances.
- (6) To preserve and protect the Separation of Powers doctrine and important principles of federalism, State sovereignty and comity between sister States.
- (7) To exercise congressional power under article IV, section 1 (the Full Faith and Credit Clause) of the United States Constitution.³²

In enacting the CSLA, Congress stated that among the purposes was “to avoid hindering industry from supplying firearms to law-abiding citizens for all lawful purposes, including hunting, self-defense, collecting, and competitive or recreational shooting.” Pub. L. No. 109-92, § 5(b)(3).

Are the PLCAA and CSLA legitimate applications of the interstate commerce power? Of Section 5 of the Fourteenth Amendment? Of the other grants of power cited by Congress? The lone “pro-gun” congressperson to vote against the PLCAA was Representative Ron Paul (R-Tex.). He said that he considered the municipal lawsuits to be completely wrong, but that under the Tenth Amendment, Congress had no authority to interfere with state court cases. Do you agree?

32. *Id.* § 7901(b).

5. The United States Department of Defense wrote a letter to Congress stating that it “strongly supports” the PLCAA because it “would help safeguard our national security by limiting unnecessary lawsuits against an industry that plays a critical role in meeting the procurement needs of our men and women in uniform.” 151 Cong. Rec. S9395 (July 29, 2005). Is the PLCAA a legitimate application of congressional military and war power? CQ: Consider the historic relationship of firearms manufacturers to national defense, discussed in Chapter 3.B, 3.D, 12-16, and online 23.

6. In 2013, some of the families whose relatives were murdered in the horrific school shooting at Newtown, Connecticut, sued the manufacturer and distributors of the ArmaLite Rifle Model 15, or “AR-15.” That firearm was used by the highly mentally disturbed criminal who murdered 20 children and 6 adults at Sandy Hook Elementary School.

The Connecticut Supreme Court, by a 4-3 margin, found that its own state’s laws regulating “unfair trade practices,” Connecticut Unfair Trade Practices Act (CUTPA), Conn. Gen. Stat. § 42-110a, et seq., were an exception to the PLCAA. The court allowed Plaintiffs to proceed with their claim that Remington “knowingly marketed, advertised, and promoted” a gun “to carry out offensive military-style combat missions,” in violation of CUTPA’s bar on “advertisements that promote or model the unsafe or illegal use of potentially dangerous products.” The negligent entrustment claim was dismissed, because the gun had not been sold to the criminal, but to his mother. *Soto v. Bushmaster Firearms*, 202 A.3d 262 (Conn. 2019). Although the plaintiffs could proceed to trial, the court cautioned that plaintiffs’ theory requires proving that “the defendants’ wrongful advertising magnified the lethality of the Sandy Hook massacre by inspiring Lanza or causing him to select a more efficiently deadly weapon for his attack. . . Proving such a causal link at trial may prove to be a Herculean task.” *Id.* at 290.

The U.S. Supreme Court denied a petition for a writ of certiorari. *Remington Arms Co., LLC v. Soto*, 140 S. Ct. 513 (2019). Although Remington Company, LLC, had previously filed for bankruptcy and reorganization in 2018, the company filed for bankruptcy again in July of 2020 and its assets were divided and sold to satisfy its creditors. In September 2020, all the assets of the Remington Outdoor Company (ROC) were sold at auction. The Soto lawsuit continued against ROC’s estate, namely its insurance policies in effect at the time. In February 2022, the insurance companies settled the Soto case by paying the plaintiffs the full amount of the insurance coverage, \$73 million in total.

7. In Indiana, notwithstanding PLCAA and a state statutory PLCAA analogue, the City of Gary’s 1999 lawsuit against the firearms industry had managed to avoid final dismissal for a quarter century. In 2024, the Indiana legislature enacted HEA 1235, which provides that only the State of Indiana may bring an action on behalf of a political subdivision of the state against firearms businesses. There are exceptions for contract or warranty claims for items purchased by a subdivision, and for enforcement of generally applicable zoning and business laws. The law was upheld and the case terminated by *Smith & Wesson Corp. v. City of Gary*, 274 N.E.3d 939 (Ind. App. 2025), transfer den., 2026 WL 1486750.

Constitutional challenges to PLCAA in other states have also failed. *See, e.g., Gustafson v. Springfield*, 333 A.3d 651 (Pa. 2025).

8. *New State Anti-PLCAA Statutes.* Recall that PLCAA has a “predicate exception” if a manufacturer or seller “knowingly violated a State or Federal statute applicable to the sale or marketing of the product, and the violation was a proximate cause of the harm for which relief is sought, including —” (I) a false entry in required recordkeeping, (II) selling or transferring a firearm to a buyer with reasonable cause to believe the buyer was a prohibited person under 18 U.S.C. § 922(g) or (n). Recall also that attempts to apply general statutes about public nuisance or torts have generally not been successful in invoking the predicate exception. *See, e.g., City of New York v. Beretta*, 524 F.3d 384 (2d Cir. 2008).

Several states, starting with California and New York, have enacted firearms-specific statutes to attempt to utilize PLCAA’s predicate exception. Similar laws have been enacted in Colorado, Connecticut, Delaware, Hawaii, Illinois, Maryland, New Jersey, and Washington. If the statutes created specific rules about the sales of firearms—such as forbidding sales of certain types of guns, or requiring particular procedures for firearms sales—such statutes would unquestionably be PLCAA predicate exceptions. What makes these statutes different is that they do *not* create specific rules regarding firearms commerce. Rather, the open-ended language allows for suits under a nearly infinite variety of claims that firearms commerce in compliance with all definite laws about firearms commerce can be unlawful, and hence the subject of a tort suit notwithstanding PLCAA.

A 2022 addition to the General Business Law provides:

§ 898-a. 2. “Reasonable controls and procedures” shall mean policies that include, but are not limited to: (a) instituting screening, security, inventory and other business practices to prevent thefts of qualified products as well as sales of qualified products to straw purchasers, traffickers, persons prohibited from possessing firearms under state or federal law, or persons at risk of injuring themselves or others; and (b) preventing deceptive acts and practices and false advertising and otherwise ensuring compliance with all provisions of article twenty-two-A of this chapter.

§ 898-b. Prohibited activities.

1. No gun industry member, by conduct either unlawful in itself or unreasonable under all the circumstances shall knowingly or recklessly create, maintain or contribute to a condition in New York state that endangers the safety or health of the public through the sale, manufacturing, importing or marketing of a qualified product.

2. All gun industry members who manufacture, market, import or offer for wholesale or retail sale any qualified product in New York state shall establish and utilize reasonable controls and procedures to prevent its qualified products from being possessed, used, marketed or sold unlawfully in New York state.

§ 898-c. Public nuisance. 1. A violation of subdivision one or two of section eight hundred ninety-eight-b of this article that results in harm to the public shall hereby be declared to be a public nuisance.

2. The existence of a public nuisance shall not depend on whether the gun industry member acted for the purpose of causing harm to the public.

§ 898-d. Enforcement. Whenever there shall be a violation of this article, the attorney general, in the name of the people of the state of New York, or a

city corporation counsel on behalf of the locality, may bring an action in the supreme court or federal district court to enjoin and restrain such violations and to obtain restitution and damages.

§ 898-e. Private right of action. Any person, firm, corporation or association that has been damaged as a result of a gun industry member's acts or omissions in violation of this article shall be entitled to bring an action for recovery of damages or to enforce this article in the supreme court [in N.Y., the trial court of general jurisdiction] or federal district court.

N.Y. Gen. Bus. L. art. 39-DDDD, § 898.

The Second Circuit rejected a facial challenge to the statute. It held that although enforcement might in some cases violate PLCAA, there were some lawful applications of the statute. *National Shooting Sports Foundation, Inc. v. James*, 144 F.4th 98 (2d Cir. 2025). The Third Circuit ruled that no plaintiff had standing to bring a pre-enforcement challenge. *Nat'l Shooting Sports Found. v. Platkin*, 80 F.4th 215 (3d Cir. 2023).

The Illinois version also outlaws some speech, by forbidding a “firearms industry member” to:

(2) “advertise, market, or promote a firearm-related product in a manner that reasonably appears to support, recommend, or encourage individuals to engage in unlawful paramilitary or private militia activity in Illinois”; or
(3) “advertise, market, promote, design, or sell any firearm-related product in a manner that reasonably appears to support, recommend, or encourage persons under 18 years of age to unlawfully purchase or possess or use a firearm-related product in Illinois.”

815 ILCS 505/2BBBB(b)

While a lawsuit has been filed against the Illinois statute shortly after enactment in 2023, the court as of June 2026 has not set a trial date. *National Shooting Sports Foundation v. Raoul*, No. 3:23-cv-02791-SMY (S.D. Ill. 2023).

In a suit against California's statute, the court ruled that plaintiffs lacked standing except for one issue: the statutory provision allowing a lawsuit for sale of an “abnormally dangerous” firearm outside California, if the firearm were later misused in California. The attempt to control commerce outside California was a plain violation of the dormant commerce clause. *National Shooting Sports Foundation v. Bonta*, 718 F. Supp. 3d 1244 (S.D. Cal. 2024). In Hawaii, the Attorney General undercut plaintiffs' standing by disavowing any intention to enforce the “abnormally dangerous” provision against any firearm that is lawful in Hawaii. Accordingly, the district court found that no plaintiffs had standing for a pre-enforcement challenge. *National Shooting Sports Foundation v. Lopez*, 730 F. Supp. 3d 1073 (D. Haw. 2024).

In New Jersey, the Attorney General won an injunction under the statute requiring a background check on the sale of “any gun-related product” and the reporting of such sales to the Attorney General. The term “any gun-related product” would seem to include screws, cleaning kits, or gun cases. *Platkin v. RR Outdoors, LLC*, no. C-C-37-24 (Super. Ct. N.J. July 22, 2025), https://www.news2a.com/wp-content/uploads/2025/07/2025-0723_Butchs-Injunction.pdf?x85301.

For scholarship supportive of the new statutes, see Hillel Y. Levin & Timothy D. Lytton, *The Contours of Gun Industry Immunity: Separation of Powers, Federalism, and the Second Amendment*, 75 Fla. L. Rev. 834 (2023); Heidi Li Feldman, *What It Takes to Write Statutes that Hold the Firearms Industry Accountable to Civil Justice*, 133 Yale L.J. Forum 717 (2024).

9. For more on Mexico, see online Ch. 19.C.4. For further discussion of the PLCAA and surrounding litigation, see Frank J. Vandall, 69 Emory L.J. 1077 (2020) (suing the NRA for damages is like suing the United Klans of America); Christian Turner and Justin C. Van Orsdol, *The Gun Subsidy*, 68 Buff. L. Rev. 1117 (2020) (proposing a regulatory system in which gun manufacturers would be strictly liable to a federal fund for deaths caused by their guns, paired with a subsidy that will serve to ensure the availability of guns sufficient to meet the rights the Supreme Court has found in the Second Amendment); Samuel D. Brunson, *Paying for Gun Violence*, 104 Minn. L. Rev. 605 (2018) (proposing a tax on all gun owners to compensate the victims of gun criminals); George A. Mocsary, *Insuring Against Guns?*, 46 Conn. L. Rev. 1209, 1230 n.131 (2014) (discussing moral hazard problems with a fund to compensate criminal shooting victims); Amicus brief of Professors of Second Amendment law, Cato Institute, et al. in *Remington v. Soto*, 140 S. Ct. 513 (2019) (comparing history of PLCAA to history of coordinated Southern segregationist multi-suits against the Northern press that led the U.S. Supreme Court to drastically reduce the scope of common law libel in *New York Times v. Sullivan*, 376 U.S. 254 (1964) — and also arguing that gun manufacturers, like printing press manufacturers, may not be sued for torts committed by users of the tool).

D. GUN CONTROL AND THE LIMITS OF FEDERAL POWER

1. Interstate Commerce and *Lopez v. United States*

Since the 1930s, the Interstate Commerce Clause, U.S. Const. art. I, § 8, cl. 3, has been a major source of congressional power. As common and easily transported articles of commerce, guns have been subject to much federal regulation enacted pursuant to the expansion of the interstate commerce power that began in the 1930s and that since the Gun Control Act of 1968 and the Controlled Substances Act of 1970 has amounted to nearly a de facto general power to enact federal criminal laws on intrastate activities. While the National Firearms Act of 1934 is based on Congress's tax power and only covered a small fraction of the American gun supply (Chs. 3.A.1, 3.C), the Gun Control Act of 1968 (GCA) applies to all firearms (except muzzleloaders) manufactured after 1898 and is based on the interstate commerce power.

One of the early challenges to the Gun Control Act was raised by a defendant who was prosecuted under the provision that banned all gun possession by convicted felons. In *United States v. Bass*, 404 U.S. 336 (1971), a convicted felon argued that prosecutors failed to show a nexus between his possession of a firearm and interstate commerce. At the time, the jurisdictional predicate of the GCA was “in

commerce or affecting commerce.”³³ Although the statute did not say *interstate* commerce, the *Bass* Court held that the government must prove a nexus to interstate commerce. Otherwise, the GCA might exceed Congress’s interstate commerce power. In the absence of clearly expressed congressional intent, the Court would assume that Congress had not intended to upset the state-federal balance.

A few years later, in *Scarborough v. United States*, 431 U.S. 563 (1977), the Court held that Congress had only intended to require a minimal nexus with interstate commerce. As long as the gun had crossed state lines, even if the crossing were years before the felon’s possession of the firearm, and even if the felon had nothing to do with the interstate crossing, the GCA still applied. *Scarborough* was purely a statutory construction case, and the defendant apparently never raised the issue of whether the government’s interpretation of the GCA of 1968 would mean that the GCA exceeded congressional powers over interstate commerce.

In *United States v. Lopez*, 514 U.S. 549 (1995), the Supreme Court struck down the Gun-Free School Zones Act of 1990, in which Congress had made it a federal offense “for any individual knowingly to possess a firearm at a place that the individual knows, or has reasonable cause to believe, is a school zone.” 18 U.S.C. § 922(q)(1)(A). The court reasoned that “the Act neither regulates a commercial activity nor contains a requirement that the possession be connected in any way to interstate commerce.”

Lopez was the first case since the 1930s in which the Court overturned a federal statute on the ground that Congress lacked power under the Interstate Commerce Clause to enact it. *Lopez* summarized the precedents, which had recognized three broad forms of legitimate congressional use of the interstate commerce power: “Congress may regulate the use of the channels of interstate commerce. . . . Second, Congress is empowered to regulate and protect the instrumentalities of interstate commerce, or persons or things in interstate commerce, even though the threat may come only from intrastate activities. . . . Finally, Congress’ commerce authority includes the power to regulate those activities having a substantial relation to interstate commerce.” *Id.* at 551.

For simple possession of a firearm in a thousand-foot zone around schools, the first two bases of congressional power were irrelevant. As for the “substantial relation” basis, the Court held that the criminal statute by its terms has nothing to do with “commerce” or any sort of economic enterprise, however broadly one might define those terms. The Act was not an essential part of a larger regulation of economic activity that could be undercut unless the intrastate activity was regulated. Nor did the Act contain a jurisdictional element that would ensure a case-by-case inquiry into

33. *Id.* at 337. The current jurisdictional hook of the Gun Control Act is:

The term “interstate or foreign commerce” includes commerce between any place in a State and any place outside of that State, or within any possession of the United States (not including the Canal Zone) or the District of Columbia, but such term does not include commerce between places within the same State but through any place outside of that State. The term “State” includes the District of Columbia, the Commonwealth of Puerto Rico, and the possessions of the United States (not including the Canal Zone).

18 U.S.C. § 921(a)(2).

whether the firearm possession in question affected interstate commerce. “The possession of a gun in a local school zone is in no sense an economic activity that might, through repetition elsewhere, substantially affect any sort of interstate commerce. Respondent was a local student at a local school; there is no indication that he had recently moved in interstate commerce, and there is no requirement that his possession of the firearm have any concrete tie to interstate commerce.” *Id.* at 558-59.

In response to *Lopez*, Congress enacted a revised version of the Gun-Free School Zones Act that included extensive findings and declarations about the interstate commerce impact of possession of firearms in school zones. 18 U.S.C. § 922(q) (1) (A)-(I). The new version includes a “jurisdictional hook” similar to some other federal regulatory statutes. Instead of simply prohibiting firearm possession in a school zone (as the version of the statute struck down in *Lopez* did), the new version prohibits possession of “a firearm that has moved in or that otherwise affects interstate or foreign commerce” in “a place that the individual knows, or has reasonable cause to believe, is a school zone.” 18 U.S.C. § 922(q) (2) (A).

Some lower federal courts have upheld the revised Act against claims that it exceeds the limits of the federal commerce power as construed in *Lopez*. See, e.g., *United States v. Dorsey*, 418 F.3d 1038 (9th Cir. 2005). For a critique of the argument that one passage in interstate commerce should be deemed sufficient to forever subject an item to congressional control, see David E. Engdahl, *The Necessary and Proper Clause as an Intrinsic Restraint on Federal Lawmaking Power*, 22 Harv. J.L. & Pub. Pol’y 107 (1998) (criticizing “the herpes theory” of interstate commerce); David B. Kopel & Glenn H. Reynolds, *Taking Federalism Seriously: Lopez and the Partial-Birth Abortion Ban Act*, 30 Conn. L. Rev. 59 (1997) (arguing that the statute in *Bass* exceeds the legitimate scope of the interstate commerce power).

The school zone where guns are prohibited extends 1,000 feet from the legal boundaries of the school. Given the number of schools distributed throughout the country, the 1,000-foot radius of the overlapping “school zones” encompasses almost every portion of every city or town in the United States. The Act creates exceptions for unloaded guns in locked containers, guns on private property, guns locked in a rack in a vehicle, and an exception for individuals with state firearms licenses, which include a license to carry a concealed handgun. *United States v. Tait*, 54 F. Supp. 2d 1100 (S.D. Ala. 1999), *aff’d*, 202 F.3d 1320 (11th Cir. 2000).

In *United States v. Morrison*, 529 U.S. 598 (2000), the Court ruled that part of the federal Violence Against Women Act of 1994 (VAWA) exceeded congressional power under the Interstate Commerce Clause. The challenged provision of VAWA allowed victims of violent crimes based on gender animus to bring civil suits in federal courts against their attackers. In invalidating this civil remedy, the Court (by the same 5-4 majority as in *Lopez*) reiterated that the interstate commerce power is limited to activities that are both economic and sufficiently connected to interstate commerce. *Id.* at 610. The VAWA, said the Court, “has nothing to do with ‘commerce’ or any sort of economic enterprise.” *Id.*

2. *Federalism and Printz v. United States*

Assertions of federal power also have been deemed illegitimate on the basis of the Tenth Amendment. *Printz v. United States*, 521 U.S. 898 (1997), overturned

portions of the 1993 Brady Act for violating the federalism principles embodied in the Tenth Amendment. The Brady Act set up the National Instant Criminal Background Check System (NICS), which became operational in 1998. Under NICS, firearms stores must contact the FBI for an “instant” background check on retail firearms purchasers. States may, if they wish, replace the FBI with a state agency that conducts the instant check. In the five years before NICS was ready for use, the interim provision of the Brady Act imposed a waiting period of five business days for handgun sales. The Act required firearm dealers to forward identifying information about purchasers to the purchaser’s “chief law enforcement officer” (CLEO). During the one-week waiting period, the CLEO was required to “make a reasonable effort to ascertain within 5 business days whether receipt or possession would be in violation of the law, including research in whatever State and local recordkeeping systems are available and in a national system designated by the Attorney General.” The Act did not require the CLEO to take any particular action, such as notifying the dealer that the prospective buyer was ineligible to purchase the firearm. But if the CLEO did so notify the firearm dealer, the CLEO had to, upon request, inform the would-be purchaser in writing of the reasons for that determination. The CLEO had to destroy any records received from firearm dealers that did not yield any ground for rejecting a sale. CLEOs who violated the Act were subject to fine, imprisonment, or both. Some sheriffs sued.

A five-Justice majority held that forcing local law enforcement into federal service violated the Tenth Amendment. The Court, with Justice Antonin Scalia writing, held that the federal government could not use “the States as the instruments of federal governance” by “commandeering” States to enforce its laws. The federal government could directly enforce laws against individual Americans, but it could not compel state and local officials to do the federal government’s work. The Court rejected Justice John Paul Stevens’s dissenting argument that the Necessary and Proper Clause allowed Congress to require states to enforce laws that could otherwise validly be enforced by the federal government. According to the majority, “the Federal Government may not compel the States to implement, by legislation or executive action, federal regulatory programs.” The Court relied heavily on writings by Alexander Hamilton and James Madison in *The Federalist Papers*.

While joining the majority, Justice Thomas wrote a separate concurring opinion, suggesting that the Brady Act might violate the Interstate Commerce Clause and the Second Amendment: If “the Second Amendment is read to confer a personal right to ‘keep and bear arms,’ a colorable argument exists that the Federal Government’s regulatory scheme, at least as it pertains to the purely intrastate sale or possession of firearms, runs afoul of that Amendment’s protections.” The concurrence made it clear that Justice Thomas thought there was a strong argument that the Second Amendment was indeed an individual right.

Justice O’Connor also concurred, opining that “Our precedent and our Nation’s historical practices support the Court’s holding today” because they “utterly fail to adhere to the design and structure of our constitutional scheme.” She added that CLEOs were free voluntarily to participate in the Brady Act’s background-check provisions, and that Congress was “free to amend the interim program to provide for its continuance on a contractual basis with the States,” as it does with other programs, like highway funding where it conditions federal funds on compliance with certain conditions. *Printz* was not a novelty. Precedent

establishing the constitutional legitimacy of state refusal to participate in federal law enforcement appears as early as dicta in *Prigg v. Pennsylvania*, 41 U.S. 529 (1842) (Pennsylvania cannot criminalize federal officials who enforce the federal Fugitive Slave Act, but Pennsylvania has no obligation to assist the enforcement).

3. Modern Applications of the Twentieth-Century Precedents: Firearms Freedom Acts and Second Amendment Sanctuaries

Lopez and *Printz* spurred new state and local efforts to resist gun control imposed from above. One form of resistance has been *Firearm Freedom Acts*, which are state attempts to nullify federal law—a stratagem that has never succeeded in the United States in the sense of being judicially approved. The other form is *Second Amendment sanctuaries*—a form of resistance known as interposition that is unquestionably legal and has often succeeded. The two forms of resistance can be traced back to the Democratic-Republicans’ resistance to the Federalist party’s Sedition Act, passed by Congress in 1798. The Kentucky Resolution, drafted by Thomas Jefferson, was nullification, and the milder Virginia Resolution, drafted by James Madison, was interposition. See Ch. 15.A.1-5.

Lopez made it clear that the federal power to regulate interstate commerce is not the power to regulate everything. Nine states (Alaska, Arizona, Idaho, Kansas, Montana, South Dakota, Tennessee, Utah, and Wyoming) tested that idea by enacting a Firearms Freedom Act (FFA). Such acts declare that a firearm that is made within a single state, and that never leaves its state of origin, is outside the scope of Congress’s interstate commerce power, and hence not subject to federal firearms regulation. See Audrey Thorne, *Federalism of the Highest Caliber: Counteractive Legislation and the Idaho Firearms Freedom Act*, 56 Idaho L. Rev. 539 (2020).

In 2013, the Ninth Circuit invalidated the Montana FFA on grounds of federal preemption. See *Montana Shooting Sports Ass’n v. Holder*, 727 F.3d 975 (9th Cir. 2013). Several years before, the Ninth Circuit had held that in-state, noncommercial cultivation of marijuana for personal, lifesaving medical use was beyond the reach of the federal Controlled Substances Act of 1970—which was modeled on the 1968 GCA’s use of the interstate commerce power. See *Raich v. Ashcroft*, 352 F.3d 1222 (9th Cir. 2003). The Supreme Court reversed the Ninth Circuit on the grounds that marijuana is a commodity with a national market, and thus increased cultivation in California would affect the illicit interstate market, which Congress has direct power to regulate. See *Gonzales v. Raich*, 545 U.S. 1 (2005). In *Montana Shooting Sports*, the Ninth Circuit found no persuasive way to distinguish Montana FFA guns from what the Supreme Court had already held about medical marijuana.

Kansas, Texas, and West Virginia have enacted FFAs stating that the National Firearms Act does not apply to certain NFA items, such as short-barreled rifles (SBRs) that are manufactured in-state and that never leave the state. However, the NFA is based on the Constitution’s grant of tax power to Congress, not on the interstate commerce power. Ch. 3.A.1. The fact that an activity (e.g., making and using a gun) is purely intrastate does not impact the congressional tax power. A resident of Kansas so learned the hard way, after he posted on Facebook about his new SBR acquired in compliance with the Kansas FFA. He was prosecuted for violating the NFA by possessing an unregistered SBR, and the Tenth Circuit upheld

the conviction. *See United States v. Cox*, 906 F.3d 1170 (10th Cir. 2018). A proactive lawsuit by the Texas Attorney General to enforce the Texas statute failed for lack of standing. *Paxton v. Dettelbach*, 105 F.4th 708 (5th Cir. 2024).

Several states have passed Second Amendment sanctuary policies under which they simply would not enforce certain federal gun laws or laws targeting certain firearms.³⁴ Often called “Second Amendment Sanctuary,” the statutes forbid state or local officials to assist federal enforcement of certain gun controls, such as federal gun controls post-dating the statute, federal laws that exceed the scope of state regulations, or enforcement against a gun made in-state that has not left the state.

Sanctuary statutes are based on the *Printz* rule that Congress cannot force state or local law officers to enforce federal laws. State legislation forbidding state agents from assisting federal officials in the enforcement of federal immigration laws was upheld in *United States v. California*, 921 F.3d 865 (9th Cir. 2019). Similarly, all but a few states have legalized medical cannabis, low-THC cannabis products, or adult use in varying degrees.³⁵ These states typically forbid state and local officials from enforcing federal law against cannabis users who comply with state law. As with marijuana and immigration, federal officials can still enforce federal law. But without state and local cooperation, the number of available federal law enforcement officers is too small for full enforcement, especially against small-scale offenders.

The Eighth Circuit held Missouri’s Second Amendment Protection Act void under the Supremacy Clause because it conflicted with federal law. Surprisingly, the court also ruled that the ban on state or local assistance to federal enforcement of the laws was unconstitutional for being closely connected to the nullification. *Missouri v. United States*, 114 F.4th 980 (8th Cir. 2024).

Many counties, municipalities, and elected officials (especially sheriffs) have declared their jurisdictions to be Second Amendment sanctuaries.³⁶ Sometimes the declaration is simply a resolution of the county commissioners affirming the importance of the right to keep and bear arms. Often, the declaration explicitly states that the local government (or the sheriff’s office) will not enforce one or more new gun control laws enacted by the state legislature. Again, the state police can enforce on their own, but few states have a state police force large enough to fully enforce. Second Amendment sanctuaries may be threatened with cutoffs of state funding, which—unlike in earlier times—is now a key source of local government revenue.³⁷ There are only five states that do not have at least one Second

34. *See* Second Amendment Sanctuary States, Gun Owners Am. (Oct. 2023), <https://www.gunowners.org/state-sapas>.

35. As of 2026, the exceptions are Idaho and Kansas. *See* National Conference of State Legislatures, State Medical Cannabis Laws (2026), <https://www.ncsl.org/health/state-medical-cannabis-laws>.

36. In Virginia, for example, more than 130 cities and counties have passed some kind of ordinance or resolution opposing new gun laws. *See* Jeff Williamson, *List of Second Amendment Sanctuaries in Virginia and Where It’s Being Discussed*, WSL News, Aug. 11, 2019.

37. Congress has the ability to make grants to states conditional on state participation in a federal program, but the conditionality must be clearly expressed by statute, must relate to the relevant program (e.g., highway funding cannot be cut for refusal to carry out handgun buyer checks), and the amount of money involved must not be so large as to be coercive. *See, e.g., Nat’l Fed. of Indep. Business v. Sebelius*, 567 U.S. 519 (2012).

Amendment sanctuary jurisdiction, and in some states, the sanctuaries cover all or most of the state. See *Second Amendment sanctuary*, Wikipedia (2023), https://en.wikipedia.org/wiki/Second_Amendment_sanctuary.

In American political structure, the sovereign states (from 1776 onward) precede the creation of the federal government under the U.S. Constitution in 1789. Although they ceded some sovereign powers to the new federal government, they retained many others. U.S. Const., amend. X. County or municipal governments do *not* have a similar legal relationship to their state. Since the nineteenth century, the American theory has been that local governments are mere creatures of the state and are subject to the plenary control of the state legislature—except to the extent a state constitution provides otherwise. See John Forest Dillon, *Municipal Corporations* (1872) (“Dillon Rule”). This is true in theory, but not always in practice.

In Idaho the Attorney General is granted optional authority to challenge *any* federal enforcement action that violates the Idaho state constitution’s right to keep and bear arms or violates any Idaho statutes enacted to protect the right. Ida. St. § 18-3315B(5). The Idaho strategy takes a leaf from an 1850 Vermont statute against the federal Fugitive Slave Act of that same year. The statute ordered the state’s attorneys to “protect, defend, and procure to be discharged” any person in Vermont “arrested or claimed as a fugitive slave.” The legal firepower made the Fugitive Slave Act nearly impossible to enforce in the Green Mountain State. See Horace K. Houston, *Another Nullification Crisis: Vermont’s 1850 Habeas Corpus Law*, 77 New Eng. Q. 252 (2004).

NOTES & QUESTIONS

1. *Montana Shooting Sports* noted that plaintiffs did not pursue any argument that the Supreme Court’s affirmation of the individual right to arms in *District of Columbia v. Heller*, 554 U.S. 570 (2008) (Ch. 6.A), should affect the outcome of the case. What if the Supreme Court in *Heller* had ruled the Second Amendment is purely a state’s right? Would that interpretation bolster the constitutional argument in favor of FFAs? What if a state legislature declared all arms of certain types to be state militia arms, and required or urged state citizens to possess them? Does recognition of a Second Amendment individual right foreclose recognition of a state militia right?

2. Can you think of any other mechanisms of sanctuary? Can you think of any other issues besides immigration, controlled substances, and guns that might inspire sanctuary remedies by the several states?

3. Further reading: Shawn E. Fields, *Second Amendment Sanctuaries*, 115 Nw. U.L. Rev. 437 (2020); Nicholas J. Johnson, *Defiance, Concealed Carry, and Race*, 83 L. & Contemp. Probs. 159 (2020); Stephen Halbrook, *On Target? Assessing Gun Sanctuary Ordinances That Conflict with State Law*, 122 W. Va. L. Rev. 817 (2020); Joyce Lee Malcolm, *The Case for Second Amendment Sanctuaries: The Duty to Defend the Constitution*, George Mason Leg. Studs. Res. Paper No. LS 20-16 (2020). For the origins of sanctuary, see Michael J. Davidson, *Sanctuary: A Modern Legal Anachronism*, 42 Cap. U.L. Rev. 583 (2014) (history of sanctuary from ancient times to the present, including former English law by which a person who fled to a church might have punishment mitigated or avoided).